



Western Australia

~~Dangerous Goods Safety Act 2004~~

Motor Vehicle Dealers Dangerous Goods Safety Act 19732004

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Motor Vehicle Dealers Dangerous Goods Safety Act 19732004

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Western Australia

**Motor Vehicle Dealers~~Dangerous Goods Safety~~
Act 1973~~2004~~**

An Act —

- **to regulate dealing in motor vehicles; and**
- **for related purposes.**

[Long title amended: No. 73 of 2003 s. 4; No. 58 of 2010 s. 33.]

**~~Dangerous Goods Safety (Road and Rail
Transport of Non-explosives) Regulations 2007~~**

Part 11 — Preliminary

1. Short title

This Act may be cited as the *Motor Vehicle Dealers Act 1973*.

Division 1 — Introductory

1. Citation

~~These regulations are the *Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Regulations 2007*.~~

2. Commencement

~~The provisions of this Act shall~~ These regulations come into operation on such day as follows:

- ~~(a) regulations 1 and 2~~ on the day on which these regulations are published in the *Gazette*;
- ~~(b) the rest of the regulations~~ on the day on which the Act Part 3 comes into operation.

3. Main objects

~~The main objects of these regulations are~~

- ~~(a) to set out the obligations of persons involved in the transport of dangerous goods by road or~~ days as is rail;
~~and~~
- ~~(b) to reduce as far as practicable the risks to people, property and the environment arising from the transport of dangerous goods by road or~~ are, respectively, fixed by proclamation.rail; and

[3. Deleted: No. 87 of 1981 s. 3.]

- ~~(c) to give effect to the standards, requirements and procedures of the ADG Code so far as they apply to the transport of dangerous goods by road or rail; and~~
- ~~(d) to promote consistency between the standards, requirements and procedures applying to the transport of~~

~~dangerous goods by road, rail and other modes of transport.~~

Division 2 — Interpretation

4. ~~*Omitted under the Reprints Act 1984 s. 7(4)(f).]*~~

5. Terms used in these regulations

(1) In ~~this Act~~ these regulations, unless the contrary intention appears —

~~*Act* means the *Dangerous Goods Safety Act 2004*;~~

~~*ADG Code* means the *Australian Code for the Transport of Dangerous Goods by Road and Rail*, Seventh edition, 2007, published by the Commonwealth of Australia (ISBN 1 921168 57 9);~~

~~*ADR approved* means approved by the Commissioner in accordance with the *European Agreement Concerning the International Carriage of Dangerous Goods by Road* published by the Inland Transport Committee of the Economic Commission for Europe;~~

~~*aggregate quantity*, in relation to a load containing dangerous goods, means the total of —~~

~~(a) the number of kilograms of —~~

~~(i) solid dangerous goods; and~~

~~(ii) articles (including aerosols);~~

~~in the load; and~~

~~(b) the number of litres or kilograms, whichever is used in the transport documentation for the load to describe the goods, of liquid dangerous goods in the load; and~~

~~(c) the total capacity in litres of the receptacles in the load containing dangerous goods of UN Class 2 (other than aerosols);~~

~~*another participating jurisdiction* means a participating jurisdiction other than this State;~~

**Dangerous Goods Safety (Road and Rail Transport of Non-explosives)
Regulations 2007**

Part 11 Preliminary
Division 2 Interpretation

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- ~~—— *appropriately marked* has the meaning given in regulation 106;~~
- ~~—— *appropriately placarded* has the meaning given in regulation 111(2);~~
- ~~—— *approval* means an approval that is given by the Chief Officer or an authorised body and is in effect under these regulations;~~
- ~~—— *approved packaging* means ——~~
 - ~~—— (a) packaging of a design that is approved under regulation 56; or~~
 - ~~—— (b) foreign approved packaging;~~
- ~~—— *approved tank* means ——~~
 - ~~—— (a) a tank of a design that is approved under regulation 56; or~~
 - ~~—— (b) a foreign approved tank;~~
- ~~—— *approved test* means a test that is approved under regulation 15(1)(a);~~
- ~~—— *approved training course* means a training course that is approved under regulation 15(1)(b);~~
- ~~—— *Australian Transport Council* means the council of Commonwealth, New Zealand, State, Australian Capital Territory and Northern Territory Ministers, established on 11 June 1993 and known as the Australian Transport Council, but constituted so that it consists of only one Minister representing each of the Commonwealth, the States, the Australian Capital Territory and the Northern Territory;~~
- ~~—— *authorised body* means a body or any other person authorised under regulation 60 to give approvals;~~
- ~~—— *bulk container* has the meaning given in regulation 33;~~
- ~~—— *capacity* means the total internal volume of a packaging at a temperature of 15°C, expressed in litres or cubic metres;~~
- ~~—— *combination*, in relation to road vehicles, means a group of road vehicles consisting of ——~~
 - ~~—— (a) a prime mover and 2 or more trailers; or~~

-
- ~~———— (b) — a rigid vehicle and one or more trailers;~~
 - ~~———— **Competent Authorities Panel** or **CAP** means the panel of that name comprising persons each of whom —~~
 - ~~———— (a) — is the competent authority, of a participating jurisdiction, for road transport or for rail transport (or a representative of a competent authority); and~~
 - ~~———— (b) — is appointed by the Australian Transport Council;~~
 - ~~———— **compliance plate** means a plate that must be attached to a portable tank, MEGC or tank vehicle under the ADG Code Part 6, and includes an identification plate;~~
 - ~~———— **consigns** and **consignor** have the meaning given in regulation 40;~~
 - ~~———— **corresponding approval** means an approval to which regulation 265 applies;~~
 - ~~———— **corresponding authority** means the authority in another participating jurisdiction or, if there are separate authorities in that jurisdiction in relation to road transport and to rail transport, the authority in relation to road transport or rail transport, as the case requires, whose functions most nearly correspond to those of the Chief Officer under the Act;~~
 - ~~———— **corresponding dangerous goods driver licence** means a licence to which regulation 266 applies that has effect in this State under that regulation as a dangerous goods driver licence;~~
 - ~~———— **corresponding dangerous goods vehicle licence** means a licence to which regulation 266 applies that has effect in this State under that regulation as a dangerous goods vehicle licence;~~
 - ~~———— **corresponding determination** means a determination to which regulation 263 applies;~~
 - ~~———— **corresponding exemption** means an exemption to which regulation 264 applies;~~
 - ~~———— **corresponding law** means a law of another State or a Territory corresponding, or substantially corresponding, to these regulations;~~
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- ~~———— *dangerous goods* has the meaning given in regulation 28;~~
- ~~———— *dangerous goods driver licence* means a licence that is in force under Part 17 Division 3;~~
- ~~———— *Dangerous Goods List* means the list set out in the ADG Code section 3.2.3;~~
- ~~———— *dangerous goods vehicle licence* means a licence that is in force under Part 17 Division 4;~~
- ~~———— *demountable tank* means a tank, other than a portable tank, that is designed to be carried on a vehicle but that does not form part of and is not permanently attached to the vehicle and is designed to be removable;~~
- ~~———— *determination* means a determination that is made by the Chief Officer and is in effect under these regulations;~~
- ~~———— *driver licence* has the meaning that the *Road Traffic Act 1974* section 5(1) gives to the term “Australian driver licence”;~~
- ~~———— *emergency service officer* —~~
 - ~~———— (a) means an officer or employee of FESA; and~~
 - ~~———— (b) in Part 14 includes an officer of an ambulance service;~~
- ~~———— *exemption* means an exemption, in force under the Act Part 4, from any provision of these regulations;~~
- ~~———— *FESA* means the Fire and Emergency Services Authority of Western Australia established under the *Fire and Emergency Services Authority of Western Australia Act 1998*;~~
- ~~———— *food* includes —~~
 - ~~———— (a) a substance prepared or intended for human or animal consumption; and~~
 - ~~———— (b) a substance (except dangerous goods) intended to be an ingredient of food;~~
- ~~———— *food packaging* means —~~
 - ~~———— (a) a receptacle that contains, or is designed or intended to contain, food; or~~

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- ~~———— (b) — material designed or intended to be used in a receptacle that is designed or intended to contain food;~~
 - ~~———— **foreign approved**, in relation to packaging, means packaging that has the markings required by the ADG Code Part 6 for packaging of its type, in confirmation that the packaging is ADR approved, ICAO approved, IMO approved, RID approved or UN approved;~~
 - ~~———— **freight container** means a re-usable container of the kind mentioned in Australian/New Zealand Standard AS/NZS 3711 that is designed for repeated use for transport of goods by one or more modes of transport;~~
 - ~~———— **hose assembly** means a hose, or hoses connected together, for use in the transfer of dangerous goods to or from a tank on a vehicle, a portable tank or a storage receptacle and includes —~~
 - ~~———— (a) — if there are 2 or more hoses connected together — the connections between the hoses; and~~
 - ~~———— (b) — the attachment connecting the hose or hoses to the tank; and~~
 - ~~———— (c) — anything else (except the vehicle, portable tank or storage receptacle) attached to the hose or hoses;~~
 - ~~———— **IBC** or **intermediate bulk container** has the meaning given in regulation 34;~~
 - ~~———— **ICAO approved** means approved in accordance with the *Technical Instructions for the Safe Transport of Dangerous Goods by Air* published by the International Civil Aviation Organisation;~~
 - ~~———— **IMO approved** means approved in accordance with the *International Maritime Dangerous Goods Code* published by the International Maritime Organisation;~~
 - ~~———— **incompatible** has the meaning given in regulation 32;~~
 - ~~———— **inner packaging**, in relation to goods for which outer packaging is required if the goods are to be transported, means any~~
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~~packaging that is, or that is to be, contained or protected by the outer packaging;~~

~~**journey** means the transport of dangerous goods from where the goods are consigned to where the goods are delivered to the consignee;~~

~~**large packaging** means outer packaging that —~~

~~(a) is designed for mechanical handling; and~~

~~(b) has a capacity of not more than 3m³; and~~

~~(c) is intended to contain articles or inner packaging with —~~

~~(i) a net mass of more than 400 kgs; or~~

~~(ii) capacities totalling more than 450 L;~~

~~**load** has the meaning given in regulation 38;~~

~~**loads** and **loader** have the meaning given in regulation 42;~~

~~**MEGC** or **multi-element gas container** has the meaning given in regulation 35;~~

~~**model subordinate law** means the Model Subordinate Law on the Transport of Dangerous Goods by Road or Rail set out in Schedule 2 to the *National Transport Commission (Model Legislation — Transport of Dangerous Goods by Road or Rail) Regulations 2007* of the Commonwealth;~~

~~**multimodal** means applicable to, suitable for use on, more than one mode of transport;~~

~~**NATA** means the National Association of Testing Authorities;~~

~~**outer packaging** means external packaging (including absorbent materials, cushioning and any other components) necessary for the purposes of transport to contain and protect —~~

~~(a) articles; or~~

~~(b) receptacles in composite packaging as defined in the ADG Code section 1.2.1.1; or~~

~~(c) inner packaging in combination packaging as defined in the ADG Code section 1.2.1.1;~~

~~—— ***overpack*** means packaging (other than large packaging) used to hold and consolidate packages of goods into a single unit for easier handling and stowage;~~

~~—— Examples: Pallet, together with strapping or shrink wrapping, designed to hold packages; box or crate into which packages are placed.~~

~~—— ***owner***, of a vehicle, has the meaning given in regulation 39;~~

~~—— ***package*** has the meaning given in regulation 51(1);~~

~~—— ***packaging*** has the meaning given in regulation 51(2);~~

~~—— ***packed in limited quantities*** has the meaning given in regulation 45;~~

~~—— ***Packing Group*** has the meaning given in regulation 31;~~

~~—— ***packs*** and ***packer*** have the meaning given in regulation 41;~~

~~—— ***participating jurisdiction*** means ——~~

~~—— (a) this State; and~~

~~—— (b) another State or a Territory that has a corresponding law;~~

~~—— ***placard load*** means a load of dangerous goods that must be placarded under regulation 110;~~

~~—— ***placards*** has the meaning given in regulation 111(1);~~

~~—— ***portable tank*** means a multimodal tank that ——~~

~~—— (a) is designed primarily to be loaded onto a vehicle or ship; and~~

~~—— (b) has a capacity of more than 450 L; and~~

~~—— (c) is equipped with skids, mountings, stabilisers and accessories to facilitate mechanical handling; and~~

~~—— (d) is capable of being loaded and unloaded without removing its service equipment or structural equipment; and~~

~~—— (e) is capable of being lifted when full;~~

~~—— ***premises*** includes a structure, whether permanent or temporary, and land, but does not include a vehicle;~~

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- ~~———— **pressure drums** means welded transportable pressure receptacles of a water capacity of more than 150 L but not more than 1 000 L;~~
- ~~———— Examples: Cylindrical receptacles equipped with rolling hoops, and spheres on skids.~~
- ~~———— **prime contractor** has the meaning given in regulation 43;~~
- ~~———— **prime mover** means a road vehicle that is designed to tow a trailer, but does not include a vehicle that has a load carrying capacity without a trailer;~~
- ~~———— **rail**, in relation to the transport of dangerous goods by rail, does not include —~~
 - ~~———— (a) a railway in a mine; or~~
 - ~~———— (b) a slipway; or~~
 - ~~———— (c) a railway used exclusively by a crane;~~
- ~~———— **rail authority**, in respect of a train on a railway, means the person (whether or not a public authority) that is responsible for the care, control or management of the railway;~~
- ~~———— **rail operator** has the meaning given in regulation 44;~~
- ~~———— **receptacle**, in relation to a substance or article, means a container that is —~~
 - ~~———— (a) for receiving and holding the substance or article (including anything that enables the container to be closed); and~~
 - ~~———— (b) in contact with the substance or article;~~
- ~~———— **recognised testing facility** has the meaning given in regulation 57;~~
- ~~———— **registered** means registered under State or Territory law;~~
- ~~———— **RID approved** means approved in accordance with the *International Regulations Concerning the Carriage of Dangerous Goods by Rail* published by the Inland Transport Committee of the Economic Commission for Europe;~~

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- ~~—— **rigid vehicle** means a road vehicle the load carrying area of which is fixed to the vehicle's chassis or frame;~~
 - ~~—— **road** means a road or other place over which vehicles move, whether on private property or not, that is open to, or used by, the public, whether on payment of consideration or not;~~
 - ~~—— **service equipment**, in relation to a tank or an MEGC, has the meaning given in the ADG Code section 6.7.2.1, 6.7.3.1, 6.7.4.1 or 6.7.5.1, as the case requires;~~
 - ~~—— **structural equipment**, in relation to a tank or an MEGC, has the meaning given in the ADG Code section 6.7.2.1, 6.7.3.1, 6.7.4.1 or 6.7.5.1, as the case requires;~~
 - ~~—— **Subsidiary Risk** has the meaning given in regulation 30;~~
 - ~~—— **tank** has the meaning given in regulation 36;~~
 - ~~—— **tank vehicle** means a road vehicle or unit of rolling stock——~~
 - ~~—— (a) of which a tank forms part; or~~
 - ~~—— (b) to which a tank (other than a portable tank) is attached;~~
 - ~~—— **trailer** means a road vehicle that is designed to be towed, or is towed, by another road vehicle, but does not include a road vehicle propelled by a motor that forms part of the vehicle;~~
 - ~~—— **train** means 2 or more units of rolling stock coupled together, of which at least one unit is a locomotive or a self-propelled unit;~~
 - ~~—— **transport unit** has the meaning given in regulation 37;~~
 - ~~—— **tubes** means seamless transportable pressure receptacles of a water capacity of more than 150 L but not more than 3 000 L;~~
 - ~~—— **UN approved** means approved in accordance with the *United Nations Model Regulations for the Transport of Dangerous Goods* published by the United Nations;~~
 - ~~—— **UN Class**, in relation to dangerous goods, has the meaning given in regulation 29;~~
 - ~~—— **UN Division**, in relation to dangerous goods, has the meaning given in regulation 29;~~
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- ~~unit of rolling stock means any thing capable of transporting people or things —~~
- ~~(a) that is designed to run on rails; or~~
- ~~(b) that is designed to operate or be used on the road or on a railway and is being operated or used on a railway,~~
- ~~and it does not matter how the thing is moved or propelled;~~
- ~~vehicle means —~~
- ~~(a) a road vehicle, including an articulated vehicle; or~~
- ~~(b) a unit of rolling stock.~~
- ~~[Regulation 4 amended in Gazette 30 Jun 2008 p. 3130.]~~

5. Examples and notes in these regulations

- ~~(1) An example of the operation of a provision in these regulations forms part of these regulations but is not to be taken to be exhaustive and, if the example is inconsistent with the provision, the provision prevails.~~
- ~~(2) Notes in these regulations do not form part of them and are provided to assist understanding.~~

6. References to determinations, exemptions, approvals and licences

- ~~In these regulations, a reference to —~~
- ~~(a) a determination, exemption, approval, dangerous goods driver licence or dangerous goods vehicle licence; or~~
- ~~(b) a corresponding determination, corresponding exemption, corresponding approval, corresponding dangerous goods driver licence or corresponding dangerous goods vehicle licence;~~
- ~~includes a reference to the determination, exemption, approval, and licence as varied.~~

**7. ~~References to variation of determinations, exemptions,
approvals and licences~~**

~~In these regulations, a reference to the variation of —~~

~~(a) a determination, exemption, approval, dangerous goods
driver licence or dangerous goods vehicle licence; or~~

~~(b) a corresponding determination, corresponding
exemption, corresponding approval, corresponding
dangerous goods driver licence or corresponding
dangerous goods vehicle licence,~~

~~includes a reference to a variation by addition, omission or
substitution.~~

**8. ~~Inconsistency between these regulations and documents
adopted~~**

~~(1) In this regulation —~~

~~**code** means a code, standard, rule, specification or other
document, made in or outside Australia, that does not itself have
legislative effect in this State;~~

~~**subsidiary legislation** includes rules, regulations and
instructions made, determined or issued under any other Act or
under any Act of the Commonwealth, another State or a
Territory.~~

~~(2) If a code or subsidiary legislation adopted by these regulations
is inconsistent with these regulations, these regulations prevail
to the extent of the inconsistency.~~

9. ~~References in the ADG Code~~

~~For the purposes of these regulations, unless the contrary
intention appears —~~

~~(a) a reference in the ADG Code to the Competent
Authority is to be taken to be a reference to the Chief
Officer;~~

~~———— (b) — a reference in the ADG Code to a numbered Regulation is to be taken to be a reference to the provision in these regulations that corresponds to the provision of that number in the model subordinate law.~~

Division 3 — Application

10. — Application to transport by road and rail

~~———— Unless the contrary intention appears, these regulations apply to the transport of dangerous goods by road or rail.~~

~~———— Note 1: These regulations do not apply to the transport of substances or articles that, under the ADG Code, are within Class 1 (explosives), Division 6.2 (infectious substances) or Class 7 (radioactive materials). These substances and articles are not dangerous goods for the purposes of these regulations.~~

~~———— Note 2: The Act Section 16 provides for the relevant offence and penalty for transporting goods too dangerous to transport. As to goods too dangerous to transport, see the *Dangerous Goods Safety (General) Regulations 2007*.~~

11. — Dangerous situations

~~———— These regulations do not apply to the transport of dangerous goods by or at the direction of —~~

~~———— (a) — a DGO or a police officer who is exercising a power under the Act Part 6 Division 5 or 6; or~~

~~———— (b) — an emergency service officer who is acting to reduce, eliminate or avert any risk to people, property or the environment from dangerous goods in a dangerous situation.~~

12. — Exempt transport

~~———— (1) — In this regulation —~~

~~———— **designated goods** means any substance or article that, under the ADG Code, is within —~~

~~———— (a) — Class 1 (explosives), except —~~

- ~~_____ (i) any substance or article that, under the ADG Code, is within Division 1.4S; and~~
- ~~_____ (ii) track signals carried in a unit of rolling stock for the safety of persons working in rail transport;~~
- ~~_____ or~~
- ~~_____ (b) Category A of Division 6.2 (infectious substances); or~~
- ~~_____ (c) Class 7 (radioactive materials).~~
- ~~_____ (2) These regulations do not apply to the transport by a person of a load of dangerous goods if all of the following requirements are met —~~
 - ~~_____ (a) the load does not contain any designated goods;~~
 - ~~_____ (b) the load does not contain dangerous goods in a receptacle with a capacity of more than 500 L or kgs;~~
 - ~~_____ (c) the aggregate quantity of the dangerous goods in the load is less than 25% of a placard load;~~
 - ~~_____ (d) the goods are not being transported by the person in the course of a business of transporting goods by road;~~
 - ~~_____ (e) the goods are not being transported by the person on a passenger train.~~

13. Further exemptions

- ~~_____ These regulations do not apply to the transport by a vehicle of dangerous goods —~~
 - ~~_____ (a) in a consignment where the aggregate quantity of dangerous goods is less than the quantity for which an inner packaging containing those goods is required by the ADG Code section 5.2.1.8 to be marked with the proper shipping name or the technical name of those goods; or~~
 - ~~_____ (b) in the vehicle's fuel tank; or~~
 - ~~_____ (c) in an appliance or plant that forms part of the vehicle and is necessary for its operation; or~~

- ~~———— (d) — that are portable fire fighting equipment or other portable safety equipment and are part of the vehicle's safety equipment.~~

~~Division 4 — Instruction and training~~

~~14. — Instruction and training~~

- ~~———— (1) — This regulation applies to any task involved in the transport of dangerous goods, including the following —~~
 - ~~———— (a) — packing dangerous goods;~~
 - ~~———— (b) — consigning dangerous goods;~~
 - ~~———— (c) — loading dangerous goods;~~
 - ~~———— (d) — unloading dangerous goods;~~
 - ~~———— (e) — marking packages;~~
 - ~~———— (f) — placarding placard loads;~~
 - ~~———— (g) — preparing transport documentation;~~
 - ~~———— (h) — maintaining vehicles and equipment used in the transport of dangerous goods;~~
 - ~~———— (i) — driving a vehicle transporting dangerous goods;~~
 - ~~———— (j) — being the consignee of dangerous goods;~~
 - ~~———— (k) — following the appropriate procedures in accordance with these regulations in a dangerous situation.~~
- ~~———— (2) — A person who is responsible for management or control of a task must not employ, engage or permit another person to perform the task if the other person —~~
 - ~~———— (a) — has not received, or is not receiving, appropriate instruction and training to ensure that he or she is able to perform the task safely and in accordance with these regulations; or~~
 - ~~———— (b) — is not appropriately supervised in performing the task to ensure that he or she is able to perform the task safely and in accordance with these regulations.~~

~~Penalty: a fine of \$10 000.~~

- ~~(3) A person must not manage, control or supervise a task unless the person has received instruction and training to enable him or her to manage, control or supervise another person to perform the task safely and in accordance with these regulations.~~

~~Penalty: a fine of \$10 000.~~

15. Approvals tests and training courses for drivers

- ~~(1) The Chief Officer may, on an application made in accordance with regulation 194, approve—~~

~~(a) a test of competence for drivers of road vehicles transporting dangerous goods; or~~

~~(b) a training course for drivers of road vehicles transporting dangerous goods.~~

- ~~(2) The Chief Officer may approve a test of competence or a training course only if the Chief Officer considers that a person who passes the test, or completes the course, will have the skills and knowledge to perform the task to which the test or course relates safely and in accordance with these regulations.~~

Division 5 Goods suspected of being dangerous goods

16. Goods suspected of being dangerous goods

~~If it is not clear whether particular goods are dangerous goods, but a person suspects, or ought reasonably to suspect, that they are, the person must not consign or otherwise transport them until—~~

~~(a) the goods have been classified in accordance with the ADG Code; or~~

~~(b) a determination has been made under regulation 17(1)(a).~~

~~Penalty: a fine of \$10 000.~~

Division 6—Determinations

17.—Determinations—dangerous goods

- ~~— (1) Subject to subregulation (2), the Chief Officer may, for the purposes of these regulations, determine that a substance or article is or is not —
 - ~~— (a) dangerous goods; or~~
 - ~~— (b) dangerous goods of a particular UN Class or UN Division; or~~
 - ~~— (c) dangerous goods that have a particular Subsidiary Risk; or~~
 - ~~— (d) dangerous goods of a particular Packing Group; or~~
 - ~~— (e) incompatible with particular dangerous goods.~~~~
- ~~— (2) The Chief Officer may determine that a substance or article is dangerous goods for the purposes of these regulations, only if the substance or article is dangerous goods for the purposes of the definition of “dangerous goods” in the Act section 3(1).~~
- ~~— (3) If a substance or article ceases to be dangerous goods for the purposes of the definition of “dangerous goods” in the Act section 3(1), a determination made under subregulation (1)(a) that the substance or article is dangerous goods ceases to be in effect in respect of the substance or article.~~

~~— Note: As to determinations that particular dangerous goods are or are not too dangerous to transport, see the *Dangerous Goods Safety (General) Regulations 2007*.~~

18.—Determinations—packaging

- ~~— The Chief Officer may determine that —
 - ~~— (a) particular dangerous goods must not be or may be transported in or on the same transport unit as other goods, whether or not dangerous goods; or~~~~

~~———— (b) particular dangerous goods may or may not be transported in any packaging despite any prohibition or authorisation in the Dangerous Goods List.~~

~~19. Determinations — vehicles, routes, areas, times etc.~~

~~———— The Chief Officer may determine that particular dangerous goods may be or must or must not be transported —~~

~~———— (a) using a specified vehicle or kind of vehicle; or~~

~~———— (b) on a specified route; or~~

~~———— (c) in or through a specified area; or~~

~~———— (d) at a specified time; or~~

~~———— (e) in quantities in excess of a specified amount; or~~

~~———— (f) in specified packaging.~~

~~20. Determinations may be subject to conditions~~

~~———— (1) In making a determination, the Chief Officer may impose in relation to the determination any condition necessary for the safe transport of dangerous goods.~~

~~———— (2) A person to whom a determination applies must not contravene a condition of the determination.~~

~~———— Penalty: a fine of \$10 000.~~

~~21. Effect of determinations on contrary obligations under these regulations~~

~~———— If these regulations impose an obligation on a person, and the person is authorised or permitted to act contrary to that obligation by a determination, the obligation is to be read as if it stated that the person could fulfil the obligation by acting in accordance with the determination.~~

~~22. authorisation means —~~

~~———— (a) a dealer's licence; or~~

~~Offence to do any thing prohibited by a determination~~

~~———— If a determination prohibits the doing of any thing, a person to whom the determination applies must not do that thing.~~

~~———— Penalty: a fine of \$5 000.~~

~~23. Register of determinations~~

~~———— (1) The Chief Officer must keep a register of determinations.~~

~~———— (2) The register —~~

~~———— (a) may be part of a central register kept by the Chief Officer with the corresponding authorities; and~~

~~———— (b) may have separate divisions for different kinds of determinations.~~

~~———— (3) The Chief Officer must record in the register —~~

~~———— (a) each determination made under these regulations; and~~

~~———— (b) each corresponding determination.~~

~~———— (4) The Chief Officer must note in the register —~~

~~———— (a) any revocation of a determination; and~~

~~———— (b) a decision of CAP reversing a decision that a corresponding determination should have effect in all participating jurisdictions or participating jurisdictions including this State.~~

~~24. a yard manager's licence~~Records of determinations

~~———— The record of a determination in the register must include —~~

~~———— (a) the terms of the determination; or~~

~~———— (b) the following information —~~

~~———— (i) details of where in the *Gazette* the determination was notified or published;~~

~~———— (ii) the provision of these regulations, and of the ADG Code, to which the determination relates;~~

~~(iii) the dangerous goods, equipment, packaging,
vehicle or other thing to which the determination
relates.~~

**Division 7—Registers of determinations, exemptions,
approvals and licences**

~~25.~~ Registers

~~In this Division—~~

~~**register** means each of the following—~~

- ~~(a) the register of determinations kept under regulation 23;~~
- ~~(b) the part of the register kept under the Act section 23(8)
dealing with exemptions from compliance with these
regulations;~~
- ~~(c) the register of corresponding exemptions kept under
regulation 187;~~
- ~~(d) the register of approvals kept under regulation 202;~~
- ~~(e) the register of dangerous goods driver licences kept
under regulation 245(1);~~
- ~~(f) the register of dangerous goods vehicle licences kept
under regulation 245(2).~~

~~26.~~ Registers may be kept on computer

- ~~(1) A register, or part of a register, may be kept on a computer.~~
- ~~(2) An entry made on a computer for a register is taken to be a
record made in the register.~~

~~27.~~ Inspection of registers

- ~~(1) The Chief Officer must ensure that each register is available for
inspection by the corresponding authorities and the public.~~

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- ~~—(2) The Chief Officer is taken to comply with subregulation (1) in
respect of a register by ensuring that there is reasonable access
to—~~
- ~~—(a) copies of information in the register; or~~
- ~~—(b) a computer terminal to inspect the register.~~

Part 2—Key concepts

Division 1—Kinds of goods

28.——Dangerous goods

- (1) Subject to subregulations (2) and (3), for the purposes of these regulations, a substance or article is **dangerous goods** if —
 - (a) it satisfies the criteria set out, or referred to, in the ADG Code Part 2 for determining whether goods are dangerous goods; or
 - (b) a determination made under regulation 17(1)(a) that the substance or article is dangerous goods is in effect.
- (2) A substance or article that satisfies the criteria set out, or referred to, in the ADG Code Part 2 is not dangerous goods for the purposes of these regulations if —
 - (a) it is described as not subject to the ADG Code in a Special Provision in the ADG Code Chapter 3.3 that is applied to the substance or article by column 6 of the Dangerous Goods List; or
 - (b) a determination made under regulation 17(1)(a) that the substance or article is not dangerous goods is in effect.
- (3) Except for regulation 29, a substance or article is not dangerous goods for the purposes of these regulations if, under the ADG Code, it is within any of the following classes or divisions of dangerous goods —
 - (a) Class 1 (explosives);
 - (b) Division 6.2 (infectious substances);
 - (c) Class 7 (radioactive materials).

29.——UN Classes and UN Divisions of dangerous goods

- For the purposes of these regulations, the **UN Class** or **UN Division** of particular dangerous goods is —

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~~———— (a) if a determination made under regulation 17(1)(b) that the goods are of a particular UN Class or UN Division is in effect — the Class or Division specified in the determination; or~~

~~———— (b) if no such determination is in effect — the Class or Division determined for the goods in accordance with the ADG Code.~~

~~———— Note 1: Under the UN classification system there are 9 classes of dangerous goods. Under that system some Classes are further divided into Divisions and some Divisions are divided into Categories.~~

~~———— Note 2: Under the ADG Code, if particular dangerous goods are listed in the Dangerous Goods List, their UN Class or Division is that listed in column 3 of that list opposite the name and description of those goods, unless Chapter 3.3 of that Code provides for those goods to be assigned to a different Class or Division.~~

30. Subsidiary Risk

~~———— For the purposes of these regulations, the **Subsidiary Risk**, if any, of particular dangerous goods is —~~

~~———— (a) if a determination made under regulation 17(1)(e) that the goods have a particular Subsidiary Risk is in effect — the Subsidiary Risk specified in the determination; or~~

~~———— (b) if no such determination is in effect — the Subsidiary Risk determined for the goods in accordance with the ADG Code.~~

~~———— Note : Dangerous goods that are able to be assigned to more than one UN Class or UN Division are assigned a Subsidiary Risk. The Subsidiary Risk or Risks are the other UN Class or Classes or UN Division or Divisions to which the goods also belong. Under the ADG Code, if particular dangerous goods are listed in the Dangerous Goods List, their Subsidiary Risk, if any, is that listed in column 4 of that list opposite the name and description of those goods, unless Chapter 3.3 of that Code provides for those goods to be assigned a different Subsidiary Risk.~~

31. Packing Groups

~~For the purposes of these regulations, the **Packing Group**, if any, of particular dangerous goods is —~~

- ~~(a) if a determination made under regulation 17(1)(d) that the goods are of a particular Packing Group is in effect — the Packing Group specified in the determination; or~~
- ~~(b) if no such determination is in effect — the Packing Group determined for the goods in accordance with the ADG Code.~~

~~Note : The assignment of particular dangerous goods to a Packing Group indicates the degree of danger and the level of containment required for the goods. Only dangerous goods that are substances can be assigned to a Packing Group. The Packing Groups, and the degree of danger they indicate, are —~~

~~Packing Group I (substances presenting high danger);~~

~~Packing Group II (substances presenting medium danger);~~

~~Packing Group III (substances presenting low danger).~~

~~The Packing Group of a substance can be determined from the Dangerous Goods List, although in some cases it is also necessary to refer to the ADG Code Chapter 3.3.~~

32. Incompatibility

~~(1) Dangerous or other goods are **incompatible** with dangerous goods if —~~

- ~~(a) under the ADG Code Chapter 9.1, the goods are incompatible with the dangerous goods; or~~
- ~~(b) the goods are determined under regulation 17(1)(e) to be incompatible with the dangerous goods; or~~
- ~~(c) when the goods are mixed, or otherwise brought into contact, with the dangerous goods, the goods are likely to interact with the dangerous goods and increase risk to people, property or the environment because of the interaction.~~

- ~~— (2) Packaging or equipment for use in the transport of dangerous goods is **incompatible** with the goods if any component of the packaging or equipment that is intended or likely to come into contact with the goods during transport —~~
- ~~— (a) is likely to interact with the goods and increase risk to people, property or the environment because of the interaction; and~~
- ~~— (b) is not protected from contact under foreseeable circumstances by a protective coating or other effective means.~~

Division 2 Containers and loads

33. Bulk containers

- ~~— (1) A **bulk container** is a container (with or without a liner or coating) that —~~
 - ~~— (a) has a capacity of 1m³ or more; and~~
 - ~~— (b) is intended for the transport of solid dangerous goods that are in direct contact with the container.~~
- ~~— (2) None of the following is a bulk container, even if it has a capacity of 1m³ or more and is intended for the transport of solid dangerous goods —~~
 - ~~— (a) a large packaging that complies with the requirements of the ADG Code Chapter 6.6;~~
 - ~~— (b) an IBC;~~
 - ~~— (c) a tank;~~
 - ~~— (d) a tank vehicle;~~
 - ~~— (e) any other packaging that complies with the requirements of the ADG Code Chapter 6.1 or 6.3.~~

34. IBCs

- ~~— (1) An **IBC** or **intermediate bulk container** is a rigid or flexible portable packaging that —~~

- ~~_____ (a) is intended for the transport of dangerous goods; and~~
- ~~_____ (b) complies with the specifications in the ADG Code Chapter 6.5; and~~
- ~~_____ (c) has a capacity of not more than _____~~
 - ~~_____ (i) if the packaging is intended for the transport of solids of Packing Group I and is a composite container, fibreboard container, flexible container, wooden container or rigid plastics container — 1 500 L;~~
 - ~~_____ (ii) if the packaging is intended for the transport of solids of Packing Group I and is a metal container — 3 000 L;~~
 - ~~_____ (iii) if the packaging is intended for the transport of solids or liquids of Packing Group II and III — 3 000 L;~~
 - ~~_____ (iv) if the packaging is intended for the transport of any other dangerous goods — 3 000 L;~~
- ~~_____ and~~
- ~~_____ (d) is designed for mechanical handling.~~
- ~~— (2) Rigid or flexible portable packaging that complies with the requirements of the ADG Code Chapter 6.1, 6.3 or 6.6 is not an IBC.~~

35. _____ MEGCs

- ~~_____ An *MEGC* or *multiple-element gas container* is _____~~
- ~~_____ (a) a multimodal assembly of cylinders, tubes and bundles of cylinders that are interconnected by a manifold and assembled within a framework and are intended for the transport of gases; and~~
- ~~_____ (b) any service equipment and structural equipment necessary for the transport of gases in the cylinders and tubes.~~

36. Tanks

~~(1) A *tank* is~~

~~(a) a receptacle for receiving and holding dangerous goods;
and~~

~~(b) any service equipment and structural equipment that
enable the receptacle to transport those goods.~~

~~(2) A receptacle for receiving and holding dangerous goods of
UN Class 2 is not a tank unless it has a capacity of more than
450 L.~~

~~(3) None of the following is a tank~~

~~(a) packaging that complies with the requirements of the
ADG Code Chapter 6.1, 6.3 or 6.6;~~

~~(b) an IBC;~~

~~(c) an MEGC;~~

~~(d) a cylinder;~~

~~(e) a pressure drum;~~

~~(f) a tube;~~

~~(g) a bulk container that complies with the requirements of
the ADG Code Chapter 6.8.~~

37. Transport units

~~A *transport unit* is any of the following~~

~~(a) a vehicle;~~

~~(b) a portable tank;~~

~~(c) a bulk container;~~

~~(d) a freight container.~~

38. Loads

~~(1) For the purposes of these regulations, all the goods in or on a
transport unit are a single load, unless subregulation (2) applies.~~

- ~~— (2) In the case of a vehicle that is transporting more than one transport unit, the contents of each portable tank, bulk container or freight container being transported constitute a separate load.~~

Division 3 — Persons with special duties

39. — Vehicle owners

- ~~— A person is an **owner** of a vehicle if the person —~~
- ~~— (a) is the sole owner, a joint owner or a part owner of the vehicle; or~~
- ~~— (b) has possession or use of the vehicle under a credit, hire purchase, lease or other agreement, except an agreement requiring the vehicle to be registered in the name of someone else.~~

40. — Consignors

- ~~— (1) A person **consigns** dangerous goods or other goods for transport, and is the **consignor** of the goods, if —~~
- ~~— (a) subregulation (2) applies to the person; or~~
- ~~— (b) subregulation (2) does not apply to the person or anyone else, but subregulation (3) applies to the person; or~~
- ~~— (c) subregulations (2) and (3) do not apply to the person or anyone else, but subregulation (4) applies to the person.~~
- ~~— (2) This subregulation applies to a person who, with the person's authority, is named or otherwise identified in the transport documentation that complies with the ADG Code Chapter 11.1 as the consignor of the goods.~~
- ~~— (3) This subregulation applies to a person who —~~
- ~~— (a) engages a prime contractor or rail operator, either directly or through an agent or other intermediary, to transport the goods; or~~

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- ~~———— (b) if paragraph (a) does not apply — has possession of, or control over, the goods immediately before the goods are transported; or~~
- ~~———— (c) if neither paragraph (a) nor (b) applies — loads a vehicle with the goods, for transport, at a place —~~
 - ~~———— (i) where dangerous goods are awaiting collection; and~~
 - ~~———— (ii) that is unattended (except by the driver of the vehicle) during loading.~~
- ~~———— (4) This subregulation applies to a person if —~~
 - ~~———— (a) the goods are imported into Australia; and~~
 - ~~———— (b) the person is the importer of the goods.~~

41. — Packers

- ~~———— A person **packs** dangerous or other goods for transport, and is a **packer** of the goods, if the person —~~
 - ~~———— (a) puts the goods in a packaging; or~~
 - ~~———— (b) assembles packages into large packaging or an overpack; or~~
 - ~~———— (c) supervises an activity mentioned in paragraph (a) or (b); or~~
 - ~~———— (d) manages or controls an activity mentioned in paragraph (a), (b) or (c).~~

42. — Loaders

- ~~———— A person **loads** dangerous or other goods for transport, and is a **loader** of the goods, if the person —~~
 - ~~———— (a) loads the goods in or onto a vehicle; or~~
 - ~~———— (b) places or secures a portable tank, bulk container or freight container containing the goods for transport onto a vehicle; or~~

- ~~_____ (c) supervises an activity mentioned in paragraph (a) or (b);
or~~
- ~~_____ (d) manages or controls an activity mentioned in
paragraph (a), (b) or (c).~~

43. Prime contractors

- ~~_____ A person is the *prime contractor* for the transport of dangerous
or other goods by road if the person, in conducting a business
for or involving the transport of goods by road, undertakes to be
responsible, or is responsible, for the transport of the goods by
road.~~

44. Rail operators

- ~~_____ A person is a *rail operator* for the transport of dangerous or
other goods by rail if the person undertakes to be responsible, or
is responsible, for _____~~
- ~~_____ (a) the transport of the goods by rail; or~~
- ~~_____ (b) the condition of a unit of rolling stock transporting the
goods.~~

Division 4 — Miscellaneous

45. Dangerous goods packed in limited quantities

- ~~_____ Dangerous goods are *packed in limited quantities* if _____~~
- ~~_____ (a) the goods are packed in accordance with the ADG Code
Chapter 3.4; and~~
- ~~_____ (b) the quantity of dangerous goods in each inner packaging
or in each article that contains the goods does not exceed
the quantity specified, or referred to, in column 7 of the
Dangerous Goods List for those goods.~~

~~Part 3 — Transport of dangerous goods to which Special Provisions apply~~

~~46. — Application of this Part~~

~~———— This Part applies in relation to the transport of dangerous goods if column 6 of the Dangerous Goods List specifies that a Special Provision in the ADG Code Chapter 3.3 applies to the dangerous goods and that Special Provision imposes a restriction on the way the goods are to be transported by road or rail.~~

~~47. — Duty on consignors~~

~~———— A person must not consign dangerous goods for transport if the person knows, or ought reasonably to know, that —~~

~~———— (a) a Special Provision applies to the transport of the goods;
and~~

~~———— (b) the transport of the goods does not or will not comply with the Special Provision.~~

~~———— Penalty: a fine of \$10 000.~~

~~48. — Duty on prime contractors and rail operators~~

~~———— A prime contractor or rail operator must not transport dangerous goods if the prime contractor or rail operator knows, or ought reasonably to know, that —~~

~~———— (a) a Special Provision applies to the transport of the goods;
and~~

~~———— (b) the transport of the goods does not comply with the Special Provision.~~

~~———— Penalty: a fine of \$10 000.~~

~~49. Duty on drivers~~

~~— A person must not drive a road vehicle transporting dangerous goods if the person knows, or ought reasonably to know, that —~~

~~— (a) a Special Provision applies to the transport of the goods; and~~

~~— (b) the transport of the goods does not comply with the Special Provision.~~

~~— Penalty: a fine of \$5 000.~~

Part 4—Packaging

Division 1—General

50.——Packing of dangerous goods in limited quantities

—— Dangerous goods packed in limited quantities do not need to be packed as required by this Part.

51.——Packages and packaging

—— (1) A *package* of dangerous goods or other goods is the complete product of the packing of the goods for transport, and consists of the goods and their packaging.

—— (2) The *packaging* of dangerous goods or other goods is anything that contains, holds, protects or encloses the goods, whether directly or indirectly, to enable them to be received or held for transport or to be transported.

—— Note: Packaging includes inner packaging, outer packaging and composite packaging, overpacks and large packagings; IBCs; MEGCs; tanks (including the tanks on tank vehicles); bulk containers; freight containers; drums; barrels; jerry cans; boxes and bags.

~~52.~~ References to ADG Code Part 4 include Dangerous Goods List requirements

—— In this Part, a reference to dangerous goods being packed in accordance with any relevant provision in the ADG Code Part 4 is to be taken to include a reference to the goods being packed in accordance with any packing requirement specified in relation to the goods in the Dangerous Goods List.

Division 2—Suitability and design of packaging

53.——Suitability of packaging for transport

—— Packaging is unsuitable for the transport of dangerous goods if——

- ~~—— (a) it is required to undergo performance tests under the ADG Code Part 6 and it is not approved packaging; or~~
- ~~—— (b) it has not been manufactured as required by the ADG Code Part 6; or~~
- ~~—— (c) it has not been maintained as required by the ADG Code Part 4; or~~
- ~~—— (d) its use for the transport of the goods is prohibited by a determination; or~~
- ~~—— (e) it is incompatible with the goods; or~~
- ~~—— (f) it is damaged or defective to the extent that it is not safe to use to transport the goods.~~

54. ~~Marking packaging~~

- ~~—— (1) A person must not apply any marking required by the ADG Code Part 6 on packaging if the packaging is not of a design that is approved under regulation 56.~~
- ~~—— (2) A person must not apply a marking mentioned in the ADG Code Part 6 on packaging that is not appropriate for the packaging.~~
- ~~—— Penalty: a fine of \$10 000.~~

55. ~~Applications for approval of packaging designs~~

- ~~—— (1) This regulation applies to packaging that is required to undergo performance tests under the ADG Code Part 6.~~
- ~~—— (2) A person may apply to the Chief Officer for the approval of a design for a packaging to which this regulation applies for use in the transport of dangerous goods.~~
- ~~—— (3) An application for approval must include the information required under the ADG Code Part 6.~~

56. Approvals packaging designs

- ~~(1) The Chief Officer may, on an application made in accordance with regulations 55 and 194, approve a design for a packaging for use in the transport of dangerous goods if—
 - ~~(a) the design complies with, or is permitted by, the ADG Code Part 6; and~~
 - ~~(b) the Chief Officer is satisfied that packaging of that design satisfies all the relevant testing and inspection requirements set out in that Part.~~~~
- ~~(2) If approval is sought for the design for a tank or an IBC that is pressure equipment of a kind the design of which must be registered under the Occupational Safety and Health Regulations 1996 regulation 4.2, the Chief Officer must not approve the design unless the design has been so registered.~~
- ~~(3) In giving his or her approval, the Chief Officer may impose in relation to the approval any condition that—
 - ~~(a) is about the construction, packing, maintenance or use of packaging manufactured in accordance with the design; and~~
 - ~~(b) is necessary for the safe use of the packaging to transport dangerous goods.~~~~
- ~~(4) A person must not construct, pack or fail to maintain packaging for use in the transport of dangerous goods or use packaging to transport dangerous goods if the person knows, or ought reasonably to know, that—
 - ~~(a) a condition about the construction, packing, maintenance or use of the packaging, as the case requires, was imposed in relation to the approval of the design for the packaging; and~~
 - ~~(b) the construction, packing, failure to maintain or use is in contravention of the condition.~~~~
- ~~Penalty: a fine of \$10 000.~~

57. — Recognised testing facilities

- For the purposes of these regulations, the following testing facilities are *recognised testing facilities* for packaging of a particular design —
- (a) — a testing facility registered by NATA to conduct performance tests required under the ADG Code Part 6 for the design;
- (b) — if NATA has not registered a testing facility to conduct performance tests of that kind — a testing facility in Australia capable of conducting the tests;
- (c) — a facility in a foreign country approved by a public authority of the country to conduct performance tests of that kind.

58. — Test certificates

- (1) — A recognised testing facility may certify in writing that packaging of a particular design has passed particular performance tests for particular dangerous goods.
- (2) — If a performance test is conducted by a testing facility registered by NATA, any test certificate, or report on the test, must —
- (a) — contain any details required under the relevant Chapter of Part 6 of the ADG Code; and
- (b) — be in the appropriate form used by NATA registered testing facilities.
- (3) — If a performance test is conducted in Australia by a recognised testing facility that is not registered by NATA —
- (a) — the test must be observed by or for the Chief Officer; and
- (b) — any test certificate or report must contain any details required under the relevant Chapter of Part 6 of the ADG Code.

~~59. Approvals overpacks~~

- ~~— (1) The Chief Officer may, on an application made in accordance with regulation 194, approve a method of preparing an overpack for transporting dangerous goods that does not comply with the ADG Code section 5.1.2 if the Chief Officer considers that the risk involved in using the method is not greater than the risk involved in using a method that complies with the section.~~
- ~~— (2) In giving his or her approval, the Chief Officer may impose in relation to the approval any condition that is about the use of the overpack and is necessary for the safe use of the overpack to transport dangerous goods.~~
- ~~— (3) A person must not use an overpack to transport dangerous goods if the person knows, or ought reasonably to know, that —~~
 - ~~— (a) a condition about the use of the overpack was imposed in relation to the approval of the method of preparing the overpack; and~~
 - ~~— (b) the use is in contravention of the condition.~~
- ~~— Penalty: a fine of \$10 000.~~

~~60. Authorised bodies may give approvals~~

- ~~— (1) The Chief Officer may, on an application made in accordance with regulation 194, authorise a body or any other person to give approvals under regulations 56 and 59.~~
- ~~— (2) In giving his or her authorisation, the Chief Officer may impose in relation to the authorisation any condition that the Chief Officer considers appropriate in relation to the giving of approvals by the body or other person.~~
- ~~— (3) In giving an approval, the body or other person must also, in addition to complying with any condition imposed under subregulation (2) —~~

-
- ~~———— (a) ———— comply with any relevant requirements imposed under the ADG Code Part 6 in relation to the giving of the approval; and~~
- ~~———— (b) ———— give to the Chief Officer, in relation to the approval, all of the information required under regulation 203(a) and (b) to be included in the register of approvals.~~
- ~~———— (4) ———— If a body or any other person is authorised under this regulation to give approvals ————~~
- ~~———— (a) ———— regulation 55 and regulations 56 and 59 (or regulation 56 or 59 as the case requires) apply, in relation to the giving of approvals by the body or other person, as if a reference in those regulations to the Chief Officer were a reference to the body or other person; and~~
- ~~———— (b) ———— Part 16 Divisions 1 and 4, to the extent that they deal with approvals, apply, in relation to the giving of approvals by the body or other person, as if a reference in those Divisions to the Chief Officer were a reference to the body or other person; and~~
- ~~———— (c) ———— a reference in these regulations to an approval given under regulation 56 or 59 includes a reference to an approval given by the body or other person under regulation 56 or 59 as applied under paragraph (a).~~
- ~~———— (5) ———— The Chief Officer may at any time withdraw an authorisation given under this regulation.~~
- ~~———— (6) ———— The withdrawal of an authorisation does not affect any approval given by the body or other person before the withdrawal.~~

**~~Division 3 — Prohibition on the sale or supply of
non-compliant packaging~~**

~~61. — Offence to sell or supply non-compliant packaging~~

- ~~———— (1) ———— A person must not sell, supply or offer to sell or supply any packaging for use in the transport of dangerous goods if it does~~

~~not comply with the requirements of the ADG Code Parts 4 and 6 or Chapter 3.4.~~

- ~~— (2) A person must not sell, supply or offer to sell or supply any packaging for use in the transport of dangerous goods that is marked in accordance with the ADG Code Part 6 unless the packaging conforms with a design that is approved under regulation 56.~~

~~— Penalty: a fine of \$10 000.~~

~~Division 4 — Offences relating to IBCs and certain other packaging~~

~~Subdivision 1 — Offences relating to IBCs~~

~~62. — Duty on consignors~~

- ~~— (1) A person must not consign dangerous goods for transport in an IBC provided by the person if the IBC —~~

~~— (a) is unsuitable for the transport of the goods; or~~

~~— (b) has not been packed in accordance with any relevant provision in the ADG Code Part 4.~~

- ~~— (2) A person must not consign dangerous goods for transport in an IBC provided by someone else if the person knows, or ought reasonably to know, that the IBC —~~

~~— (a) is unsuitable for the transport of the goods; or~~

~~— (b) has not been packed in accordance with any relevant provision in the ADG Code Part 4.~~

~~— Penalty: a fine of \$ 10 000.~~

~~63. — Duty on loaders~~

~~— A person must not load dangerous goods in an IBC for transport if the person knows, or ought reasonably to know, that the IBC —~~

~~— (a) is unsuitable for the transport of the goods; or~~

~~———— (b) has not been packed in accordance with any relevant provision in the ADG Code Part 4.~~

~~———— Penalty: a fine of \$5 000.~~

64. Duty on prime contractors and rail operators

~~———— A prime contractor or rail operator must not transport dangerous goods in an IBC if the prime contractor or rail operator knows, or ought reasonably to know, that the IBC —~~

~~———— (a) is unsuitable for the transport of the goods; or~~

~~———— (b) has not been packed or loaded in accordance with any relevant provision in the ADG Code Part 4.~~

~~———— Penalty: a fine of \$10 000.~~

~~65.~~ **Duty on drivers**

~~———— A person must not drive a road vehicle transporting dangerous goods in an IBC if the person knows, or ought reasonably to know, that the IBC —~~

~~———— (a) is unsuitable for the transport of the goods; or~~

~~———— (b) has not been packed or loaded in accordance with any relevant provision in the ADG Code Part 4.~~

~~———— Penalty: a fine of \$5 000.~~

Subdivision 2 — Offences relating to other packaging

66. Meaning of “other packaging” in this Subdivision

~~———— In this Subdivision —~~

~~———— **other packaging** means all packaging other than IBCs, MEGCs, portable tanks, bulk containers, freight containers, tanks on tank vehicles and overpacks.~~

67. Duty on consignors

~~A person must not consign dangerous goods for transport in any other packaging if the person knows, or ought reasonably to know, that the packaging—~~

~~(a) is unsuitable for the transport of the goods; or~~

~~(b) has not been packed in accordance with any relevant provision in the ADG Code Part 4.~~

~~Penalty: a fine of \$5 000.~~

68. Duty on packers

~~(1) A person must not pack dangerous goods for transport in any other packaging if the person knows, or ought reasonably to know, that the packaging is unsuitable for the transport of the goods.~~

~~(2) A person must not pack dangerous goods for transport in any other packaging in a way that the person knows, or ought reasonably to know, does not comply with any relevant provision of the ADG Code Part 4.~~

~~Penalty: a fine of \$5 000.~~

69. Duty on loaders

~~A person must not load dangerous goods in any other packaging for transport if the person knows, or ought reasonably to know, that the packaging is damaged or defective to the extent that it is not safe to use to transport the goods.~~

~~Penalty: a fine of \$5 000.~~

70. Duty on prime contractors and rail operators

~~A prime contractor or rail operator must not transport dangerous goods in any other packaging if the prime contractor or rail operator knows, or ought reasonably to know, that the packaging is damaged or defective to the extent that it is not safe to use to transport the goods.~~

~~Penalty: a fine of \$3 000.~~

71. ~~Duty on drivers~~

~~A person must not drive a road vehicle transporting dangerous goods in any other packaging if the person knows, or ought reasonably to know, that the packaging is damaged or defective to the extent that it is not safe to use to transport the goods by road.~~

~~Penalty: a fine of \$3 000.~~

Division 5 ~~Offences relating to MEGCs and portable tanks~~

Subdivision 1 ~~Manufacturers and owners~~

72. ~~Duty on manufacturers — compliance plates~~

~~A person who manufactures an MEGC or a portable tank for use in the transport of dangerous goods must attach a compliance plate to the MEGC or the tank in accordance with the ADG Code Chapter 6.7.~~

~~Penalty: a fine of \$10 000.~~

73. ~~Duty on owners~~

~~The owner of an MEGC or a portable tank must not use the MEGC or the portable tank, or permit the MEGC or the portable tank to be used, to transport dangerous goods if the MEGC or the portable tank —~~

- ~~(a) is unsuitable for the transport of the goods; or~~
- ~~(b) has not been packed or loaded in accordance with any relevant provision in the ADG Code Part 4.~~

~~Penalty: a fine of \$10 000.~~

Subdivision 2—Other offences relating to MEGCs

~~74.~~ Duty on consignors

~~— A person must not consign dangerous goods for transport in an MEGC if the MEGC—~~

~~— (a) is unsuitable for the transport of the goods; or~~

~~— (b) has not been packed in accordance with any relevant provision in the ADG Code Part 4.~~

~~— Penalty: a fine of \$10 000.~~

~~75.~~ Duty on loaders

~~— A person must not load dangerous goods in an MEGC for transport if the person knows, or ought reasonably to know, that the MEGC is unsuitable for the transport of the goods.~~

~~— Penalty: a fine of \$5 000.~~

~~76.~~ Duty on prime contractors and rail operators

~~— A prime contractor or rail operator must not transport dangerous goods in an MEGC if the prime contractor or rail operator knows, or ought reasonably to know, that the MEGC is damaged or defective to the extent that it is not safe to use to transport the goods.~~

~~Penalty: a fine of \$10 000.~~

~~77.~~ Duty on drivers

~~— A person must not drive a road vehicle transporting dangerous goods in an MEGC if the person knows, or ought reasonably to know, that the MEGC is damaged or defective to the extent that it is not safe to use to transport the goods by road.~~

~~— Penalty: a fine of \$5 000.~~

Subdivision 3—Other offences relating to portable tanks

78.—Duty on consignors

~~— A person must not consign dangerous goods for transport in a portable tank if the tank—~~

~~— (a) is unsuitable for the transport of the goods; or~~

~~— (b) has not been packed in accordance with any relevant provision in the ADG Code Part 4.~~

~~— Penalty: a fine of \$10 000.~~

79.—Duty on packers

~~— (1) A person must not pack dangerous goods for transport in a portable tank if the tank is unsuitable for the transport of the goods.~~

~~— (2) A person must not pack dangerous goods for transport in a portable tank in a way that does not comply with any relevant provision in the ADG Code Part 4.~~

~~— Penalty: a fine of \$5 000.~~

80.—Duty on loaders

~~— A person must not load dangerous goods in a portable tank for transport if the person knows, or ought reasonably to know, that the tank—~~

~~— (a) is unsuitable for the transport of the goods; or~~

~~— (b) has not been packed in accordance with any relevant provision in the ADG Code Part 4.~~

~~— Penalty: a fine of \$5 000.~~

81.—Duty on prime contractors and rail operators

~~— (1) A prime contractor or rail operator must not transport dangerous goods in a portable tank provided by the prime contractor or rail operator if the tank—~~

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- ~~———— (a) is unsuitable for the transport of the goods; or~~
- ~~———— (b) has not been packed or loaded in accordance with any relevant provision in the ADG Code Part 4.~~
- ~~———— (2) A prime contractor or rail operator must not transport dangerous goods in a portable tank provided by someone else if the prime contractor or rail operator knows, or ought reasonably to know, that the tank —~~
- ~~———— (a) is unsuitable for the transport of the goods; or~~
- ~~———— (b) has not been packed or loaded in accordance with any relevant provision in the ADG Code Part 4.~~
- ~~———— Penalty: a fine of \$10 000.~~

82. Duty on drivers

- ~~———— A person must not drive a road vehicle transporting dangerous goods in a portable tank if the person knows, or ought reasonably to know, that the tank —~~
- ~~———— (a) is unsuitable for the transport of the goods; or~~
- ~~———— (b) has not been packed or loaded in accordance with any relevant provision in the ADG Code Part 4.~~
- ~~———— Penalty: a fine of \$5 000.~~

Division 6 — Offences relating to bulk containers

83. Application of this Division to certain freight containers

- ~~———— With respect to freight containers, this Division only applies to a freight container that is used as a bulk container.~~

84. Suitability of freight containers as bulk containers

- ~~———— A freight container is unsuitable for use as a bulk container for the transport of dangerous goods if —~~
- ~~———— (a) it is unsuitable as packaging for the transport of the dangerous goods (as determined under regulation 53); or~~

- ~~—— (b) it does not have affixed to it a Safety Approval Plate as required under the *International Convention for Safe Containers 1972* published by the International Maritime Organisation; or~~
- ~~—— (c) it does not comply with any relevant standard imposed under the ADG Code Part 4.~~

85. Duty on consignors

- ~~—— A person must not consign dangerous goods for transport in a bulk container if the container——~~
- ~~—— (a) is unsuitable for the transport of the goods; or~~
- ~~—— (b) has not been packed in accordance with any relevant provision in the ADG Code Part 4.~~
- ~~—— Penalty: a fine of \$10 000.~~

86. Duty on packers

- ~~—— (1) A person must not pack dangerous goods for transport in a bulk container if the person knows, or ought reasonably to know, that the container is unsuitable for the transport of the goods.~~
- ~~—— (2) A person must not pack dangerous goods for transport in a bulk container in a way that does not comply with any relevant provision in the ADG Code Part 4.~~
- ~~—— Penalty: a fine of \$5 000.~~

87. Duty on loaders

- ~~—— A person must not load dangerous goods in a bulk container for transport if the person knows, or ought reasonably to know, that the container——~~
- ~~—— (a) is unsuitable for the transport of the goods; or~~
- ~~—— (b) has not been packed in accordance with any relevant provision in the ADG Code Part 4.~~
- ~~—— Penalty: a fine of \$5 000.~~

~~88. Duty on prime contractors and rail operators~~

- ~~(1) A prime contractor or rail operator must not transport dangerous goods in a bulk container provided by the prime contractor or rail operator if the container —~~
- ~~(a) is unsuitable for the transport of the goods; or~~
 - ~~(b) has not been packed or loaded in accordance with any relevant provision in the ADG Code Part 4.~~
- ~~(2) A prime contractor or rail operator must not transport dangerous goods in a bulk container provided by someone else if the prime contractor or rail operator knows, or ought reasonably to know, that the container —~~
- ~~(a) is unsuitable for the transport of the goods; or~~
 - ~~(b) has not been packed or loaded in accordance with any relevant provision in the ADG Code Part 4.~~
- ~~Penalty: a fine of \$10 000.~~

~~89. Duty on drivers~~

- ~~A person must not drive a road vehicle transporting dangerous goods in a bulk container if the person knows, or ought reasonably to know, that the container —~~
- ~~(a) is unsuitable for the transport of the goods; or~~
 - ~~(b) has not been packed or loaded in accordance with any relevant provision in the ADG Code Part 4; or~~
 - ~~(c) is not restrained in accordance with the ADG Code section 8.2.1.~~
- ~~Penalty: a fine of \$10 000.~~

Division 7 — Offences relating to freight containers

~~90. Application of this Division~~

- ~~This Division does not apply to a freight container that is being used as a bulk container.~~

91. Suitability of freight containers

- ~~For the purposes of this Division, a freight container is unsuitable for the transport of dangerous goods if—~~
- ~~(a) it is damaged or defective to the extent that it is not safe to use to transport the goods; or~~
 - ~~(b) it does not comply with any relevant standard imposed under the ADG Code Part 4.~~

92. Duty on consignors

- ~~(1) A person must not consign dangerous goods for transport in a freight container provided by the person if the container—~~
 - ~~(a) is unsuitable for the transport of the goods; or~~
 - ~~(b) has not been maintained in accordance with any relevant provision in the ADG Code.~~
 - ~~(2) A person must not consign dangerous goods for transport in a freight container provided by someone else if the person knows, or ought reasonably to know, that the container—~~
 - ~~(a) is unsuitable for the transport of the goods; or~~
 - ~~(b) has not been maintained in accordance with any relevant provision in the ADG Code.~~
- ~~Penalty: a fine of \$10 000.~~

93. Duty on loaders

- ~~A person must not load dangerous goods in a freight container for transport if the person knows, or ought reasonably to know, that the container is unsuitable for the transport of the goods.~~
- ~~Penalty: a fine of \$5 000.~~

94. Duty on prime contractors and rail operators

- ~~(1) A prime contractor or rail operator must not transport dangerous goods in a freight container provided by the prime contractor or rail operator if the container—~~

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Division 7 Offences relating to freight containers

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- ~~———— (a) is unsuitable for the transport of the goods; or~~
- ~~———— (b) has not been maintained in accordance with any relevant provision in the ADG Code; or~~
- ~~———— (c) is not restrained in accordance with the ADG Code section 8.2.1.~~
- ~~———— (2) A prime contractor or rail operator must not transport dangerous goods in a freight container provided by someone else if the prime contractor or rail operator knows, or ought reasonably to know, that the container —~~
 - ~~———— (a) is unsuitable for the transport of the goods; or~~
 - ~~———— (b) has not been maintained in accordance with any relevant provision in the ADG Code; or~~
 - ~~———— (c) is not restrained in accordance with the ADG Code section 8.2.1.~~
- ~~———— Penalty: a fine of \$10 000.~~

95. Duty on drivers

- ~~———— A person must not drive a road vehicle transporting dangerous goods in a freight container if the person knows, or ought reasonably to know, that the container —~~
 - ~~———— (a) is unsuitable for the transport of the goods; or~~
 - ~~———— (b) has not been packed or loaded in accordance with any relevant provision in the ADG Code Part 4; or~~
 - ~~———— (c) is not restrained in accordance with the ADG Code section 8.2.1.~~
- ~~———— Penalty: a fine of \$5 000.~~

~~Division 8 — Offences relating to tank vehicles and tanks on such vehicles~~

~~96. — Duty on manufacturers — compliance plates~~

~~— A person who manufactures a tank vehicle for use in the transport of dangerous goods must attach a compliance plate to the vehicle in accordance with the ADG Code section 6.9.2.2.~~

~~— Penalty: a fine of \$10 000.~~

~~97. — Duty on consignors~~

~~— (1) A person must not consign dangerous goods for transport in a tank vehicle provided by the person if any tank on the vehicle in which the goods are to be put —~~

~~— (a) is unsuitable for the transport of the goods; or~~

~~— (b) has not been packed in accordance with any relevant provision in the ADG Code Part 4.~~

~~— (2) A person must not consign dangerous goods for transport in a tank vehicle provided by someone else if the person knows, or ought reasonably to know, that any tank on the vehicle in which the goods are to be put —~~

~~— (a) is unsuitable for the transport of the goods; or~~

~~— (b) has not been packed in accordance with any relevant provision in the ADG Code Part 4.~~

~~— Penalty: a fine of \$10 000.~~

~~98. — Duty on packers~~

~~— (1) A person must not pack dangerous goods for transport in a tank on a tank vehicle if the person knows, or ought reasonably to know, that the tank is unsuitable for the transport of the goods.~~

~~— (2) A person must not pack dangerous goods for transport in a tank on a tank vehicle in a way that the person knows, or ought~~

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~~reasonably to know, does not comply with any relevant
provision in the ADG Code Part 4.~~

~~Penalty: a fine of \$5 000.~~

99. Duty on prime contractors and rail operators

~~(1) A prime contractor or rail operator must not transport dangerous
goods in a tank vehicle provided by the prime contractor or rail
operator if any tank on the vehicle in which the goods have been
put —~~

~~(a) is unsuitable for the transport of the goods; or~~

~~(b) has not been packed in accordance with any relevant
provision in the ADG Code Part 4.~~

~~(2) A prime contractor or rail operator must not transport dangerous
goods in a tank vehicle provided by someone else if the prime
contractor or rail operator knows, or ought reasonably to know,
that any tank on the vehicle in which the goods have been
put —~~

~~(a) is unsuitable for the transport of the goods; or~~

~~(b) has not been packed in accordance with any relevant
provision in the ADG Code Part 4.~~

~~Penalty: a fine of \$10 000.~~

~~100. (c) a salesperson's licence; or~~

~~(d) Duty on drivers~~

~~A person must not drive a road tank vehicle transporting
dangerous goods if the person knows, or ought reasonably to
know, that any tank on the vehicle in which the goods have been
put —~~

~~(a) is unsuitable for the transport of the goods; or~~

~~(b) has not been packed in accordance with any relevant
provision in the ADG Code Part 4.~~

~~Penalty: a fine of \$5 000.~~

~~Division 9—Offences relating to overpacks~~

~~101.—Duty on consignors~~

~~———— A person must not consign dangerous goods for transport in an overpack if —~~

~~———— (a) — the packages to be included in the overpack cannot be transported safely in the overpack; or~~

~~———— (b) — the preparation of the overpack does not comply with either —~~

~~———— (i) — the ADG Code section 5.1.2; or~~

~~———— (ii) — an approval given under regulation 59.~~

~~———— Penalty: a fine of \$5 000.~~

~~102.—Duty on packers~~

~~———— A person must not pack dangerous goods for transport in an overpack if the person knows, or ought reasonably to know, that —~~

~~———— (a) — the packages to be included in the overpack cannot be transported safely in the overpack; or~~

~~———— (b) — the preparation of the overpack does not comply with either —~~

~~———— (i) — the ADG Code section 5.1.2; or~~

~~———— (ii) — an approval given under regulation 59.~~

~~———— Penalty: a fine of \$5 000.~~

~~103.—Duty on loaders~~

~~———— A person must not load dangerous goods in an overpack for transport if the person knows, or ought reasonably to know, that —~~

~~———— (a) — the packages within the overpack cannot be transported safely in the overpack; or~~

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~~_____ (b) the preparation of the overpack does not comply with
either _____~~

~~_____ (i) the ADG Code section 5.1.2; or~~

~~_____ (ii) an approval given under regulation 59.~~

~~_____ Penalty: a fine of \$5 000.~~

~~104. Duty on prime contractors and rail operators~~

~~_____ A prime contractor or rail operator must not transport dangerous
goods in an overpack if the prime contractor or rail operator
knows, or ought reasonably to know, that _____~~

~~_____ (a) the packages within the overpack cannot be transported
safely in the overpack; or~~

~~_____ (b) the preparation of the overpack does not comply with
either _____~~

~~_____ (i) the ADG Code section 5.1.2; or~~

~~_____ (ii) an approval given under regulation 59.~~

~~_____ Penalty: a fine of \$5 000.~~

~~105. Duty on drivers~~

~~_____ A person must not drive a road vehicle transporting dangerous
goods in an overpack if the person knows, or ought reasonably
to know, that the packages within the overpack cannot be
transported safely in the overpack.~~

~~_____ Penalty: a fine of \$5 000.~~

Part 5—Consignment procedures

Division 1—Marking and labelling

106.—Meaning of “appropriately marked”

- (1) A package of dangerous goods (other than an IBC, MEGC, pressure drum, tube, or demountable tank with a capacity of more than 500 L or kgs or an overpack) is ***appropriately marked*** if the package is marked and labelled in accordance with the ADG Code Chapter 5.2.
- (2) An IBC, MEGC, pressure drum, tube or demountable tank with a capacity of more than 500 L or kgs is ***appropriately marked*** if—
 - (a) it is marked and labelled in accordance with the ADG Code Chapter 5.2; and
 - (b) it is placarded in accordance with the ADG Code section 5.3.3.
- (3) An overpack is ***appropriately marked*** if it is marked and labelled in accordance with the ADG Code section 5.1.2.
- (4) A package of dangerous goods packed in limited quantities is also ***appropriately marked*** if it is marked and labelled in accordance with the ADG Code Chapter 3.4.
- (5) A package of dangerous goods that is to be transported as a retail distribution load in accordance with the ADG Code Chapter 7.3 is also ***appropriately marked*** if it is marked and labelled in accordance with that Chapter.

107.—Duty on consignors

- (1) A person must not consign dangerous goods for transport in a package if the package is not appropriately marked.

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Division 1 Marking and labelling

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- ~~— (2) — A person must not consign dangerous goods for transport in a package if a marking or label on the package about its contents is false or misleading in a material particular.~~
- ~~— (3) — A person must not consign goods for transport in a package that does not contain dangerous goods but is marked or labelled as if it contained dangerous goods.~~
- ~~———— Penalty:~~
- ~~———— (a) — for large packaging or overpack — a fine of \$5 000;~~
- ~~———— (b) — in any other case — a fine of \$1 500.~~

108. — Duty on packers

- ~~— (1) — A person must not pack dangerous goods for transport if the person knows, or ought reasonably to know, that any of the packaging to be used to transport the goods is not appropriately marked.~~
- ~~— (2) — A person who packs dangerous goods for transport in a package must not mark or label the package with a marking or label about its contents that the person knows, or ought reasonably to know, is false or misleading in a material particular.~~
- ~~— (3) — A person who packs goods for transport in a package must not mark or label the package as if it contained dangerous goods if the person knows, or ought reasonably to know, that it does not contain dangerous goods.~~
- ~~———— Penalty:~~
- ~~———— (a) — for large packaging or overpack — a fine of \$5 000;~~
- ~~———— (b) — in any other case — a fine of \$1 500.~~

109. — Duty on prime contractors and rail operators

- ~~— (1) — A prime contractor or rail operator must not transport goods in a package if the prime contractor or rail operator knows, or ought reasonably to know, that —~~
- ~~———— (a) — the goods are dangerous goods; and~~

- ~~_____ (b) the package is not appropriately marked.~~
- ~~_____ (2) A prime contractor or rail operator must not transport dangerous goods in a package if the prime contractor or rail operator knows, or ought reasonably to know, that a marking or label on the package about its contents is false or misleading in a material particular.~~
- ~~_____ (3) A prime contractor or rail operator must not transport goods in a package that is marked or labelled as if it contained dangerous goods if the prime contractor or rail operator knows, or ought reasonably to know, that the package does not contain dangerous goods.~~
- ~~_____ Penalty:~~
- ~~_____ (a) for large packaging or overpack a fine of \$5 000;~~
- ~~_____ (b) in any other case a fine of \$1 500.~~

Division 2 — Placarding

110. — When loads must be placarded

- ~~_____ (1) Except as provided in subregulation (2), a load of dangerous goods must be placarded if —~~
- ~~_____ (a) it contains dangerous goods in a receptacle with —~~
- ~~_____ (i) a capacity of more than 500 L; or~~
- ~~_____ (ii) a net mass of more than 500 kgs;~~
- ~~_____ or~~
- ~~_____ (b) it contains an aggregate quantity of dangerous goods of 250 or more and those goods include —~~
- ~~_____ (i) dangerous goods of UN Division 2.1 (other than aerosols); or~~
- ~~_____ (ii) dangerous goods of UN Division 2.3; or~~
- ~~_____ (iii) dangerous goods of Packing Group I;~~
- ~~_____ or~~

~~—— (c) it contains an aggregate quantity of dangerous goods of 1000 or more.~~

~~—— (2) A retail distribution load that complies with the ADG Code Chapter 7.3 is not a load that must be placarded.~~

~~111.~~ Meaning of “placard” and “appropriately placarded”

~~—— (1) A person **placards** a load of dangerous goods if the person affixes, stencils, prints or places a label (as defined in the ADG Code) or an emergency information panel (as defined in the ADG Code section 5.3.1.3) in relation to the load on anything that is being, or that is to be, used to transport the load.~~

~~—— (2) A placard load is “**appropriately placarded**” if it is placarded in accordance with the ADG Code Chapter 5.3.~~

~~112.~~ Duty on consignors

~~—— (1) A person must not consign a placard load for transport if the load is not appropriately placarded.~~

~~—— (2) A person must not consign a placard load for transport if the placarding of the load is false or misleading in a material particular.~~

~~—— (3) A person must not consign goods for transport in or on a transport unit that does not contain dangerous goods but is placarded as if it were a placard load.~~

~~—— Penalty: a fine of \$10 000.~~

~~113.~~ Duty on loaders

~~—— (1) A person who loads dangerous goods for transport must ensure that the load is appropriately placarded if the person knows, or ought reasonably to know, that the goods are a placard load.~~

~~—— (2) A person who loads a placard load for transport must not placard the load with placarding that the person knows, or ought~~

~~reasonably to know, is false or misleading in a material particular.~~

- ~~— (3) — A person who loads goods for transport must not placard the load as if it were a placard load if the person knows, or ought reasonably to know, that the load does not contain dangerous goods.~~

~~————— Penalty: a fine of \$10 000.~~

114. — Duty on prime contractors and rail operators

- ~~— (1) — A prime contractor or rail operator must not transport dangerous goods if the prime contractor or rail operator knows, or ought reasonably to know, that —~~

~~————— (a) — the goods are a placard load; and~~

~~————— (b) — the load is not appropriately placarded.~~

- ~~— (2) — A prime contractor or rail operator must not transport a placard load if the prime contractor or rail operator knows, or ought reasonably to know, that the placarding of the load is false or misleading in a material particular.~~

- ~~— (3) — A prime contractor or rail operator must not use, or permit to be used, a transport unit that is placarded as if it were a placard load if the prime contractor or rail operator knows, or ought reasonably to know, that the transport unit does not contain dangerous goods.~~

~~————— Penalty: a fine of \$10 000.~~

115. — Duty on drivers

- ~~— (1) — A person must not drive a road vehicle transporting dangerous goods if the person knows, or ought reasonably to know, that —~~

~~————— (a) — the goods are a placard load; and~~

~~————— (b) — the load is not appropriately placarded.~~

- ~~— (2) — A person must not drive a road vehicle transporting a placard load if the person knows, or ought reasonably to know, that the~~

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~~placarding of the load is false or misleading in a material particular.~~

~~—(3)— A person must not drive a road vehicle that is, or that incorporates, a transport unit that is placarded as if it were a placard load if the person knows, or ought reasonably to know, that the vehicle does not contain dangerous goods.~~

~~—Penalty: a fine of \$10 000.~~

~~Part 6 — Safety standards for vehicles and equipment~~

~~116. — Duty on owners~~

~~———— The owner of a vehicle must not use the vehicle, or permit it to be used, to transport dangerous goods if the vehicle or its equipment does not comply with the ADG Code Chapters 4.4 and 6.9.~~

~~———— Penalty: a fine of \$10 000.~~

~~117. — Duty on consignors~~

~~———— A person must not consign dangerous goods for transport in or on a vehicle if the person knows, or ought reasonably to know, that the vehicle or its equipment does not comply with the ADG Code Chapters 4.4 and 6.9.~~

~~———— Penalty: a fine of \$10 000.~~

~~118. — Duty on loaders~~

~~———— A person must not load dangerous goods for transport in or onto a vehicle if the person knows, or ought reasonably to know, that the vehicle or its equipment does not comply with the ADG Code Chapters 4.4 and 6.9.~~

~~———— Penalty: a fine of \$10 000.~~

~~119. — Duties on prime contractors and rail operators~~

~~———— A prime contractor or rail operator must not use a vehicle to transport dangerous goods if the vehicle or its equipment does not comply with the ADG Code Chapters 4.4 and 6.9.~~

~~———— Penalty: a fine of \$10 000.~~

~~120. — Duty on drivers~~

~~———— A person must not drive a road vehicle transporting dangerous goods if the person knows, or ought reasonably to know, that~~

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~~the road vehicle or its equipment does not comply with the
ADG Code Chapters 4.4 and 6.9.~~

~~Penalty: a fine of \$10 000.~~

**~~Part 7—Transport operations relating to self-reactive
substances, organic peroxides and certain other
substances~~**

~~121.—Application of Part~~

~~—This Part applies to the transport of the following dangerous
goods—~~

- ~~—(a) gases of UN Class 2;~~
- ~~—(b) self-reactive substances of UN Division 4.1;~~
- ~~—(c) organic peroxides of UN Division 5.2;~~
- ~~—(d) other substances for which—~~
 - ~~—(i) the proper shipping name contains the word
“STABILIZED”; and~~
 - ~~—(ii) the self-accelerating decomposition temperature,
as presented for transport in a packaging is 50°C
or lower;~~
- ~~—(e) toxic substances of UN Division 6.1 or that have a
Subsidiary Risk of 6.1;~~
- ~~—(f) dangerous when wet substances of UN Division 4.3.~~

~~122.—Duty on consignors~~

~~—A person must not consign dangerous goods to which this Part
applies for transport if the person knows, or ought reasonably to
know, that the goods are not loaded or stowed, or cannot be
transported or unloaded, in accordance with the ADG Code
Chapter 7.1.~~

~~—Penalty: a fine of \$5 000.~~

~~123.—Duty on loaders~~

~~—A person must not load dangerous goods to which this Part
applies for transport otherwise than in accordance with the ADG
Code Chapter 7.1.~~

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Part 7 Transport operations relating to self-reactive substances,
organic peroxides and certain other substances

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~~Penalty: a fine of \$5 000.~~

~~124. Duty on prime contractors and rail operators~~

~~A prime contractor or rail operator must not transport dangerous goods to which this Part applies if the prime contractor or rail operator knows, or ought reasonably to know, that the transport does not comply with the ADG Code Chapter 7.1.~~

~~Penalty: a fine of \$5 000.~~

~~125. Duty on drivers~~

~~A person must not drive a road vehicle transporting dangerous goods to which this Part applies if the person knows, or ought reasonably to know, that the dangerous goods are not being transported in accordance with the ADG Code Chapter 7.1.~~

~~Penalty: a fine of \$3 000.~~

Part 8 — Stowage and restraint

126. — Duty on consignors

— A person must not consign for transport in or on a vehicle a load of dangerous goods that is a placard load if the person knows, or ought reasonably to know, that the goods or their packaging are not stowed, loaded or restrained in accordance with the ADG Code Part 8.

— Penalty: a fine of \$5 000.

127. — Duty on loaders

— A person who loads for transport in or on a vehicle a load of dangerous goods that is a placard load must ensure that the goods and their packaging are stowed, loaded and restrained in accordance with the ADG Code Part 8.

— Penalty: a fine of \$5 000.

128. — Duty on prime contractors and rail operators

— A prime contractor or rail operator must not transport in or on a vehicle a load of dangerous goods that is a placard load if the prime contractor or rail operator knows, or ought reasonably to know, that the goods or their packaging are not stowed, loaded or restrained in accordance with the ADG Code Part 8.

— Penalty: a fine of \$5 000.

129. — Duty on drivers

— A person must not drive a road vehicle transporting a load of dangerous goods that is a placard load if the person knows, or ought reasonably to know, that the goods or their packaging are not stowed, loaded or restrained in accordance with the ADG Code Part 8.

— Penalty: a fine of \$3 000.

Part 9—Segregation

130.—Application of Part

~~— This Part applies to —~~

- ~~— (a) the transport of a placard load; or~~
- ~~— (b) the transport of a load of dangerous goods that is not a placard load if the load contains dangerous goods of UN Division 2.3 or UN Class 6 or 8, or dangerous goods that have a Subsidiary Risk of 6.1 or 8, that are being, or are to be, transported with food or food packaging.~~

131.—Exception for certain goods for driver's personal use

~~— Despite regulations 132 to 136, food and food packaging may be transported in or on a road vehicle with dangerous goods if the food or packaging is in the road vehicle's cabin and is for the driver's personal use.~~

132.—Duty on consignors

~~— A person must not consign dangerous goods for transport in or on a vehicle if the person knows, or ought reasonably to know, that —~~

- ~~— (a) the vehicle is, in the same journey, transporting incompatible goods; and~~
- ~~— (b) the dangerous goods will not be segregated from the incompatible goods in accordance with —~~
 - ~~— (i) the ADG Code Part 9; or~~
 - ~~— (ii) any determination made under regulation 18(a); or~~
 - ~~— (iii) any approval given under regulation 138.~~

~~— Penalty: a fine of \$10 000.~~

133. ~~Duty on loaders~~

~~A person must not load dangerous goods for transport in or on a vehicle if the person knows, or ought reasonably to know, that —~~

~~(a) the vehicle is, in the same journey, transporting incompatible goods; and~~

~~(b) the dangerous goods will not be segregated from the incompatible goods in accordance with —~~

~~(i) the ADG Code Part 9; or~~

~~(ii) any determination made under regulation 18(a);
or~~

~~(iii) any approval given under regulation 138.~~

~~Penalty: a fine of \$10 000.~~

134. ~~Duty on prime contractors~~

~~A prime contractor must not use a road vehicle to transport dangerous goods if the prime contractor knows, or ought reasonably to know, that —~~

~~(a) the vehicle is, in the same journey, transporting incompatible goods; and~~

~~(b) the dangerous goods are not segregated from the incompatible goods in accordance with —~~

~~(i) the ADG Code Part 9; or~~

~~(ii) any determination made under regulation 18(a);
or~~

~~(iii) any approval given under regulation 138.~~

~~Penalty: a fine of \$10 000.~~

135. ~~Duty on rail operators~~

~~A rail operator must not use a train to transport dangerous goods if the rail operator knows, or ought reasonably to know, that —~~

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- ~~_____ (a) the train is, in the same journey, transporting incompatible goods; and~~
- ~~_____ (b) the dangerous goods are not segregated from the incompatible goods in accordance with _____~~
 - ~~_____ (i) the ADG Code Part 9; or~~
 - ~~_____ (ii) any determination made under regulation 18(a); or~~
 - ~~_____ (iii) any approval given under regulation 138.~~
- ~~_____ Penalty: a fine of \$10 000.~~

136. Duty on drivers

- ~~_____ A person must not drive a road vehicle transporting dangerous goods if the person knows, or ought reasonably to know, that _____~~
- ~~_____ (a) the road vehicle is, in the same journey, transporting incompatible goods; and~~
- ~~_____ (b) the dangerous goods are not segregated from the incompatible goods in accordance with _____~~
 - ~~_____ (i) the ADG Code Part 9; or~~
 - ~~_____ (ii) any determination made under regulation 18(a); or~~
 - ~~_____ (iii) any approval given under regulation 138.~~
- ~~_____ Penalty: a fine of \$3 000.~~

137. Approvals Type II segregation devices

- ~~_____ (1) An application for approval of a design for a Type II segregation device for use in the transport of dangerous goods must include any information required under the ADG Code Chapter 6.11.~~
- ~~_____ (2) The Chief Officer may, on an application made in accordance with subregulation (1) and regulation 194, approve a design for a Type II segregation device if the design complies with the ADG Code Chapter 6.11.~~

138. Approvals — methods of segregation

- ~~— (1) The Chief Officer may, on an application made in accordance with regulation 194, approve a method of segregation not complying with the ADG Code Part 9 for transporting dangerous goods and incompatible goods by road, if the Chief Officer considers that —~~
 - ~~— (a) it is impracticable to segregate the goods by a segregation device, or method of segregation, complying with that Part; and~~
 - ~~— (b) the risk involved in using the method to transport the goods by road is not greater than the risk involved in using a device or method complying with that Part to transport the goods by road.~~
- ~~— (2) In giving his or her approval, the Chief Officer may impose in relation to the approval any condition that is necessary for the safe transport of dangerous goods.~~
- ~~— (3) A person to whom an approval has been given under this regulation must not contravene a condition of the approval.~~
- ~~— Penalty: a fine of \$5 000.~~

~~Part 10—Bulk transfer of dangerous goods~~

~~Division 1—General~~

~~139.—Term used in this Part~~

~~—In this Part—~~

~~—**bulk transfer**, in relation to dangerous goods, means the transfer by gravity, pump or pressure differential of the liquid, solid or gaseous dangerous goods, by the use of pipe work or hose, into or out of a tank vehicle, or into or out of a portable tank, demountable tank, bulk container, pressure drum, tube, MEGC or IBC that is on a vehicle.~~

~~Division 2—Equipment and transfer~~

~~140.—Duty on transferors—hose assemblies~~

~~—(1) A person must not use a hose assembly for the bulk transfer of dangerous goods if the person knows, or ought reasonably to know, that the hose assembly is damaged or defective.~~

~~—Penalty: a fine of \$10 000.~~

~~—(2) A person must not use a hose assembly for the bulk transfer of dangerous goods if the person knows, or ought reasonably to know, that the hose assembly—~~

~~—(a) has not been constructed, assembled or maintained in accordance with the ADG Code Chapter 10.1; or~~

~~—(b) has not been inspected or tested at the intervals, or in the way, required under that Chapter; or~~

~~—(c) has not satisfied a test required under that Chapter.~~

~~—Penalty: a fine of \$5 000.~~

~~—(3) A person who uses a hose assembly for the bulk transfer of dangerous goods must ensure that any other requirements of the ADG Code Chapter 10.1 are complied with in respect of the hose assembly.~~

~~Penalty: a fine of \$10 000.~~

141. Duty on transferors — general

- ~~(1) A person who transfers dangerous goods by bulk transfer must ensure that the goods are transferred in accordance with the ADG Code Chapter 10.2.~~
- ~~(2) A person must not transfer dangerous goods by bulk transfer if the person knows, or ought reasonably to know, that —~~
- ~~(a) the receiving receptacle or the transfer equipment is incompatible with the dangerous goods; or~~
- ~~(b) the receiving receptacle contains incompatible goods.~~
- ~~(3) If, during a bulk transfer of dangerous goods, the goods leak, spill or accidentally escape, the person transferring the goods —~~
- ~~(a) must immediately stop transferring the goods; and~~
- ~~(b) must not resume transferring the goods until the conditions that caused the leak, spill or escape have been rectified.~~

~~Penalty: a fine of \$5 000.~~

142. Duty on occupiers

- ~~(1) The occupier of premises where a bulk transfer of dangerous goods occurs must ensure that any hose assembly on the premises that is used, or intended to be used, for the transfer (other than a hose assembly brought onto the premises on a vehicle involved in the transfer) —~~
- ~~(a) has been constructed, assembled and maintained in accordance with the ADG Code Chapter 10.1; and~~
- ~~(b) has been inspected and tested at the intervals, and in the way, required under that Chapter; and~~
- ~~(c) satisfies each test required under that Chapter.~~

~~Penalty: a fine of \$5 000.~~

~~— (2) The occupier of premises where a bulk transfer of dangerous goods occurs must ensure that the goods are transferred in accordance with the ADG Code Chapter 10.2.~~

~~————— Penalty: a fine of \$10 000.~~

~~— (3) The occupier must keep, in accordance with the ADG Code section 10.1.3.4, accurate records of all maintenance work, and each inspection and test, carried out on the hose assembly.~~

~~————— Penalty: a fine of \$1 500.~~

~~143. Duty on prime contractors~~

~~— (1) A prime contractor engaged in a bulk transfer of dangerous goods must ensure that any hose assembly that is used, or intended to be used, for the transfer of the goods (other than a hose assembly for which the prime contractor is not responsible) —~~

~~————— (a) has been constructed, assembled and maintained in accordance with the ADG Code Chapter 10.1; and~~

~~————— (b) has been inspected and tested at the intervals, and in the way, required under that Chapter; and~~

~~————— (c) satisfies each test required under that Chapter.~~

~~————— Penalty: a fine of \$5 000.~~

~~— (2) A prime contractor engaged in a bulk transfer of dangerous goods must ensure that the goods are transferred in accordance with the ADG Code Chapter 10.2.~~

~~————— Penalty: a fine of \$10 000.~~

~~— (3) The prime contractor must keep, in accordance with the ADG Code section 10.1.3.4, accurate records of all maintenance work, and each inspection and test, carried out on the hose assembly.~~

~~————— Penalty: a fine of \$1 500.~~

144. Duty on rail operators

~~A rail operator engaged in a bulk transfer of dangerous goods must ensure that any hose assembly that is used, or intended to be used, for the transfer of the goods (other than a hose assembly for which the rail operator is not responsible) —~~

~~(a) has been constructed, assembled and maintained in accordance with the ADG Code Chapter 10.1; and~~

~~(b) has been inspected and tested at the intervals, and in the way, required under that Chapter; and~~

~~(c) satisfies each test required under that Chapter.~~

~~Penalty: a fine of \$5 000.~~

Division 3 Filling ratio and ullage for tank vehicles

145. Application of Division

~~This Division applies to and in relation to bulk transfer into a tank vehicle.~~

146. Duty on transferors

~~A person who transfers dangerous goods by bulk transfer must ensure that —~~

~~(a) for dangerous goods of UN Class 2 that are not in the form of a refrigerated liquid — the quantity of the goods in the tank to which the goods are transferred does not exceed the maximum permitted filling ratio set out in the ADG Code section 10.3.2;~~

~~(b) in any other case — the ullage in the tank complies with the ADG Code section 10.3.1.~~

~~Penalty: a fine of \$5 000.~~

147. Duty on prime contractors and rail operators

~~A prime contractor or rail operator must not engage in a bulk transfer of dangerous goods if —~~

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~~———— (a) for dangerous goods of UN Class 2 that are not in the form of a refrigerated liquid — the quantity of the goods in the tank exceeds the maximum permitted filling ratio set out in the ADG Code section 10.3.2;~~

~~———— (b) in any other case — the ullage in the tank does not comply with the ADG Code section 10.3.1.~~

~~———— Penalty: a fine of \$5 000.~~

~~148. Duty on drivers~~

~~———— A person must not drive a road tank vehicle transporting dangerous goods if the person knows, or ought reasonably to know, that —~~

~~———— (a) for dangerous goods of UN Class 2 that are not in the form of a refrigerated liquid — the quantity of the goods in the tank exceeds the maximum permitted filling ratio set out in the ADG Code section 10.3.2;~~

~~———— (b) in any other case — the ullage in the tank does not comply with the ADG Code section 10.3.1.~~

~~———— Penalty: a fine of \$5 000.~~

Part 11—Documentation

Division 1—Transport documentation

149.—False or misleading information

— A person must not include information in transport documentation for dangerous goods that the person knows, or ought reasonably to know, is false or misleading in a material particular.

— Penalty: a fine of \$10 000.

150.—Duty on consignors—transport by road

— (1) A person must not consign dangerous goods for transport in or on a road vehicle if the prime contractor or the driver of the road vehicle does not have transport documentation that complies with the ADG Code Chapter 11.1 for the goods.

— (2) A person must not consign dangerous goods for transport by road if—

— (a) the person knows, or ought reasonably to know, that the goods will be divided into, and transported in, separate loads; and

— (b) the prime contractor, or the driver of each road vehicle transporting the goods, does not have separate transport documentation that complies with the ADG Code Chapter 11.1 for each load.

— Penalty: a fine of \$3 000.

151.—Duty on consignors—transport by rail

— (1) A person must not consign dangerous goods for transport in or on a unit of rolling stock if the rail operator does not have transport documentation that complies with the ADG Code Chapter 11.1 for the goods.

— Penalty: a fine of \$3 000.

- ~~— (2) For the purposes of subregulation (1), a rail operator is to be taken to have the transport documentation if the contents of the transport documentation have been communicated to the rail operator by means of electronic data processing or electronic data interchange.~~

152. Duty on prime contractors

- ~~— A prime contractor must ensure that a person does not drive a road vehicle used by the prime contractor to transport dangerous goods if the person has not been given transport documentation that complies with the ADG Code Chapter 11.1 for the goods.~~
- ~~— Penalty: a fine of \$5 000.~~

153. Duty on rail operators

- ~~— A rail operator must not transport dangerous goods by rail unless the driver of the train transporting the goods has been given transport documentation that complies with the ADG Code Chapter 11.1 for the goods.~~
- ~~— Penalty: a fine of \$5 000.~~

154. Duty on drivers

- ~~— (1) The driver of a road vehicle transporting dangerous goods must carry transport documentation for the goods.~~
- ~~— (2) The driver of a road vehicle transporting dangerous goods must produce the transport documentation for the goods for inspection by a DGO, a police officer or an emergency service officer, if the officer asks the driver to produce the documentation for inspection.~~
- ~~— Penalty: a fine of \$3 000.~~

155. Duty on train drivers

- ~~— (1) A person must not drive a train, from a depot or yard, that the person knows, or ought reasonably to know, is transporting dangerous goods, if the person does not have transport~~

~~documentation that complies with the ADG Code Chapter 11.1 for the goods.~~

~~Penalty: a fine of \$3 000.~~

- ~~(2) The driver of a train transporting dangerous goods must produce the transport documentation for the goods for inspection by a DGO, a police officer or an emergency service officer, if the officer asks the driver to produce the documentation for inspection.~~

~~Penalty: a fine of \$3 000.~~

- ~~(3) Subregulations (1) and (2) do not apply if the driver of a train transporting dangerous goods is engaged in shunting operations and the transport documentation for the goods is readily available elsewhere in the immediate vicinity of those operations.~~

Division 2—Emergency information

156. Term used in this Division

~~In this Division—~~

~~*required emergency information* means—~~

- ~~(a) emergency information that complies with the ADG Code Chapter 11.2; or~~

- ~~(b) emergency information that is approved under regulation 162.~~

157. Duty on consignors

~~A person must not consign a placard load for transport in or on a vehicle if the person knows, or ought reasonably to know, that the required emergency information is not on the vehicle.~~

~~Penalty: a fine of \$3 000.~~

158. Duty on prime contractors

~~A prime contractor must not use a road vehicle to transport a placard load if—~~

~~(a) the road vehicle is not equipped with an emergency information holder that complies with the ADG Code Chapter 11.2; or~~

~~(b) the required emergency information is not in the holder.~~

~~Penalty: a fine of \$5 000.~~

159. Duty on rail operators

~~(1) A rail operator must not transport a placard load in a transport unit on a train if the required emergency information is not in the train driver's cab.~~

~~Penalty: a fine of \$5 000.~~

~~(2) Subregulation (1) does not apply when a train transporting a placard load is involved in shunting operations and the required emergency information is readily available elsewhere in the immediate vicinity of those operations.~~

160. Duty on drivers

~~(1) A person must not drive a road vehicle transporting a placard load if—~~

~~(a) the road vehicle is not equipped with an emergency information holder that complies with the ADG Code Chapter 11.2; or~~

~~(b) the required emergency information provided by the consignor of the goods, or by the prime contractor for the transport of the goods, is not in the holder.~~

~~Penalty: a fine of \$3 000.~~

~~(2) The driver of a road vehicle transporting a placard load must ensure that the road vehicle's emergency information holder contains only—~~

- ~~———— (a) the required emergency information; and~~
- ~~———— (b) the transport documentation for the goods.~~

~~———— Penalty: a fine of \$1 500.~~

- ~~———— (3) The driver of a road vehicle transporting a placard load must produce the required emergency information for inspection by a DGO, a police officer or an emergency service officer, if the officer asks the driver to produce the information for inspection.~~

~~———— Penalty: a fine of \$3 000.~~

161. Duty on train drivers

- ~~———— (1) A person must not drive a train that is transporting a placard load from a depot or yard if the required emergency information is not in the train driver's cab.~~

~~———— Penalty: a fine of \$3 000.~~

- ~~———— (2) The driver of a train transporting a placard load must produce the required emergency information for inspection by a DGO, a police officer or an emergency service officer, if the officer asks the driver to produce the information for inspection.~~

~~———— Penalty: a fine of \$3 000.~~

- ~~———— (3) Subregulations (1) and (2) do not apply if the driver of a train transporting dangerous goods is engaged in shunting operations and the required emergency information is readily available elsewhere in the immediate vicinity of those operations.~~

162. Approvals — emergency information

- ~~———— The Chief Officer may, on an application made in accordance with regulation 194, or on the Chief Officer's own initiative, approve emergency information that does not comply with the ADG Code Chapter 11.2, if the Chief Officer considers that use of the information would be as accurate, and at least as convenient and efficient, as information that complies with that Chapter.~~

~~Part 12 — Safety equipment~~

~~163. — Duty on owners~~

~~— The owner of a road vehicle must not use the road vehicle, or allow the road vehicle to be used, to transport a placard load if the road vehicle is not equipped with —~~

~~— (a) — fire extinguishers and portable warning devices that comply with the ADG Code Part 12; and~~

~~— (b) — any other equipment required under that Part.~~

~~— Penalty: a fine of \$10 000.~~

~~164. — Duty on prime contractors~~

~~— (1) — A prime contractor must not use a road vehicle to transport a placard load if the road vehicle is not equipped with —~~

~~— (a) — fire extinguishers and portable warning devices that comply with the ADG Code Part 12; and~~

~~— (b) — any other equipment required under that Part.~~

~~— (2) — A prime contractor must not use a road vehicle to transport a placard load if the prime contractor knows, or ought reasonably to know, that the equipment for the road vehicle mentioned in subregulation (1) —~~

~~— (a) — has not been inspected or tested in accordance with the ADG Code Part 12; or~~

~~— (b) — is not in good repair or proper working order.~~

~~— Penalty: a fine of \$10 000.~~

~~165. — Duty on drivers~~

~~— (1) — A person must not drive a road vehicle transporting a placard load if the road vehicle is not equipped with —~~

~~— (a) — fire extinguishers and portable warning devices that comply with the ADG Code Part 12; and~~

~~— (b) — any other equipment required under that Part.~~

-
- ~~— (2) — A person must not drive a road vehicle transporting a placard load if the person knows, or ought reasonably to know, that the equipment for the road vehicle mentioned in subregulation (1) —~~
- ~~— (a) — is not stowed in accordance with the ADG Code Part 12; or~~
- ~~— (b) — has not been inspected or tested in accordance with that Part; or~~
- ~~— (c) — is not in good repair or proper working order.~~
- ~~— Penalty: a fine of \$3 000.~~
-

~~Part 13—Procedures during transport~~

~~Division 1—Immobilised and stopped vehicles~~

~~166.—Duty on drivers~~

- ~~— (1) This regulation applies if a road vehicle transporting a placard load —~~
 - ~~— (a) is broken down or otherwise immobilised, or has stopped, on a road; and~~
 - ~~— (b) is a traffic hazard.~~
- ~~— (2) The driver must alert other road users of the hazard in accordance with the ADG Code Part 13.~~
- ~~— Penalty: a fine of \$1 500.~~

~~167.—Duty on prime contractors~~

- ~~— (1) If a prime contractor knows, or ought reasonably to know, that a road vehicle transporting a placard load has broken down or is otherwise immobilised on a road, the prime contractor must, as soon as practicable, ensure that the road vehicle —~~
 - ~~— (a) is repaired so that it can be driven safely off the road; or~~
 - ~~— (b) is towed to a place where it can be repaired.~~
- ~~— (2) The prime contractor must —~~
 - ~~— (a) remove the dangerous goods from the road vehicle before the road vehicle is repaired or towed; and~~
 - ~~— (b) transport the dangerous goods from the place of the breakdown or immobilisation,~~
- ~~— if the risk involved in complying with paragraphs (a) and (b) is not greater than the risk involved in not complying with the paragraphs.~~
- ~~— Penalty: a fine of \$5 000.~~

~~168. Duty on rail operators~~

~~If a train transporting a placard load fails or is otherwise immobilised, the rail operator must, as soon as practicable, take all appropriate steps to ensure that a dangerous situation does not arise.~~

~~Penalty: a fine of \$5 000.~~

~~Division 2 Road vehicle driver's duties~~

~~169. Driving~~

~~The driver of a road vehicle transporting a placard load must not allow anyone else to ride in the road vehicle except in accordance with the ADG Code Part 13.~~

~~Penalty: a fine of \$1 500.~~

~~170. Parking~~

~~The driver of a road vehicle transporting a placard load must not park the road vehicle, or leave the road vehicle standing, in a public or private place except in accordance with the ADG Code Part 13.~~

~~Penalty: a fine of \$3 000.~~

~~171. Control of ignition sources~~

~~(1) This regulation applies to a road vehicle transporting a load of dangerous goods that contains dangerous goods that —~~

~~(a) are in a receptacle with a capacity of more than 500 L or kgs; and~~

~~(b) are of UN Division 2.1 or UN Class 3, 4 or 5 or have a Subsidiary Risk of 2.1, 3, 4 or 5.1.~~

~~(2) The driver of the road vehicle must not —~~

~~(a) have matches or a cigarette lighter in his or her possession in the road vehicle; or~~

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~~———— (b) — smoke in the road vehicle.~~

~~———— Penalty: a fine of \$10 000.~~

~~———— (3) The driver must do everything practicable to ensure that anyone
else in the road vehicle does not —~~

~~———— (a) have matches or a cigarette lighter in his or her
possession; or~~

~~———— (b) smoke.~~

~~———— Penalty: a fine of \$10 000.~~

~~172. Unloading~~

~~———— The driver of a road vehicle transporting a placard load must not
permit the dangerous goods to be unloaded from the road
vehicle except in accordance with the ADG Code Part 13.~~

~~———— Penalty: a fine of \$10 000.~~

~~173. Detaching trailer~~

~~———— The driver of a road vehicle that has attached to it a trailer
transporting a placard load must not detach the trailer or permit
it to be detached from the road vehicle except in accordance
with the ADG Code Part 13.~~

~~———— Penalty: a fine of \$10 000.~~

~~174. Road tank vehicle equipped with burner~~

~~———— The driver of a road tank vehicle that is transporting a placard
load and is equipped with a burner to heat the load must not
operate the burner or permit it to be operated except in
accordance with the ADG Code Part 13.~~

~~———— Penalty: a fine of \$10 000.~~

Part 14—Emergencies

Division 1—Emergencies generally

175.—Duty on drivers

- ~~— (1) This regulation applies if a road vehicle transporting dangerous goods is involved in an incident resulting in a dangerous situation.~~
- ~~— (2) The driver of the road vehicle must —~~
 - ~~— (a) notify the prime contractor, and the police or FESA, of the incident as soon as practicable; and~~
 - ~~— (b) provide any reasonable assistance required by a DGO, a police officer or an emergency service officer to deal with the situation.~~
- ~~— Penalty: a fine of \$3 000.~~

176.—Duty on train drivers and rail operators

- ~~— (1) This regulation applies if a train transporting dangerous goods is involved in an incident resulting in a dangerous situation.~~
- ~~— (2) The driver of the train must —~~
 - ~~— (a) notify the rail operator or rail authority of the incident as soon as practicable; and~~
 - ~~— (b) provide any reasonable assistance required by a DGO, a police officer or an emergency service officer to deal with the situation.~~
- ~~— Penalty: a fine of \$3 000.~~
- ~~— (3) On becoming aware of the incident, the rail operator must —~~
 - ~~— (a) notify the rail authority, and the police or FESA, of the incident as soon as practicable; and~~
 - ~~— (b) provide any reasonable assistance required by a DGO, a police officer or an emergency service officer to deal with the situation.~~

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~~Penalty: a fine of \$3 000.~~

~~(4) On becoming aware of the incident, the rail authority must~~

~~(a) notify the police or FESA of the incident as soon as practicable; and~~

~~(b) provide any reasonable assistance required by a DGO, a police officer or an emergency service officer to deal with the situation.~~

~~Penalty: a fine of \$3 000.~~

~~177. Duty on prime contractors and rail operators—food or food packaging~~

~~(1) This regulation applies if~~

~~(a) an incident involving a vehicle transporting dangerous goods results in the leakage, spillage or accidental escape of the dangerous goods, or in a fire or explosion; and~~

~~(b) there is food or food packaging in the vicinity of the incident that is within the control of a prime contractor or rail operator.~~

~~(2) In the case of a prime contractor, the prime contractor must ensure that the food or food packaging is not transported from the site of the incident unless the Chief Officer has given permission to the prime contractor to transport the food or food packaging from the site.~~

~~Penalty: a fine of \$10 000.~~

~~(3) In the case of a rail operator, the rail operator must ensure that the food or food packaging is not removed from rail premises unless the Chief Officer has given permission to the rail operator to remove the food or food packaging.~~

~~Penalty: a fine of \$10 000.~~

~~(4) Permission given under subregulation (2) or (3)~~

- ~~_____ (a) must be in writing; and~~
- ~~_____ (b) must state the name of the person to whom it is given; and~~
- ~~_____ (c) must identify the relevant incident; and~~
- ~~_____ (d) must identify the food or food packaging to which it relates; and~~
- ~~_____ (e) must take into consideration any requirements of the appropriate food and health authorities; and~~
- ~~_____ (f) may contain any other information that the Chief Officer considers necessary.~~

178. Prime contractors, rail operators and drivers to inform Chief Officer

- ~~_____ (1) This regulation applies if a vehicle transporting dangerous goods is involved in an incident resulting in a dangerous situation.~~
- ~~_____ (2) As soon as practicable after the incident, the driver must notify the prime contractor or rail operator and the Chief Officer about the incident, and provide the following details—~~
 - ~~_____ (a) where the incident happened;~~
 - ~~_____ (b) the date and time of the incident;~~
 - ~~_____ (c) the nature of the incident;~~
 - ~~_____ (d) the dangerous goods being transported when the incident happened;~~
 - ~~_____ (e) any other details that the Chief Officer may require.~~
- ~~_____ Penalty: a fine of \$5 000.~~
- ~~_____ (3) As soon as practicable after becoming aware of the incident, the prime contractor or rail operator must provide to the Chief Officer the details mentioned in subregulation (2).~~
- ~~_____ Penalty: a fine of \$5 000.~~

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- ~~— (4) Not later than 21 days after the day on which the incident happens, the driver and the prime contractor or rail operator must each give the Chief Officer a written report about the incident stating the following —~~
- ~~— (a) where the incident happened;~~
- ~~— (b) the date and time of the incident;~~
- ~~— (c) the nature of the incident;~~
- ~~— (d) the dangerous goods being transported when the incident happened;~~
- ~~— (e) for the driver's report — what he or she believes to be the likely cause of the incident;~~
- ~~— (f) for the prime contractor's or rail operator's report — what he, she or it believes to be the likely cause of the incident;~~
- ~~— (g) the measures taken to control any leak, spill or accidental escape of the dangerous goods, and any fire or explosion, resulting from the incident;~~
- ~~— (h) the measures taken after the incident in relation to the dangerous goods involved in the incident.~~
- ~~— Penalty: a fine of \$5 000.~~

~~Division 2 — Emergencies involving placard loads~~

~~179. — Telephone advisory service~~

- ~~— (1) In this regulation —~~
- ~~— *telephone advisory service*, in relation to the transport of dangerous goods, means a service providing access by a continuously monitored telephone not located on the carrying vehicle to a person competent to give advice about the following —~~
- ~~— (a) the construction and properties of the receptacles in which the dangerous goods are being transported;~~

- ~~———— (b) — the use of equipment on vehicles in or on which the dangerous goods are being transported;~~
- ~~———— (c) — the properties of the dangerous goods;~~
- ~~———— (d) — methods of safely handling the dangerous goods;~~
- ~~———— (e) — methods of safely containing and controlling the dangerous goods in a dangerous situation.~~
- ~~———— (2) — A prime contractor or rail operator must not transport a load of dangerous goods that contains dangerous goods in a receptacle with a capacity of more than 500 L or kgs if a telephone advisory service is not available during the journey.~~
- ~~———— Penalty: a fine of \$10 000.~~
- ~~———— (3) — A person must not consign a load of dangerous goods that contains dangerous goods in a receptacle with a capacity of more than 500 L or kgs for transport if a telephone advisory service is not available during the journey.~~
- ~~———— Penalty: a fine of \$10 000.~~
- ~~———— (4) — A telephone advisory service may be provided by the prime contractor, rail operator or consignor, or someone else for the prime contractor, rail operator or consignor.~~

180. — Emergency plans

- ~~———— (1) — Before a prime contractor or rail operator transports a placard load, the prime contractor or rail operator must prepare and have an emergency plan for the transport of the goods.~~
- ~~———— (2) — An emergency plan for the transport of a placard load must —~~
 - ~~———— (a) — be in writing; and~~
 - ~~———— (b) — be a plan that deals with any dangerous situation arising from the transport of the goods; and~~
 - ~~———— (c) — be prepared having regard to any guidelines approved by the Australian Transport Council.~~

- ~~— (3) An emergency plan is prescribed to be a safety management document for the purposes of the definition of “safety management document” in the Act section 3(1).~~

~~181. Duty on consignors — information~~

- ~~— (1) This regulation applies if a vehicle transporting a placard load is involved in an incident resulting in a dangerous situation.~~
- ~~— (2) As soon as practicable after being asked by a DGO, a police officer or an emergency service officer, the consignor of the goods must give the officer the information that the officer requires about —~~
- ~~— (a) the properties of the dangerous goods being transported; and~~
- ~~— (b) safe methods of handling the goods; and~~
- ~~— (c) safe methods of containing and controlling the goods in a dangerous situation.~~
- ~~— Penalty: a fine of \$5 000.~~
- ~~— (3) If the prime contractor and the consignor, or the rail operator and the consignor, of the goods are asked to give the same information, the consignor is taken to have complied with subregulation (2) to the extent that the prime contractor or rail operator has given the information.~~

~~182. Duty on prime contractors and rail operators — information~~

- ~~— (1) This regulation applies if a vehicle transporting a placard load is involved in an incident resulting in a dangerous situation.~~
- ~~— (2) As soon as practicable after being asked by a DGO, a police officer or an emergency service officer, the prime contractor or rail operator must give the officer the information that the officer requires about the vehicle’s construction, properties and equipment.~~
- ~~— Penalty: a fine of \$5 000.~~

- ~~— (3) — If the prime contractor and the consignor, or the rail operator and the consignor, of the goods are asked to give the same information, the prime contractor or rail operator is taken to have complied with subregulation (2) to the extent that the consignor has given the information.~~

Division 3 — Dealing with emergencies involving placard loads

183. — Terms used in this Division

~~— In this Division —~~

~~— **approved responder**, in relation to a quantity of dangerous goods, means a person who is approved by the Chief Officer under regulation 184 in relation to the quantity, and the description or class, of the dangerous goods;~~

~~— **emergency response contract**, with a person, means a contract under which the person agrees —~~

~~— (a) — to provide the resources to eliminate or reduce to an acceptable level the risk associated with a dangerous situation involving dangerous goods being transported; and~~

~~— (b) — to do so as soon as practicable after being asked to do so by the other party to the contract.~~

184. — Approvals — responders to emergencies

~~— (1) — The Chief Officer may approve a person to deal with any dangerous situation that might result while dangerous goods of a specified quantity and of a specified description or class are being transported if the Chief Officer is satisfied that the person —~~

~~— (a) — is competent; and~~

~~— (b) — has the equipment and other resources that would be needed,~~

~~— to eliminate or reduce to an acceptable level the risk associated with the dangerous situation.~~

~~— (2) Any such approval must be in writing and must specify the quantity and the description or class of the dangerous goods to which it relates.~~

185. Duties as to ensure adequate resources available to deal with emergencies

~~— (1) A person who is a prime contractor or rail operator, as the case requires, must not transport a placard load unless the person complies with subregulation (2).~~

~~— Penalty: a fine of \$10 000.~~

~~— (2) To comply with this subregulation, a person must —~~

~~— (a) be an approved responder in relation to the total quantity of dangerous goods that comprise the load; or~~

~~— (b) be an approved responder in relation to part of the quantity of dangerous goods that comprise the load and have an emergency response contract with another person who is an approved responder in relation to the remaining quantity of dangerous goods that comprise the load; or~~

~~— (c) have an emergency response contract with another person who is an approved responder in relation to the total quantity of dangerous goods that comprise the load.~~

~~— (3) It is a defence to a charge of an offence under subregulation (1) alleged to have been committed within 12 months after the day on which this regulation commences to prove that at the time of the alleged offence —~~

~~— (a) the consignor of the dangerous goods could have provided the equipment and other resources necessary —~~

~~— (i) to control any dangerous situation that might result from an incident involving a vehicle transporting the goods; and~~

- ~~_____ (ii) to contain, control, recover and dispose of any of the dangerous goods that might leak, spill or accidentally escape;~~
- ~~_____ and~~
- ~~_____ (b) the accused could have provided the equipment and other resources necessary —~~
- ~~_____ (i) to control any dangerous situation that might result from an incident involving a vehicle transporting the goods; and~~
- ~~_____ (ii) to recover a vehicle involved in the situation or its equipment.~~

186. — Duties to provide resources to deal with emergency

- ~~_____ (1) In this regulation —~~
- ~~_____ *deal with* a dangerous situation, means —~~
- ~~_____ (a) to provide the equipment and other resources needed to eliminate or reduce to an acceptable level the risk associated with the dangerous situation; and~~
- ~~_____ (b) to eliminate or reduce to an acceptable level the risk associated with the dangerous situation.~~
- ~~_____ (2) This regulation applies if a vehicle transporting a placard load is involved in an incident resulting in a dangerous situation.~~
- ~~_____ (3) The prime contractor, or the rail operator, as the case requires, must —~~
- ~~_____ (a) if the prime contractor or rail operator is an approved responder in relation to the total quantity of dangerous goods that are giving rise to the dangerous situation — deal with the dangerous situation as soon as practicable after it arises;~~
- ~~_____ (b) if the prime contractor or rail operator is an approved responder in relation to part of the quantity of dangerous goods that are giving rise to the dangerous situation —~~

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- ~~_____ (i) deal with the dangerous situation, in so far as it arises from that part of the quantity of dangerous goods, as soon as practicable after it arises; and~~
- ~~_____ (ii) ensure that an approved responder in relation to the remaining quantity of dangerous goods that are giving rise to the dangerous situation deals with the dangerous situation, insofar as it arises from that remaining part, as soon as practicable after it arises;~~
- ~~_____ (c) if the prime contractor or rail operator is not an approved responder in relation to any quantity of the dangerous goods that are giving rise to the dangerous situation — ensure that an approved responder in relation to the quantity of dangerous goods that are giving rise to the dangerous situation deals with the dangerous situation as soon as practicable after it arises.~~
- ~~_____ Penalty: a fine of \$10 000.~~
- ~~_____ (4) It is a defence to a charge of an offence under subregulation (3) alleged to have been committed within 12 months after the day on which this regulation commences to prove that at the time of the alleged offence —~~
 - ~~_____ (a) the consignor of the dangerous goods provided the equipment and other resources necessary —~~
 - ~~_____ (i) to control the dangerous situation; and~~
 - ~~_____ (ii) to contain, control, recover and dispose of dangerous goods that leaked, spilled or accidentally escaped;~~
 - ~~_____ and~~
 - ~~_____ (b) the accused provided the equipment and other resources necessary —~~
 - ~~_____ (i) to control the dangerous situation; and~~
 - ~~_____ (ii) to recover a vehicle involved in the situation or its equipment.~~

Part 15—Exemption

Division 1—General

~~Note: As to applications for, register and records of, exemptions under the Act Part 4, see the *Dangerous Goods Safety (General) Regulations 2007*.~~

187.—Register of corresponding exemptions

- ~~(1) The Chief Officer must keep a register of corresponding exemptions.~~
- ~~(2) The register may have separate divisions for different kinds of corresponding exemptions.~~
- ~~(3) The Chief Officer must record in the register each corresponding exemption.~~
- ~~(4) The Chief Officer must note in the register any decision of CAP reversing a decision that a corresponding exemption should have effect in all participating jurisdictions or participating jurisdictions including this State.~~

188.—Records of corresponding exemptions

- ~~The record of a corresponding exemption in the register must include—~~
 - ~~(a) the terms of the exemption; or~~
 - ~~(b) the following information—~~
 - ~~(i) if the exemption was notified in the Government Gazette of the other participating jurisdiction— details of where in the Gazette the exemption was notified or published;~~
 - ~~(ii) the name of the person to whom, or the name, or a description, of the class of persons to which, the exemption applies;~~
 - ~~(iii) the provision of these regulations to which the exemption relates;~~

- ~~_____ (iv) the date when the exemption was granted;~~
- ~~_____ (v) the period for which the exemption has effect;~~
- ~~_____ (vi) the dangerous goods, equipment, packaging,
vehicle or other thing to which the exemption
relates.~~

Division 2 — References of matters to CAP

189. — Term used in this Division

- ~~_____ In this Division —~~
- ~~_____ **exemption** does not include an exemption granted by the
Minister.~~

190. — References to CAP

- ~~_____ (1) The Chief Officer must refer an application for an exemption to
CAP if the Chief Officer considers that the exemption should
have effect in all participating jurisdictions or participating
jurisdictions including this State.~~
- ~~_____ (2) The Chief Officer must refer to CAP an exemption having effect
in this State and one or more other participating jurisdictions,
if —~~
 - ~~_____ (a) the Chief Officer considers that the exemption should be
cancelled or varied; or~~
 - ~~_____ (b) a corresponding authority recommends to the Chief
Officer in writing that the exemption should be
cancelled or varied.~~

191. — Effect of CAP decisions about applications

- ~~_____ (1) This regulation applies if —~~
 - ~~_____ (a) an application for an exemption is referred to CAP under
regulation 190(1); and~~
 - ~~_____ (b) CAP decides —~~

- ~~_____ (i) that the exemption should be granted, what the terms of the exemption should be, and that the exemption should have effect in all participating jurisdictions or participating jurisdictions including this State; or~~
- ~~_____ (ii) that the exemption should not have effect in this State.~~
- ~~_____ (2) The Chief Officer must have regard to CAP's decision.~~

~~192. Effect of CAP decisions about cancelling or varying exemptions~~

- ~~_____ (1) This regulation applies if _____~~
 - ~~_____ (a) an exemption is referred to CAP under regulation 190(2); and~~
 - ~~_____ (b) CAP decides that the exemption _____~~
 - ~~_____ (i) should, or should not, be cancelled; or~~
 - ~~_____ (ii) should be varied (whether or not CAP's decision is the same as the variation proposed by the Chief Officer), and should have effect as varied in all participating jurisdictions or participating jurisdictions including this State; or~~
 - ~~_____ (iii) should not be varied.~~
- ~~_____ (2) The Chief Officer must have regard to CAP's decision.~~

Part 16—Approvals

Division 1—General

193.—Term used in this Division

~~— In this Division —~~

~~— *approval* includes an authorisation by the Chief Officer under regulation 60.~~

194.—Applications

~~— (1) An application for an approval, or for variation of an approval, must —~~

~~— (a) be made to the Chief Officer in writing; and~~

~~— (b) if a fee is prescribed for the application — be accompanied by the prescribed fee.~~

~~— (2) An application for variation of an approval must have the approval with it.~~

~~— (3) The Chief Officer may, by written notice, require an applicant to give to the Chief Officer any additional information necessary for a proper consideration of the application.~~

195.—Form of approvals

~~— An approval must be in writing.~~

196.—When approvals not to be made

~~— The Chief Officer must not give an approval to a person who is prohibited by a court order from involvement in the transport of dangerous goods.~~

197.—Reasons for refusal of applications

~~— (1) This regulation applies if the Chief Officer refuses an application to give or vary an approval.~~

- ~~— (2) The Chief Officer must inform the applicant in writing of the refusal and of the reasons for the refusal.~~

198. Periods and conditions

- ~~— (1) An approval has effect for the period specified in the approval.~~
~~— (2) A condition to which an approval is subject must be specified in the approval.~~

199. Replacement approvals

- ~~— The Chief Officer must issue to a person to whom an approval is given a replacement approval if —~~
~~— (a) the approval is varied; or~~
~~— (b) the Chief Officer is satisfied that the approval has been defaced, destroyed, lost or stolen.~~

200. Grounds for cancelling approvals

- ~~— (1) In this regulation —~~
~~— **relevant change** means a change about something that the Chief Officer may or must consider in deciding whether to give the approval.~~
- ~~— (2) The Chief Officer may cancel an approval if the application for the approval —~~
~~— (a) did not comply with these regulations; or~~
~~— (b) was false or misleading in a material respect.~~
- ~~— (3) The Chief Officer may cancel an approval if —~~
~~— (a) a relevant change has happened since the approval was given; and~~
~~— (b) if the change had happened earlier the approval would not have been given.~~
- ~~— (4) The Chief Officer may cancel an approval if the person to whom the approval is given is unsuitable to continue to be a~~

~~person to whom the approval is given, because the person has contravened —~~

- ~~—— (a) a provision of the Act or these regulations; or~~
- ~~—— (b) a provision of the law in force in another participating jurisdiction corresponding to a provision referred to in paragraph (a).~~

201. — Grounds for varying approvals

- ~~—— (1) In this regulation —~~

~~—— **relevant change** means a change about something that the Chief Officer may or must consider in deciding whether to give the approval.~~

- ~~—— (2) The Chief Officer may vary an approval if the application for the approval —~~

- ~~—— (a) did not comply with these regulations; or~~
- ~~—— (b) was false or misleading in a material respect.~~

- ~~—— (3) The Chief Officer may vary an approval if —~~

- ~~—— (a) a relevant change has happened since the approval was given; and~~
- ~~—— (b) if the change had happened earlier the approval would have been given in the way in which it is proposed to be varied.~~

- ~~—— (4) The Chief Officer may vary an approval if the person to whom the approval is given is unsuitable to continue to be a person to whom the approval is given without variation because the person has contravened —~~

- ~~—— (a) a provision of the Act or these regulations; or~~
- ~~—— (b) a provision of the law in force in another participating jurisdiction corresponding to a provision referred to in paragraph (a).~~

Division 2—Register of approvals

202.—Register of approvals

- ~~— (1) The Chief Officer must keep a register of approvals.~~
- ~~— (2) The register may have separate divisions for different kinds of approvals.~~
- ~~— (3) The Chief Officer must record in the register —~~
 - ~~— (a) each approval; and~~
 - ~~— (b) each corresponding approval.~~
- ~~— (4) The Chief Officer must note in the register —~~
 - ~~— (a) any cancellation or variation of an approval; and~~
 - ~~— (b) any decision of CAP reversing a decision that a corresponding approval should have effect in all participating jurisdictions or participating jurisdictions including this State.~~

203.—Records of approvals

- ~~— The record of an approval in the register must include —~~
 - ~~— (a) the terms of the approval; or~~
 - ~~— (b) the following information —~~
 - ~~— (i) the name of the person to whom the approval was given;~~
 - ~~— (ii) the date when the approval was given;~~
 - ~~— (iii) the period for which the approval has effect;~~
 - ~~— (iv) the provisions of these regulations, and of the ADG Code, to which the approval relates;~~
 - ~~— (v) the dangerous goods, equipment, packaging, vehicle or other thing to which the approval relates.~~

~~Division 3—Reference of approval matters to CAP~~

~~204.—References to CAP~~

- ~~—(1) The Chief Officer must refer an application for an approval to CAP if the Chief Officer considers that the approval should have effect in all participating jurisdictions or participating jurisdictions including this State.~~
- ~~—(2) The Chief Officer must refer to CAP an approval having effect in this jurisdiction and one or more other participating jurisdictions, if—~~
 - ~~—(a) the Chief Officer considers that the approval should be cancelled or varied; or~~
 - ~~—(b) a corresponding authority recommends to the Chief Officer in writing that the approval should be cancelled or varied.~~

~~205.—Effect of CAP decisions about applications~~

- ~~—(1) This regulation applies if—~~
 - ~~—(a) an application for an approval is referred to CAP under regulation 204(1); and~~
 - ~~—(b) CAP decides—~~
 - ~~—(i) that the approval should be given, what the terms of the approval should be, and that the approval should have effect in all participating jurisdictions or participating jurisdictions including this State; or~~
 - ~~—(ii) that the approval should not have effect in this State.~~
- ~~—(2) The Chief Officer must have regard to CAP's decision.~~

~~206.—Effect of CAP decisions about cancelling or varying approvals~~

- ~~—(1) This regulation applies if—~~

- ~~_____ (a) an approval is referred to CAP under regulation 204(2);
and~~
- ~~_____ (b) CAP decides that the approval _____
 - ~~_____ (i) should, or should not, be cancelled; or~~
 - ~~_____ (ii) should be varied (whether or not CAP's decision
is the same as the variation proposed by the
Chief Officer), and should have effect as varied
in all participating jurisdictions or participating
jurisdictions including this State; or~~
 - ~~_____ (iii) should not be varied.~~~~
- ~~_____ (2) The Chief Officer must have regard to the CAP's decision.~~

Division 4 — Cancellation and variation

207. — Term used in this Division

- ~~_____ In this Division _____~~
- ~~_____ *approval* includes an authorisation by the Chief Officer under
regulation 60.~~

208. — Cancellation and variation in dangerous situations

- ~~_____ The Chief Officer must cancel or vary an approval if the Chief
Officer reasonably believes that _____~~
- ~~_____ (a) a ground exists to cancel or vary the approval; and~~
- ~~_____ (b) it is necessary to do so to reduce, eliminate or avert any
risk to people, property or the environment from
dangerous goods in a dangerous situation.~~

209. — Cancellation giving effect to court orders

- ~~_____ (1) The Chief Officer must cancel an approval if the person to
whom the approval is given is prohibited by a court order from
involvement in the transport of dangerous goods.~~

- ~~— (2) If an approval applies to more than one person, subregulation (1) only requires the Chief Officer to ensure that the approval no longer applies to the person who is the subject of the prohibition.~~

210. Variation of approvals on application

- ~~— (1) This regulation applies if —~~
- ~~— (a) an application is made to vary an approval; and~~
 - ~~— (b) the application is made in accordance with regulation 194 by the person to whom the approval is given.~~
- ~~— (2) The Chief Officer may vary the approval in accordance with the application.~~

211. Cancellation and variation in other circumstances

- ~~— (1) This regulation applies if —~~
- ~~— (a) the Chief Officer considers that a ground exists to cancel or vary an approval (the *proposed action*); and~~
 - ~~— (b) none of regulations 208, 209 and 210 applies to the proposed action.~~
- ~~— (2) The Chief Officer must give to the person to whom the approval is given a written notice that —~~
- ~~— (a) states what the proposed action is; and~~
 - ~~— (b) if the proposed action is to vary the approval — sets out the proposed variation; and~~
 - ~~— (c) sets out the ground for the proposed action; and~~
 - ~~— (d) outlines the facts and other circumstances forming the basis for the ground; and~~
 - ~~— (e) invites the person to state in writing, within a specified period of at least 28 days after the day on which the notice is given to the person, why the proposed action should not be taken.~~

-
- ~~(3) If, after considering any written statement made within the specified period, the Chief Officer reasonably believes that a ground exists to take the proposed action, the Chief Officer may —~~
- ~~(a) cancel or vary the approval; or~~
- ~~(b) if the proposed action is to vary the approval in a specified way — vary the approval in that way.~~

~~212. When cancellation and variation take effect~~

- ~~The cancellation or variation of an approval by the Chief Officer takes effect on —~~
- ~~(a) the day on which the person to whom the approval is given is given written notice by the Chief Officer of the cancellation or variation and of the reasons for the cancellation or variation; or~~
- ~~(b) a later day specified in the notice.~~

Part 17—Licencees

Division 1—Preliminary

213.—Term used in this Part

~~—In this Part—~~

~~—*licensing authority* means—~~

~~—(a) the Chief Officer; or~~

~~—(b) a person authorised by the Chief Officer to grant and
renew licencees under this Part.~~

214.—Part additional to other laws

~~—This Part is in addition to any other law in force in this State
about—~~

~~—(a) the licensing of drivers; or~~

~~—(b) the employment or engaging of drivers; or~~

~~—(c) the registration as a car market operator; of vehicles; or~~

~~—*authorised officer* means an authorised person as defined in the
Fair Trading Act 2010 section 63;~~

~~—*authorised premises*—~~

~~—(a) in relation to a dealer, means premises—~~

~~—(i) particulars of which are included in the dealer's
licence in accordance with section 20E(5); or~~

~~—(ii) for which a temporary permit is in force under
section 20H;~~

~~—and~~

~~—(b) in relation to a car market operator, means premises
particulars of which are included in the registration of
the operator in accordance with section 21A(5);~~

~~—*buying or selling*, in relation to vehicles, includes acting as
agent for persons in connection with the buying or selling of
vehicles;~~

car hire operator means a person who carries on the business of hiring vehicles, where the right to purchase the vehicle is not included in that hiring;

car market means a market for the sale, or offer, exposure or display for sale, of second-hand vehicles by persons other than the person providing the premises for the market but does not include an auction;

car market operator means a person who carries on the business of providing premises for a car market whether or not those premises are used for any other purpose;

cash price in relation to the sale of a second-hand vehicle means the price for which the vendor is willing to sell the vehicle for cash complete with all accessories and other attachments then fitted to or supplied with the vehicle;

certificate of registration means a certificate of registration under section 17B(4);

Commissioner has the meaning given in the *Fair Trading Act 2010* section 6;

dealer means —

(a) a person who carries on any class or description of business of —

(i) buying or selling vehicles; or

(ii) acting as agent for other persons in relation to the buying or selling of vehicles,

(including a business of selling vehicles by auction) that is prescribed by regulations referred to in section 5A; or

(b) a financier; or

(c) a car hire operator;

dealer's licence means a vehicle dealer's licence granted under section 15;

demonstration vehicle means a vehicle —

(a) in respect of which a licence has been granted under the Road Traffic (Vehicles) Act 2012 to the dealer by whom it is being sold or offered or exposed for sale and has been used by that dealer for the purposes of demonstration; and

(b) in respect of which there remains an obligation on the part of the manufacturer to the purchaser of the vehicle from the dealer greater than the obligation which would be imposed on a dealer by the provisions of section 34 were that vehicle to be sold by him at the material time;

Department means the department of the Public Service principally assisting in the administration of this Act;

financier means a person whose ordinary business is not that of buying or selling vehicles but who carries on or acts in that business only for one or more of the following purposes, that is to say —

(a) for the purpose of the hiring, under a hire-purchase agreement, of the vehicle bought or sold; or

(b) for the purpose of effectuating a security over the vehicle bought or sold; or

(c) for the purpose of the hiring, where the right to purchase the vehicle is not included in that hiring, of the vehicle bought or sold; or

(d) for the purpose of disposing of vehicles acquired by him in connection with the purposes referred to in paragraphs (a), (b) or (c) of this interpretation;

grant, in relation to an authorisation, means —

(a) the grant of a licence to a person or to persons constituting a firm; or

(b) the registration of a person, or persons constituting a firm, under section 17B;

hire-purchase agreement includes any transaction or agreement which is a hire-purchase agreement within the interpretation

given to that term from time to time by the *Hire-Purchase Act 1959*, and where used in paragraph (a) of the interpretation *financier*, includes an agreement which would, but for paragraph (e) of the interpretation of the term in the *Hire-Purchase Act 1959*, be a hire-purchase agreement;

hold, in relation to an authorisation, means —

- (a) to hold a licence; or
- (b) to be registered under section 17B;

licence means a licence granted under this Act;

model designation in relation to a vehicle of a particular model, means the words or symbols (if any) applied by the manufacturer of that vehicle to identify a vehicle of that model;

salesperson means a person who is employed or engaged by or on behalf of a dealer in the buying or selling of motor vehicles other than in the capacity of yard manager;

salesperson's licence means a salesperson's licence granted under section 17;

section means section of this Act;

sell in relation to a vehicle, includes the entering into as owner of a hire-purchase agreement and a disposal of any interest in that vehicle, but does not include the hiring of that vehicle where a right to purchase the vehicle is not included in that hiring, and the expressions *sale* and *sold* should be construed accordingly;

trade owner in relation to a vehicle means any person who acquires that vehicle for the purposes of reselling that vehicle or for the purpose of the hiring of that vehicle where the right to purchase that vehicle is not included in that hiring;

yard manager means a person who is employed or engaged by or on behalf of a dealer to manage or supervise the carrying on of that dealer's business of buying or selling vehicles at one of the premises at which the dealer carries on that business;

yard manager's licence means a yard manager's licence granted under section 16;

year of first registration in relation to a vehicle, means the year in which that vehicle was first licensed or registered under the law of this State or elsewhere, for the time being in force regulating the use of vehicles;

year of manufacture in relation to a vehicle, means the year in which the vehicle was manufactured.

(1a) For the purposes of this Act, **second-hand vehicle** includes a vehicle that has, at any time before being offered or exposed for sale, been licensed or registered whether under the law of this State or of any other State or Territory of the Commonwealth regulating the use of vehicles but does not include a demonstration vehicle.

(2) In sections 25, 26, 28 and 29, and in section 27(1), (1a) and (2), **vehicle** means —

(a) a motor vehicle as defined in the *Road Traffic (Administration) Act 2008* section 4; and

(b) a trailer, semi-trailer or caravan designed to be attached to a motor vehicle.

(3) In this Act, other than in the provisions specified in subsection (2), **vehicle** means —

(a) a passenger car; or

(b) a passenger car derivative; or

(c) a motor cycle; or

(d) a camper van; or

(e) a vehicle of a type or class that is prescribed to be a type or class of vehicle to which this Act applies.

(4) For the purposes of subsection (3) —

camper van means a vehicle specially fitted for camping or touring purposes and which is equipped with sleeping facilities and cooking facilities;

motor cycle means a self-propelled vehicle that has 2 wheels, or, where a side car is attached thereto, has 3 wheels;

passenger car means a vehicle (other than a motor cycle) constructed principally for the conveyance of persons;

passenger car derivative means a vehicle of the same make as a factory produced passenger car and in which the forward part of the body form and the greater part of the mechanical equipment are the same as those in the passenger car.

(5) Unless the contrary intention appears, any reference in this Act to the grant or issue of any of the authorisations provided for by this Act or to an application therefor shall be read as including a reference to the grant or issue of the renewal of that authorisation or to an application therefor, as the case requires.

(6) For the purposes of this Act, where a dealer sells a second-hand vehicle to a financier in the expectation that the financier will sell that vehicle to a third person and the financier so sells that vehicle to that third person, the dealer shall be deemed to have sold the vehicle to that third person.

(7) In this Act a reference to the conduct of a car market at premises pursuant to a registration of a person as a car market operator is a reference to the conduct of a car market at the premises while the premises are being provided under the authority of the registration.

(8) Where —

(a) a licence is granted to 2 or more persons under section 15(2); or

(b) 2 or more persons are registered under section 17B(2).

references in this Act to the holder of a licence or authorisation, to a registered person or to a person who is registered, as the case may be, are references to those persons jointly, unless a contrary intention appears.

[Section 5 amended: No. 74 of 1975 s. 3; No. 66 of 1976 s. 2;
No. 49 of 1979 s. 3; No. 87 of 1981 s. 4; No. 6 of 1982 s. 3;
No. 1 of 1985 s. 25; No. 73 of 1994 s. 4; No. 57 of 1997
s. 39(10); No. 4 of 2002 s. 4, 31(2)-(3) and 54; No. 73 of 2003
s. 5 and 23(1) and (2); No. 28 of 2006 s. 107; No. 58 of 2010
s. 34 and 50; No. 8 of 2012 s. 143; No. 23 of 2014 s. 26.]

5A. Classes of business and categories of licence

Regulations may be made under section 56 prescribing —

(a) different classes or descriptions of business for the
purposes of the definition of *dealer* in section 5(1)
including a business that consists of or includes —

(i) the buying of vehicles for wrecking; or

(ii) the selling of vehicles by auction;

and

(b) a different category of dealer's licence —

(i) for each prescribed class or description of
business; or

(ii) for any combination of them;

and

(c) different circumstances under which a particular
category of licence may be granted.

[Section 5A inserted: No. 4 of 2002 s. 5.]

5B. Some persons taken to be dealers

(1) A person who —

(a) holds himself or herself out as a person carrying on the
business of buying or selling vehicles; or

(b) sells or exchanges 4 or more vehicles in any 12 month
period to or with persons who are not dealers,

is taken to be carrying on the business of selling vehicles for the
purposes of the definition of *dealer*.

(2) For the purposes of subsection (1)(a), a person holds himself or herself out as a person carrying on the business of buying or selling vehicles if that person —

(a) advertises or notifies or states that the person carries on the business of buying or selling vehicles; or

(b) in any way represents that the person is ready to carry on, or is carrying on, the business of buying or selling vehicles.

(3) Despite subsection (1), a person who sells or exchanges 4 or more vehicles in any 12 month period to or with persons who are not dealers is not taken to be a dealer if the person can prove that —

(a) he or she was not carrying on the business of buying or selling vehicles; and

(b) the person did not hold himself or herself out as a person carrying on the business of buying or selling vehicles.

(4) When counting the number of vehicles sold or exchanged for the purposes of this section, a sale or exchange of a type prescribed to be an exempt sale or an exempt exchange for the purposes of this subsection is not to be counted.

(5) Nothing in subsection (1) prevents a person who sells or exchanges fewer than 4 vehicles in any 12 month period to or with persons who are not dealers from being a dealer carrying on the business of buying or selling vehicles under this Act.

[Section 5B inserted: No. 58 of 2010 s. 35.]

[5AA. Deleted: No. 58 of 2010 s. 36.]

6. Investigation powers

The Fair Trading Act 2010 section 61 and Part 6 of that Act apply to this Act.

[Section 6 inserted: No. 58 of 2010 s. 37.]

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[Heading amended: No. 73 of 2003 s. 7; No. 58 of 2010 s. 38.]

~~[(d) the transport of goods by road.]~~

Division 1 (s. 7-14A) deleted: No. 58 of 2010 s. 39.]

Division 2 — Licensing and registration

[Heading inserted: No. 73 of 2003 s. 14.]

15. Vehicle dealer's licence, application for and grant of

(1) Subject to this Act, a person, not being a body corporate, who applies to the Commissioner in the approved form for a vehicle dealer's licence of a particular category and pays to the Commissioner the prescribed fee therefor shall be granted such a licence upon satisfying the Commissioner —

(a) that he is of or over the age of 18 years; and

(b) that he is a person of good character and repute and a fit and proper person to hold such a licence; and

(c) that he has —

(i) sufficient resources; and

(ii) sufficient knowledge of this Act.

(2) Subject to this Act, 2 or more persons constituting a firm who apply to the Commissioner in the approved form for a vehicle dealer's licence of a particular category and pay to the Commissioner the prescribed fee therefor shall be granted such a licence upon satisfying the Commissioner —

(a) that all of the natural persons (if any) by whom the firm is constituted and all of the persons concerned in the management or conduct of any body corporate by which the firm is constituted are persons of good character and repute and are persons fit to be concerned in the management or control of the business of buying or selling vehicles; and

-
- (b) that the persons constituting the firm have sufficient resources; and
- (c) that at least one of the natural persons referred to in paragraph (a) has sufficient knowledge of this Act.
- (2a) If there is a corporate member of a firm to which a licence is granted under subsection (2), the licence ceases to have effect if —
- (a) a change occurs in the person or persons concerned in the management or conduct of the corporate member; and
- (b) the Commissioner refuses to approve of the change under section 23(3); and
- (c) the Commissioner does not approve of a further change under subsection (2b).
- (2b) The licence ceases to have effect 14 days after the dealer is notified of the refusal under section 23(5), unless, within that period or such further time as the Commissioner may by notice in writing allow, the change of which the Commissioner has refused to approve has been altered or revoked, and the Commissioner has approved of the change as so altered or revoked.
- (3) Subject to this Act, a body corporate which applies to the Commissioner in the approved form for a vehicle dealer's licence of a particular category and pays to the Commissioner the prescribed fee therefor shall be granted such a licence upon satisfying the Commissioner —
- (a) that all of the persons concerned in the management or conduct of the body corporate are persons of good character and repute and are persons fit to be concerned in the management or control of the business of buying or selling vehicles; and
- (b) that it has sufficient resources; and
-

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- (c) that at least one of the natural persons referred to in paragraph (a) has sufficient knowledge of this Act.
- (4) A licence granted under subsection (3) ceases to have effect if —
- (a) a change occurs in the persons concerned in the management or conduct of the body corporate that holds the licence; and
- (b) the Commissioner has refused to approve of the change under section 23(3); and
- (c) the Commissioner does not approve of a further change under subsection (5).
- (5) The licence ceases to have effect 14 days after the dealer is notified of the refusal under section 23(5), unless, within that period or such further time as the Commissioner may by notice in writing allow, the change of which the Commissioner has refused to approve has been altered or revoked, and the Commissioner has approved of the change as so altered or revoked.
- (6) In this section —
- sufficient knowledge of this Act* means a full understanding of the² Principal duties and obligations imposed by this Act on dealers, yard managers and salespersons, but only so far as the Commissioner considers that those duties and obligations are relevant to the category of licence applied for; under this Part
- sufficient resources* ~~215. Vehicles to be licensed (Act, s. 14)~~
- (1) In this regulation —
- explosives manufacture (MPU) licence* means sufficient material a licence of that name issued under the Explosives Regulations;
- Explosives Regulations* means the *Dangerous Goods Safety (Explosives) Regulations 2007*;

~~———— **mobile processing unit** has the meaning given in the Explosives Regulations regulation 3.~~

~~———— (2) Except as provided in subregulations (3) and financial resources (4), a road vehicle used to transport dangerous goods that are in a receptacle with a capacity of more than 500 L or kgs must be licensed under this Part to transport the goods.~~

~~———— (3) A road vehicle used to transport dangerous goods need not be licensed under this Part if —~~

~~———— (a) the goods are transported in an IBC; and~~

~~———— (b) the IBC is not filled or emptied on the vehicle; and~~

~~———— (c) the total capacity of IBCs containing dangerous goods on the vehicle is not more than 3 000 L.~~

~~———— (4) A road vehicle used to transport dangerous goods need not be licensed under this Part if —~~

~~———— (a) it is a mobile processing unit; and~~

~~———— (b) its owner, within the meaning of the *Road Traffic Act 1974*, is the holder of an explosives manufacture (MPU) licence; and~~

~~———— (c) it is a complying MPU under the Explosives Regulations regulation 42; and~~

~~———— (d) it is transporting the ingredients of an explosive to a place where the explosive is to be manufactured under the explosives manufacture (MPU) licence.~~

216. Drivers to be licensed (Act, s. 15)

~~———— (1) Except as provided in subregulation (2), a person who drives a road vehicle transporting dangerous goods that are in a receptacle with a capacity of more than 500 L or kgs must be licensed under this Part to drive the vehicle.~~

~~———— (2) A person who drives a road vehicle transporting dangerous goods need not be licensed under this Part if —~~

~~———— (a) the goods are transported in an IBC; and~~

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- ~~———— (b) the IBC is not filled or emptied on the vehicle; and~~
- ~~———— (c) the total capacity of IBCs containing dangerous goods on the vehicle is not more than 3 000 L.~~

217. Duty on consignors

- ~~———— A person must not consign dangerous goods for transport in or on a road vehicle if —~~
- ~~———— (a) the vehicle is required to be licensed under this Part to transport the goods; and~~
- ~~———— (b) the person knows, or ought reasonably to know, that the vehicle is not so licensed.~~
- ~~———— Penalty: a fine of \$10 000.~~

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218. Applications for licences

- ~~———— (1) A person resident in this State who is not the holder of a dangerous goods driver licence or a corresponding dangerous goods driver licence may apply to a licensing authority for a dangerous goods driver licence.~~
- ~~———— (2) The application must be accompanied by the following —~~
 - ~~———— (a) the driver licence evidence required by regulation 219;~~
 - ~~———— (b) the competency evidence required by regulation 220;~~
 - ~~———— (c) the medical fitness evidence required by regulation 221;~~
 - ~~———— (d) 2 photographs of the applicant of a size suitable for passports that were taken in the 6 months before the day on which the application is made;~~
 - ~~———— (e) if a fee is prescribed for the application — the prescribed fee.~~

219. Required driver licence evidence

- ~~(1) The following documents are required as driver licence evidence for an application for a dangerous goods driver licence or for renewal of a dangerous goods driver licence—~~
- ~~(a) an extract of entries about the applicant in the driver licences register kept by the driver licensing authority in each State and Territory where the applicant has held a licence to drive, certified by the authority not more than 6 months before the day on which the application is made; and~~
- ~~(b) either—~~
- ~~(i) the document mentioned in subregulation (2); or~~
- ~~(ii) the authorisation mentioned in subregulation (3).~~
- ~~(2) For subregulation (1)(b)(i), the document is a copy of the records of any conviction of the applicant for a driving offence, certified by the appropriate authority of the State or Territory where the applicant was convicted.~~
- ~~(3) For subregulation (1)(b)(ii), the authorisation is the authorisation by the applicant for the licensing authority to have access to—~~
- ~~(a) entries about the applicant in the driver licences register of any State or Territory; and~~
- ~~(b) records of any conviction of the applicant for a driving offence in any State or Territory.~~

220. Required competency evidence

- ~~The document required as competency evidence for an application for a dangerous goods driver licence or for renewal of a dangerous goods driver licence is—~~
- ~~(a) a certificate issued by a person who conducted an approved test or approved training course, stating that the applicant passed the test or completed the course not~~

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~~more than 6 months before the day on which the
application is made; or~~

- ~~———— (b) — other written evidence that the applicant passed an
approved test or completed an approved training course
not more than 6 months before the day on which the
application is made.~~

221. — Required medical fitness evidence

~~———— The document required as medical fitness evidence for an
application for a dangerous goods driver licence or for renewal
of a dangerous goods driver licence is a certificate that —~~

- ~~———— (a) — is about the applicant's medical fitness to drive a road
vehicle; and~~
- ~~———— (b) — is issued by a registered medical practitioner who
examined the applicant not more than 6 months before
the day on which the application is made; and~~
- ~~———— (c) — states that the medical practitioner examined and passed
the applicant in accordance with the standards in
*Assessing Fitness to Drive — Medical Standards for
Licensing and Clinical Management Guidelines*
published by Austroads and the National Road Transport
Commission in September 2003 (ISBN 0 85588 507 6).~~

222. — Grant of dangerous goods driver licences

- ~~———— (1) — Subject to subregulation (2), a licensing authority must grant a
dangerous goods driver licence if an application for the licence
is made to the authority in accordance with regulation 218.~~

~~———— (2) — The licensing authority must not grant the licence if —~~

- ~~———— (a) — in the 5 years before the day on which the application is
made —~~
- ~~———— (i) — the applicant has been found guilty by a court in
Australia of an offence that makes the applicant
unsuitable to be the driver of a vehicle
transporting dangerous goods; or~~

- ~~————— (ii) — the applicant's driver licence has been cancelled or suspended on a ground that makes the applicant unsuitable to be the driver of a vehicle transporting dangerous goods;~~
- ~~————— or~~
- ~~————— (b) — the applicant is prohibited by a court order from involvement in the transport of dangerous goods by road.~~
- ~~————— (3) — If the licensing authority refuses to grant a dangerous goods driver licence, it must inform the applicant in writing of the refusal and of the reasons for the refusal.~~

~~223. — Applications for renewal of licences~~

- ~~————— (1) — A person who holds a dangerous goods driver licence may apply to the licensing authority for renewal of the licence.~~
- ~~————— (2) — The application must be accompanied by the following —~~
- ~~————— (a) — the driver licence evidence required by regulation 219;~~
- ~~————— (b) — the competency evidence required by regulation 220;~~
- ~~————— (c) — the medical fitness evidence required by regulation 221;~~
- ~~————— (d) — 2 photographs of the applicant of a size suitable for passports that were taken in the 6 months before the day on which the application is made;~~
- ~~————— (e) — if a fee is prescribed for the application — the prescribed fee.~~
- ~~————— (3) — The application must be made within 3 months before the licence expires.~~

~~224. — Renewal of licences~~

- ~~————— (1) — Subject to subregulation (2), a licensing authority must renew a dangerous goods driver licence if an application for renewal of the licence is made to the licensing authority in accordance with regulation 223.~~

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- ~~— (2) The licensing authority must not renew the licence if —~~
- ~~— (a) while the licence had effect —~~
- ~~— (i) the applicant was found guilty by a court in Australia of an offence that makes the applicant unsuitable to be the driver of a vehicle transporting dangerous goods; or~~
- ~~— (ii) the applicant's driver licence was cancelled or suspended on a ground that makes the applicant unsuitable to be the driver of a vehicle transporting dangerous goods;~~
- ~~— or~~
- ~~— (b) the applicant is prohibited by a court order from involvement in the transport of dangerous goods by road.~~
- ~~— (3) If the licensing authority refuses to renew a dangerous goods driver licence, the authority must inform the applicant in writing of the refusal and of the reasons for the refusal.~~

225. Licence periods

- ~~— (1) A dangerous goods driver licence takes effect on the day on which the licence is granted or a later day specified in the licence.~~
- ~~— (2) A dangerous goods driver licence is granted for the period specified in the licence, being a period of not longer than 3 years.~~
- ~~— (3) If an application for a renewal of the licence is not decided on or before the date on which the licence expires under subregulation (2) or (5) (the *expiry date*), the licence has effect after the expiry date until the licensing authority renews, or refuses to renew, the licence, unless in the meantime the licence is cancelled or the application is withdrawn.~~
- ~~— (4) A renewal of a licence takes effect on the day after the expiry date.~~

- ~~— (5) — A dangerous goods driver licence is renewed for the period specified in the renewed licence, being a period of not longer than 3 years.~~

~~226. — Licence conditions~~

- ~~— (1) — A licensing authority may grant or renew a dangerous goods driver licence subject to any of the conditions mentioned in subregulations (3) and (4).~~
- ~~— (2) — A condition to which the licence is subject must be stated in the licence.~~
- ~~— (3) — The licence may include conditions about —~~
- ~~— (a) — the dangerous goods that may or may not be transported in or on a road vehicle driven by the licensee; and~~
 - ~~— (b) — the containers that may or may not be used to transport dangerous goods in or on a road vehicle driven by the licensee; and~~
 - ~~— (c) — the road vehicles that may be driven by the licensee in transporting dangerous goods; and~~
 - ~~— (d) — the areas where the licensee may or may not drive a road vehicle transporting dangerous goods or particular dangerous goods; and~~
 - ~~— (e) — the supervision of the licensee when driving a road vehicle transporting dangerous goods.~~
- ~~— (4) — The licence may include any other condition necessary for the safe transport of dangerous goods by road.~~

~~227. — Additional condition~~

- ~~— (1) — It is a condition of a dangerous goods driver licence that a licensing authority may, by written notice given to the licensee, require the licensee to produce to the authority a certificate that —~~

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- ~~———— (a) is about the licensee's medical fitness to drive a road vehicle; and~~
- ~~———— (b) is issued by a registered medical practitioner who examined the licensee not more than 6 months before the day on which the certificate is given to the authority; and~~
- ~~———— (c) states that the medical practitioner examined and passed the licensee in accordance with the standards in *Assessing Fitness to Drive—Medical Standards for Licensing and Clinical Management Guidelines* published by Austroads and the National Road Transport Commission in September 2003 (ISBN 0 85588 507 6).~~
- ~~———— (2) The written notice must specify a period of at least 2 months after the day on which the notice is received by the licensee within which the licensee must produce the certificate.~~
- ~~———— (3) A licensing authority must not give written notice under this regulation if the dangerous goods driver licence is due to expire in less than 4 months.~~

~~228. Grounds for cancelling, suspending or varying licences~~

- ~~———— (1) A licensing authority may cancel, suspend or vary a dangerous goods driver licence if the application for the licence or for renewal of the licence —~~
 - ~~———— (a) did not comply with these regulations; or~~
 - ~~———— (b) was false or misleading in a material respect.~~
- ~~———— (2) A licensing authority may cancel, suspend or vary a dangerous goods driver licence if the licensee is unsuitable to continue to be the driver of a road vehicle transporting dangerous goods because —~~
 - ~~———— (a) the licensee has contravened —~~
 - ~~———— (i) a provision of the Act or these regulations; or~~

- ~~_____ (ii) a provision of the law in force in another participating jurisdiction corresponding to a provision referred to in subparagraph (i);~~
- ~~_____ or~~
- ~~_____ (b) the licensee has been found guilty by a court in Australia of an offence; or~~
- ~~_____ (c) the licensee's driver licence is cancelled or suspended; or~~
- ~~_____ (d) the licensee is suffering from a medical condition or has a physical or mental disability.~~

Division 4 — Dangerous goods vehicle licences

229. — Term used in this Division

- ~~_____ In this Division —~~
- ~~_____ **vehicle** does not include —~~
- ~~_____ (a) a prime mover; or~~
- ~~_____ (b) a converter dolly (within the meaning of clause 10.6 in the Schedule to the *Road Transport Reform (Heavy Vehicles Standards) Regulations of the Commonwealth*).~~

230. — Applications for licences

- ~~_____ (1) A person may apply to a licensing authority for a dangerous goods vehicle licence for a road vehicle —~~
- ~~_____ (a) used, or intended to be used, in transporting dangerous goods; and~~
- ~~_____ (b) for which the person does not hold a dangerous goods vehicle licence; and~~
- ~~_____ (c) for which the person holds a licence granted under the *Road Traffic Act 1974* Part III.~~
- ~~_____ (2) The application must include the following information —~~

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- ~~———— (a) the registration number, make and type of the road vehicle;~~
- ~~———— (b) the type of dangerous goods intended to be transported in or on the road vehicle;~~
- ~~———— (c) if the applicant holds a dangerous goods vehicle licence for another vehicle — the number of the other dangerous goods vehicle licence.~~
- ~~———— (3) The application must be accompanied by a copy of the licence for the road vehicle granted under the *Road Traffic Act 1974* Part III.~~
- ~~———— (4) If a fee is prescribed for the application, the application must be accompanied by the prescribed fee.~~
- ~~———— (5) An application may be made for licences for 2 or more road vehicles in the same form.~~

~~231. Additional information and inspections~~

- ~~———— (1) A licensing authority may, by written notice, require an applicant for a dangerous goods vehicle licence, or for renewal of a dangerous goods vehicle licence, for a road vehicle —~~
 - ~~———— (a) to give to the authority, or to someone nominated by the authority, any additional information necessary for a proper consideration of the application; and~~
 - ~~———— (b) to make the road vehicle available to the person or persons to enable for inspection by the authority, or by someone nominated by the authority, at a specified place and time.~~
- ~~———— (2) A person who inspects a road vehicle for the licensing authority must give a report of the inspection to the authority as soon as practicable after the inspection.~~
- ~~———— (3) The licensing authority must give a copy of any report of an inspection to the applicant if the applicant asks for it.~~

232. — Grant of dangerous goods vehicle licences

- ~~— (1) Subject to subregulation (3), a licensing authority must grant a dangerous goods vehicle licence for a road vehicle if —
 - ~~— (a) an application for the licence is made to the authority in accordance with regulation 230; and~~
 - ~~— (b) the applicant has complied with any requirement made under regulation 231 in relation to the application; and~~
 - ~~— (c) the road vehicle is suitable to transport each type of dangerous goods intended to be transported in or on the road vehicle.~~~~
- ~~— (2) Without limiting subregulation (1)(c), if a road vehicle is intended for use in the transport of dangerous goods in the form of a liquid or gas using a tank that forms part of the vehicle or is attached to the vehicle, the vehicle is suitable only if —
 - ~~— (a) the tank is an approved tank; and~~
 - ~~— (b) the vehicle complies with the requirements of this Act to be the ADG Code Chapters 4.4 and 6.9 applying to road vehicles for use in transporting dangerous goods in the form of a liquid or gas.~~~~
- ~~— (3) The licensing authority must not grant a licence if the applicant is prohibited by a court order from involvement in the transport of dangerous goods by road.~~
- ~~— (4) The licensing authority may issue a single dangerous goods vehicle licence for more than one road vehicle.~~
- ~~— (5) If the licensing authority refuses to grant a dangerous goods vehicle licence, the authority must inform the applicant in writing of the refusal and of the reasons for the refusal.~~

233. — Applications for renewal of licences

- ~~— (1) A person who holds a dangerous goods vehicle licence for a road vehicle may apply to the licensing authority for renewal of the licence.~~

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- ~~— (2) The application must include the information required under subregulation 230(2) for an application for a dangerous goods vehicle licence for the road vehicle.~~
- ~~— (3) If a fee is prescribed for the application, the application must be accompanied by the prescribed fee.~~
- ~~— (4) The application must be made within 3 months before the licence expires.~~

234. — Renewal of licences

- ~~— (1) Subject to subregulation (3), a licensing authority must renew a dangerous goods vehicle licence for a road vehicle if —~~
 - ~~— (a) an application for renewal of the licence is made to the authority in accordance with regulation 233; and~~
 - ~~— (b) the applicant has complied with, but any requirement made under regulation 231 in relation to the application; and~~
 - ~~— (c) the road vehicle is suitable to transport each type of dangerous goods intended to be transported in or on the road vehicle.~~
- ~~— (2) Without limiting subregulation (1)(c), if a road vehicle is intended for use in the transport of dangerous goods in the form of a liquid or gas using a tank that forms part of the vehicle or is attached to the vehicle, the vehicle is suitable only so far if —~~
 - ~~— (a) the tank is an approved tank; and~~
 - ~~— (b) the vehicle complies with the requirements of the ADG Code Chapters 4.4 and 6.9 applying to road vehicles for use in transporting dangerous goods in the form of a liquid or gas.~~
- ~~— (3) The licensing authority must not renew the licence if the applicant is prohibited by a court order from involvement in the transport of dangerous goods by road.~~

- ~~— (4) The licensing authority may issue a single dangerous goods vehicle licence for more than one road vehicle.~~
- ~~— (5) If the licensing authority refuses to renew a dangerous goods vehicle licence, the authority must inform the applicant in writing of the refusal and of the reasons for the refusal.~~

235. Licence periods

- ~~— (1) A dangerous goods vehicle licence takes effect on the day on which the licence is granted or a later day specified in the licence.~~
- ~~— (2) A dangerous goods vehicle licence is granted for the period specified in the licence, being a period of not longer than 3 years.~~
- ~~— (3) If an application for a renewal of the licence is not decided on or before the date on which the licence expires under subregulation (2) or (5) (the *expiry date*), the licence has effect after the expiry date until the licensing authority renews, or refuses to renew, the licence, unless in the meantime the licence is cancelled or the application is withdrawn.~~
- ~~— (4) A renewal of a licence takes effect on the day after the expiry date.~~
- ~~— (5) A dangerous goods driver licence is renewed for the period specified in the renewed licence, being a period of not longer than 3 years.~~

236. Licence conditions

- ~~— (1) A licensing authority may grant or renew a dangerous goods vehicle licence subject to any of the conditions mentioned in subregulations (3) and (4).~~
- ~~— (2) A condition to which the licence is subject must be stated in the licence.~~
- ~~— (3) The licence may include conditions about —~~

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- ~~———— (a) the dangerous goods that may or may not be transported in or on the road vehicle; and~~
- ~~———— (b) the areas where the road vehicle may or may not be used to transport dangerous goods or particular dangerous goods; and~~
- ~~———— (c) the inspections of the road vehicle (if any) that are required.~~
- ~~———— (4) The licence may include any other condition necessary for the safe transport of dangerous goods by road.~~

237. Disposal and transfer of licensed vehicles

- ~~———— (1) In this regulation —~~
 - ~~———— **business transfer**, in respect of a vehicle, means a transfer of the title to the vehicle as the Commissioner part of a transfer in ownership of the business in which the vehicle is used and is to continue to be used.~~
 - ~~———— **licensed vehicle** means a vehicle for which a dangerous goods vehicle licence is in force.~~
- ~~———— (2) Within 21 days after transferring possession or otherwise disposing of a licensed vehicle (otherwise than by way of a business transfer) (the **disposed vehicle**), the person who holds the licence for the vehicle must give, to the licensing authority, notice of the disposal.~~
 - ~~———— Penalty: a fine of \$1 500.~~
- ~~———— (3) If the licence for the disposed vehicle also relates to another vehicle, the person who holds the licence for the vehicle must attach the licence to the notice of the disposal.~~
 - ~~———— Penalty: a fine of \$1 500.~~
- ~~———— (4) If the licence for the vehicle does not relate to another vehicle, the person who holds the licence for the vehicle must —~~
 - ~~———— (a) attach the licence to the notice of the disposal; or~~

~~———— (b) — destroy it and, if required by the licensing authority,
provide sufficient evidence to show that this has been
done.~~

~~———— Penalty: a fine of \$1 500.~~

~~———— (5) — On receipt of a licence for a disposed vehicle, the licensing
authority must —~~

~~———— (a) — if the licence also relates to another vehicle —~~

~~———— (i) — amend the licence by omitting reference to the
disposed vehicle; and~~

~~———— (ii) — return the licence to the person who gave the
licence to the authority;~~

~~———— or~~

~~———— (b) — if paragraph (a) does not apply — cancel the licence.~~

~~———— (6) — Within 21 days after the transfer by business transfer of a
licensed vehicle, the person to whom the vehicle has been
transferred must make an application to the licensing authority,
accompanied by the licence, for the transfer of the licence to
that person.~~

~~———— Penalty: a fine of \$1 500.~~

~~———— (7) — On receipt of the application and licence, the licensing authority
must amend the licence to record the change in ownership and
return the licence.~~

~~238. — Grounds for cancelling, suspending or varying licences~~

~~———— (1) — A licensing authority may cancel, suspend or vary a dangerous
goods vehicle licence if the application for the licence or for
renewal of the licence —~~

~~———— (a) — did not comply with these regulations; or~~

~~———— (b) — was false or misleading in a material respect.~~

- ~~— (2) A licensing authority may also cancel, suspend or vary a dangerous goods vehicle licence for a road vehicle if the road vehicle does not comply with the Act or these regulations.~~

Division 5 — Requirements relating to dangerous goods driver licences

239. — Licences to be carried

- ~~— The holder of a dangerous goods driver licence must carry his or her dangerous goods driver licence when driving a road vehicle that is used to transport dangerous goods and that is required to be licensed under this Part to transport the goods.~~

- ~~— Penalty: a fine of \$1 500.~~

240. — Licences to be produced for inspection

- ~~— The driver of a road vehicle that is transporting dangerous goods who is required to be licensed under this Part to drive the vehicle must produce his or her dangerous goods driver licence for inspection by a DGO or a police officer, if the officer asks the driver to produce the licence for inspection.~~

- ~~— Penalty: a fine of \$1 500.~~

Division 6 — Licences generally

241. — Terms used in this Division

- ~~— In this Division —~~

- ~~— *licence* means a dangerous goods driver licence or dangerous goods vehicle licence;~~

- ~~— *licensee* means the holder of a licence.~~

242. — Replacement licences

- ~~— (1) A licensing authority may issue a replacement licence to a licensee if —~~

- ~~— (a) the licence is renewed; or~~

- ~~———— (b) — the licence is varied; or~~
- ~~———— (c) — a suspension of the licence has ended.~~
- ~~— (2) — The licensing authority must issue a replacement licence to a licensee if the authority is satisfied that the licence has been defaced, destroyed, lost or stolen.~~

243. — Failure to comply with licence conditions

- ~~———— A licensee must not contravene a condition of his or her licence.~~
- ~~———— Penalty: a fine of \$10 000.~~

244. — Surrender of licences

- ~~— (1) — A licensee may surrender his or her licence by giving notice of surrender to the licensing authority and returning the licence to that authority.~~
- ~~— (2) — A licence ceases to have effect on its surrender.~~

245. — Registers of licencees

- ~~— (1) — A licensing authority must keep a register of dangerous goods driver licencees.~~
- ~~— (2) — A licensing authority must keep a register of dangerous goods vehicle licencees.~~
- ~~— (3) — A register may have separate divisions for different kinds of licencees.~~
- ~~— (4) — A licensing authority must —~~
 - ~~———— (a) — record each licence granted by the authority in the appropriate register; and~~
 - ~~———— (b) — note in the register any cancellation, surrender, suspension or variation of a licence.~~

246. Records of licences

~~The record of a licence in the register must include the following information—~~

- ~~(a) the name of the licensee;~~
- ~~(b) the date when the licence was granted or renewed;~~
- ~~(c) either—~~
 - ~~(i) the period for which the licence was granted or renewed; or~~
 - ~~(ii) the expiry date of the licence;~~
- ~~(d) for a dangerous goods driver licence—the licensee's date of birth;~~
- ~~(e) for a dangerous goods vehicle licence—the registration number, make and type of each road vehicle to which the licence relates;~~
- ~~(f) the UN Classes or UN Divisions of dangerous goods for which the licence is valid;~~
- ~~(g) any condition to which the licence is subject.~~

247. Change of information given in licence applications

- ~~(1) This regulation applies if a licensee becomes aware that information given by the licensee to a licensing authority in, or in relation to, an application for a licence or for renewal of a licence is, or has become, incorrect in a material respect.~~
- ~~(2) Within 14 days after becoming aware of the matter, the licensee must inform the licensing authority about the matter and give the correct information to the authority.~~
- ~~Penalty: a fine of \$1 500.~~

248. Production of licences to licensing authority

- ~~(1) A licensing authority may, by written notice, require a person to whom a licence has been granted to produce the licence to the authority.~~

~~— (2) The person must produce the licence to the licensing authority within 14 days after the day on which the notice is given to the person.~~

~~— Penalty: a fine of \$1 500.~~

249. Return of licences

~~— (1) This regulation applies if a licence is produced to a licensing authority or given to the authority by a DGO or a police officer.~~

~~— (2) If the licence has not been cancelled, is not suspended and has not been varied, the licensing authority must return the licence to the licensee.~~

~~— (3) If the licence has been suspended, the suspension has ended and a replacement licence is not issued, the licensing authority must return the licence to the licensee.~~

~~— (4) If the licence has been varied, the variation is recorded on the licence and a replacement licence is not issued, the licensing authority must return the licence to the licensee.~~

~~— (5) However, if the licence period has ended, the licensing authority is not required to return the licence to the licensee.~~

Division 7 Cancellation, suspension and variation

250. Terms used in this Division

~~— In this Division —~~

~~— *licence* means a dangerous goods driver licence or dangerous goods vehicle licence;~~

~~— *licensee* means the holder of a licence.~~

251. Cancellation, suspension and variation in dangerous situations

~~— A licensing authority must cancel, suspend or vary a licence granted by it if the authority reasonably believes that —~~

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- ~~———— (a) a ground exists to cancel, suspend or vary the licence;
and~~
- ~~———— (b) it is necessary to do so to reduce, eliminate or avert any
risk to people, property or the environment from
dangerous goods in a dangerous situation.~~

252. Cancellation and suspension giving effect to court orders

- ~~———— A licensing authority must cancel or suspend a licence granted
by it if the licensee is prohibited by a court order from
involvement in the transport of dangerous goods by road.~~

253. Variation of licences on application

- ~~———— (1) This regulation applies if —~~
 - ~~———— (a) an application is made to vary a licence; and~~
 - ~~———— (b) the application is made by the licensee and has the
licence with it.~~
- ~~———— (2) A licensing authority may vary the licence in accordance with
the application.~~

**254. Cancellation, suspension and variation in other
circumstances**

- ~~———— (1) This regulation applies if —~~
 - ~~———— (a) a licensing authority considers that those requirements
are a ground exists to cancel, suspend or vary a licence
granted by it (the **proposed action**); and~~
 - ~~———— (b) none of regulations 251, 252 and 253 applies to the
proposed action.~~
- ~~———— (2) The licensing authority must give to the licensee a written notice
that —~~
 - ~~———— (a) states what the proposed action is; and~~
 - ~~———— (b) if the proposed action is to suspend the licence — states
what the proposed suspension period is; and~~

- ~~—— (c) if the proposed action is to vary the licence — sets out the proposed variation; and~~
- ~~—— (d) sets out the ground for the proposed action; and~~
- ~~—— (e) outlines the facts and other circumstances forming the basis for the ground; and~~
- ~~—— (f) invites the licensee to state in writing, within a specified period of at least 28 days after the day on which the notice is given to the licensee, why the proposed action should not be taken.~~
- ~~—— (3) If, after considering any written statement made within the specified period, the licensing authority reasonably believes that a ground exists to take the proposed action, the authority may —~~
 - ~~—— (a) cancel or vary the licence; or~~
 - ~~—— (b) suspend the licence for a period of not longer than 12 months (except if the suspension is to give effect to a court order specifying a longer period of suspension); or~~
 - ~~—— (c) if the proposed action is to vary the licence in a specified way — vary the licence in that way.~~
- ~~—— (4) The licensing authority may withdraw a suspension before the suspension is due to expire if it reasonably believes that it is appropriate to do so.~~

~~255. When cancellation, suspension and variation take effect~~

- ~~—— The cancellation, suspension or variation of a licence by a licensing authority takes effect on —~~
- ~~—— (a) the day on which the licensee is given written notice by the licensing authority of the cancellation, suspension or variation and of the reasons for the cancellation, suspension or variation; or~~
- ~~—— (b) a later day specified in the notice.~~

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Part II Licensing, registration, powers and offences

Division 7 Cancellation, suspension and variation

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~~256. When licences taken to be suspended~~

~~(1) A person's dangerous goods driver licence is taken to be suspended if the person's driver licence has no effect.~~

~~(2) A person's dangerous goods vehicle licence for a road vehicle is taken to be suspended if the road vehicle is not registered.~~

Part 18—Insurance

257.—Duty on owners

- ~~(1) The owner of a road vehicle must not use the vehicle, or permit it to be used, to transport a placard load unless—~~
- ~~(a) the use of the vehicle is covered by a policy of insurance, or other form of indemnity, for a sum that is at least \$5 000 000, in respect of—~~
- ~~(i) personal injury, death, property damage and other damage (except consequential economic loss) arising out of fire, explosion, leakage or spillage of dangerous goods in, on or from the vehicle or a container transported in or on the vehicle; and~~
- ~~(ii) costs incurred by or on behalf of a Commonwealth, State or Territory government authority in a clean-up resulting from such fire, explosion, leakage or spillage;~~
- ~~or~~
- ~~(b) the owner has an approval given under regulation 260 in relation to the vehicle.~~
- ~~Penalty: a fine of \$10 000.~~
- ~~(2) Each load-bearing vehicle, whether or not a motor vehicle and whether or not it is being used in combination with another vehicle, is a vehicle for the purposes of subregulation (1).~~

258.—Duty on prime contractors

- ~~(1) A prime contractor must not use a road vehicle to transport a placard load unless—~~
- ~~(a) the use of the vehicle is covered by a policy of insurance, or other form of indemnity, for a sum that is at least \$5,000,000, in respect of—~~

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- ~~_____ (i) personal injury, death, property damage and other damage (except consequential economic loss) arising out of fire, explosion, leakage or spillage of dangerous goods in, on or from the vehicle or a container transported in or on the vehicle; and~~
- ~~_____ (ii) costs incurred by or on behalf of a Commonwealth, State or Territory government authority in a clean-up resulting from such fire, explosion, leakage or spillage;~~
- ~~_____ or~~
- ~~_____ (b) the prime contractor has an approval given under regulation 260 in relation to the vehicle.~~
- ~~_____ Penalty: a fine of \$10 000.~~
- ~~_____ (2) Each load bearing vehicle, whether or not a motor vehicle and whether or not it is being used in combination with another vehicle, is a vehicle for the purposes of subregulation (1).~~

~~259. Requiring evidence of insurance etc.~~

- ~~_____ (1) The Chief Officer may, by written notice, require the owner of a road vehicle used to transport a placard load, or a prime contractor responsible for the condition of the road vehicle, to produce _____~~
- ~~_____ (a) written evidence that the vehicle is covered by a policy of insurance or other form of indemnity in accordance with regulation 257(1)(a) or 258(1)(a); or~~
- ~~_____ (b) an approval given under regulation 260 in relation to the road vehicle.~~
- ~~_____ (2) The owner or prime contractor must produce the evidence or approval to the Chief Officer within 14 days after the day on which the notice is given to the owner or prime contractor.~~
- ~~_____ Penalty: a fine of \$3 000.~~

~~260. Approvals insurance~~

- ~~— (1) The owner of a road vehicle used to transport a placard load, or a prime contractor responsible for the condition of the road vehicle, may make an application in accordance with regulation 194 to use the vehicle even if the vehicle is not covered by a policy of insurance or other form of indemnity in accordance with regulation 257(1)(a) or 258(1)(a).~~
- ~~— (2) If the Chief Officer is satisfied that the owner or prime contractor is adequately capable of self insurance for the purposes of regulation 257(1)(a) or 258(1)(a), the Chief Officer may give written approval for the use of the road vehicle.~~
- ~~— (3) An approval given under subregulation (2) may be given by the Chief Officer —~~
 - ~~— (a) for a single use or for a period of not longer than 3 years; and~~
 - ~~— (b) subject to any other condition for the purposes of regulation 257(1)(a) or 258(1)(a).~~

Part 19—Mutual recognition

Division 1—Recommendations by Chief Officer and corresponding authorities

261.—Recommendations by Chief Officer

- ~~— (1) This regulation applies if the Chief Officer considers that a ground exists for a corresponding authority to do any of the following (the *proposed action*)—~~
 - ~~— (a) revoke or vary a corresponding determination;~~
 - ~~— (b) cancel or vary a corresponding exemption or corresponding approval;~~
 - ~~— (c) cancel, suspend or vary a corresponding dangerous goods driver licence or corresponding dangerous goods vehicle licence.~~
- ~~— (2) The Chief Officer may recommend, in writing, that the corresponding authority take the proposed action.~~
- ~~— (3) The Chief Officer must provide written reasons to the corresponding authority for the recommendation.~~
- ~~— (4) If the recommendation is about a determination, exemption or approval that has effect in one or more other participating jurisdictions, the Chief Officer must also refer the recommendation to CAP.~~

262.—Recommendations by corresponding authorities

- ~~— (1) In this regulation—~~
 - ~~— *exemption* does not include an exemption granted by the Minister.~~
- ~~— (2) This regulation applies if a corresponding authority recommends to the Chief Officer in writing that the Chief Officer do any of the following—~~

- ~~— (a) — revoke or vary a determination;~~
- ~~— (b) — cancel or vary an exemption or approval;~~
- ~~— (c) — cancel, suspend or vary a dangerous goods driver licence or dangerous goods vehicle licence.~~
- ~~— (3) — If the recommendation is about a determination, exemption or approval that has effect in one or more other participating jurisdictions, the Chief Officer need not take any action on the recommendation until CAP has considered the recommendation.~~
- ~~— (4) — In any other case, the Chief Officer must have regard to the recommendation.~~

**Division 2 — Mutual recognition of determinations,
exemptions, approvals and licences**

263. — Corresponding determinations

- ~~— (1) — This regulation applies to a determination made by a corresponding authority if —~~
 - ~~— (a) — the determination is made under a provision of the law of the other jurisdiction corresponding to a provision (the relevant to the category of licence applied for *provision*) of any of the following regulations —~~

~~*[Section 15 amended: No. 56 of 1995 s. 37; No. 4 of 2002 s. 6; No. 58 of 2010 s. 50.]*~~

16. Yard manager's ~~— (i) — regulation 17 (Determinations — dangerous goods);~~
- ~~— (ii) — regulation 18 (Determinations — packagings);~~
 - ~~— (iii) — regulation 19 (Determinations — vehicles, routes, areas, times etc.);~~
- ~~— and~~
- ~~— (b) — the determination has effect in the other jurisdiction; and~~

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Part 19 Mutual recognition

Division 2 Mutual recognition of determinations, exemptions, approvals
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~~—————(c) CAP has decided that the determination should have effect in all participating jurisdictions or participating jurisdictions including this State, and CAP has not reversed the decision.~~

~~————(2) The determination has effect in this State as if it were a determination made by the Chief Officer under the relevant provision.~~

264. Corresponding exemptions

~~————(1) This regulation applies to an exemption granted by a corresponding authority if —~~

~~—————(a) the exemption is granted from compliance with a provision of the law of the other jurisdiction corresponding to a provision (the **relevant provision**) of these regulations; and~~

~~—————(b) the exemption has effect in the other jurisdiction; and~~

~~—————(c) CAP has decided that the exemption should have effect in all participating jurisdictions or participating jurisdictions including this State, and CAP has not reversed the decision.~~

~~————(2) The exemption has effect in this State as if it were an exemption granted by the Chief Officer from compliance with the relevant provision.~~

~~————(3) Despite subregulation (2), an exemption that has effect under that subregulation ceases to have effect 10 years after the day on which CAP decided that the exemption should have effect in all participating jurisdictions or participating jurisdictions including this State.~~

265. Corresponding approvals

~~————(1) This regulation applies to an approval given in another participating jurisdiction if —~~

- ~~— (a) the approval is given under a provision of the law of the other jurisdiction corresponding to a provision (the **relevant provision**) of any one of the following regulations—~~
- ~~— (i) regulation 15 (Approvals—tests and training courses for drivers);~~
- ~~— (ii) regulation 56 (Approvals—packaging designs);~~
- ~~— (iii) regulation 59 (Approvals—overpacks);~~
- ~~— (iv) regulation 137 (Approvals—Type II segregation devices);~~
- ~~— (v) regulation 138 (Approvals—methods of segregation);~~
- ~~— (vi) regulation 162 (Approvals—emergency information);~~
- ~~— (vii) regulation 260 (Approvals—insurance);~~
- ~~— and~~
- ~~— (b) the approval has effect in the other jurisdiction; and~~
- ~~— (c) CAP has decided that the approval should have effect in all participating jurisdictions or participating jurisdictions including this State, and CAP has not reversed the decision.~~
- ~~— (2) The approval has effect in this State as if it were an approval given by the Chief Officer under the relevant provision.~~

266.—Corresponding licences

- ~~— (1) This regulation applies to a licence, granted for road transport in another participating jurisdiction if—~~
- ~~— (a) the licence is granted under a provision of the law of the other jurisdiction corresponding to a provision (the **relevant provision**) of either of the following regulations—~~

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- ~~_____ (i) regulation 222 (Grant of dangerous goods driver
licences);~~
- ~~_____ (ii) regulation 232 (Grant of dangerous goods
vehicle licences);~~
- ~~_____ and~~
- ~~_____ (b) the licence has effect in the other jurisdiction.~~
- ~~_____ (2) Except for circumstances that do not exist in this State, the
licence has effect in this State as if it were a licence granted by
the Chief Officer under the relevant provision.~~

Part 20—Reconsideration and review of decisions

267.—Application of Part

~~(1) This Part applies to the following decisions made by the Chief Officer—~~

- ~~(a) a decision, under the Act Part 4, to refuse to grant an exemption from compliance with a provision of these regulations, to cancel such an exemption, to impose a new condition or to vary or cancel a condition of such an exemption;~~
- ~~(b) a decision under regulation 15 to approve or not approve a test or training course for drivers of road vehicles transporting dangerous goods;~~
- ~~(c) a decision under regulation 56 to approve or not approve a design for a packaging;~~
- ~~(d) a decision under regulation 59 to approve or not approve a method of preparing an overpack;~~
- ~~(e) a decision under regulation 60(1) to authorise or not authorise a body or any other person to give approvals under regulations 56 and 59;~~
- ~~(f) a decision under regulation 60(5) to withdraw an authorisation given under regulation 60;~~
- ~~(g) a decision under regulation 137 to approve or not approve a design for a segregation device;~~
- ~~(h) a decision under regulation 138 to approve or not approve a method of segregation;~~
- ~~(i) a decision under regulation 162 to approve or not approve emergency information;~~
- ~~(j) a decision under regulation 184 to approve or not approve a person to be an approved responder to emergency;~~
- ~~(k) a decision under regulation 208, 210 or 211 to cancel, vary or refuse to vary an approval;~~

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- ~~———— (l) a decision under regulation 222 or 232 to grant or refuse to grant a licence;~~
- ~~———— (m) a decision under regulation 224 or 234 to renew or refuse to renew a licence;~~
- ~~———— (n) a decision under regulation 242 to issue or refuse to issue a replacement licence;~~
- ~~———— (o) a decision under regulation 251, 253 or 254 to cancel, suspend, vary or refuse to vary a licence;~~
- ~~———— (p) a decision under regulation 260 to approve or not approve the use of a vehicle that is not covered by a policy of insurance or other form of indemnity.~~
- ~~———— (2) This Part applies to the following decisions made by an authorised body —~~
 - ~~———— (a) a decision under regulation 56 to approve or not approve a design for a packaging;~~
 - ~~———— (b) a decision under regulation 59 to approve or not approve a method of preparing an overpack.~~
- ~~———— (3) This Part applies to the following decisions made by a licensing authority other than the Chief Officer —~~
 - ~~———— (a) a decision under regulation 222 or 232 to grant or refuse to grant a licence;~~
 - ~~———— (b) a decision under regulation 224 or 234 to renew or refuse to renew a licence;~~
 - ~~———— (c) a decision under regulation 242 to issue or refuse to issue a replacement licence;~~
 - ~~———— (d) a decision under regulation 251, 253 or 254 to cancel, suspend, vary or refuse to vary a licence.~~

~~268. Who may apply for reconsideration of decisions~~

- ~~———— A person aggrieved by a decision may apply to the Chief Officer for reconsideration of the decision.~~

269. Applications for reconsideration

~~(1) An application for and grant of must be made within~~

~~(1) Subject to this Act, a person who applies to the Commissioner in the approved form for a yard manager's licence and pays to the Commissioner the prescribed fee therefor shall be granted such a licence upon satisfying the Commissioner —~~

~~(a) of his identity; and~~

~~(aa) that he is of or over the age of 18 years; and~~

~~(b) that he is a person of good character and repute and a fit and proper person to hold such a licence; and~~

~~(c) that he understands fully the duties and obligations imposed by this Act on dealers, yard managers and salespersons; and~~

~~(d) that he is employed by a dealer who is licensed under this Act or that such a dealer is prepared to employ him as a yard manager.~~

~~[(2) deleted]~~

~~[Section 16 amended: No. 74 of 1975 s. 4; No. 4 of 2002 s. 7 and 31(4); No. 73 of 2003 s. 23(3); No. 58 of 2010 s. 40 and 50.]~~

17. Salesperson's licence, application for and grant of

~~(1) Subject to this Act, a person who applies to the Commissioner in the approved form for a salesperson's licence and pays to the Commissioner the prescribed fee therefor shall be granted such a licence upon satisfying the Commissioner —~~

~~(a) of his identity; and~~

~~(aa) that he is of or over the age of 18 years; and~~

~~(b) that he is a person of good character and repute and a fit and proper person to hold such a licence; and~~

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(c) that he understands fully the duties and obligations imposed by this Act on salespersons and has sufficient knowledge of the duties and obligations so imposed on dealers and yard managers; and

(d) that he is employed by a dealer who is licensed under this Act or that such a dealer is prepared to employ him as a salesperson.

[~~(2) deleted~~]

[Section 17 amended: No. 74 of 1975 s. 5; No. 4 of 2002 s. 8 and 31(1) and (5); No. 73 of 2003 s. 23(3); No. 58 of 2010 s. 41 and 50.]

[17A. Deleted: No. 73 of 2003 s. 15.]

17B. Car market operator, registration as

(1) Subject to this Act, a person, not being a body corporate, who applies to the Commissioner in the approved form to be registered as a car market operator and pays to the Commissioner the prescribed fee therefor shall be so registered upon satisfying the Commissioner —

(a) of his identity; and

(b) that he is of or over the age of 18 years.

(2) Subject to this Act, 2 or more persons constituting a firm who apply to the Commissioner in the approved form to be registered as a car market operator and pay to the Commissioner the prescribed fee therefor shall be so registered upon satisfying the Commissioner —

(a) of their identity; and

(b) that each of them is of or over the age of 18 years.

(3) Subject to this Act, a body corporate which applies to the Commissioner in the approved form to be registered as a car market operator and pays to the Commissioner the prescribed

fee therefor shall be so registered upon satisfying the
Commissioner —

(a) of the identity of each of the persons concerned in the
management or conduct of the body corporate; and

(b) that each of those persons is of or over the age of
18 years.

(4) The Commissioner shall give a certificate of registration to —

(a) a person; or

(b) persons constituting a firm; or

(c) a body corporate,

that becomes registered under this section.

[Section 17B inserted as section 17A: No. 87 of 1981 s. 5;
amended: No. 56 of 1995 s. 37; renumbered as section 17B and
amended: No. 4 of 2002 s. 10; No. 58 of 2010 s. 50.]

**17C. Power to refuse registration under s. 17B or renewal of
registration**

(1) Despite anything in section 17B, the Commissioner may refuse
to register an applicant under that section if the Commissioner is
satisfied that a relevant person has done or omitted to do any
thing or engaged in any conduct that renders the applicant unfit
to be registered.

(2) Despite anything in section 19(3), the Commissioner may refuse
to renew the registration of a car market operator if the
Commissioner is satisfied as mentioned in subsection (1).

(3) Subsections (1) and (2) are permissive only and do not impose a
duty on the Commissioner to make enquiries concerning a
relevant person.

(4) In this section —

relevant person —

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(a) means the applicant, where a person, not being a body corporate, has applied under section 17B(1) or 19(3), as the case may be; and

(b) means any person —

(i) by which the firm is constituted; or

(ii) who is concerned in the management or conduct of a body corporate by which the firm is constituted,

where persons constituting a firm have applied under section 17B(2) or 19(3), as the case may be; and

(c) means any person concerned in the management or conduct of the body corporate where a body corporate has applied under section 17B(3) or 19(3), as the case may be.

[Section 17C inserted: No. 4 of 2002 s. 11; amended: No. 58 of 2010 s. 50.]

17D. Person cannot be both registered car market operator and licensee

(1) Registration of a person as a car market operator automatically —

(a) cancels a licence held by the person; or

(b) ceases to have effect if the person becomes the holder of a licence.

(2) Subsection (1) applies whether the registration or licence is granted to, or held by, a person solely or jointly as a member of a firm.

[Section 17D inserted: No. 4 of 2002 s. 11.]

18. Grounds for refusing to grant or renew authorisation

(1) The Commissioner may refuse an application by a person, or persons constituting a firm, for the grant or renewal of an

authorisation, if, in the opinion of the Commissioner, there is any ground on which an allegation could be made under section 20(1) —

(a) in respect of the person or persons; or

(b) in respect of a person concerned in the management or conduct of a body corporate that is the applicant or one of the applicants.

(1A) If the Commissioner is considering making an adverse decision in relation to the application, the Commissioner must give the applicant the opportunity to give additional information in relation to that application.

[(1a), (1b) deleted]

(1c) Subsection (1) is—(a)—28 days after the day on which the person was informed of the decision by the Chief Officer; or

(b) a longer period allowed by the Chief Officer, either before or after the end of the 28 days.

(2) The application must be in writing and set out the grounds on which reconsideration of the decision is sought.

270.—Chief Officer to reconsider decisions

(1) Within 28 days after receiving the application, the Chief Officer must reconsider the decision, and confirm, revoke or vary the decision.

(2) The Chief Officer must inform the applicant in writing of the result of the reconsideration and of the reasons for the result.

Part 21 — Infringement notices

~~271. — Infringement notice offences and modified penalties~~

- ~~— (1) — The offences created by the provisions of these regulations specified in Schedule 1 column 2 are prescribed for the purposes of the Act section 56(2).~~
- ~~— (2) — For the purposes of the Act section 56(4), the modified penalty prescribed for the offence created by the provision of these regulations specified in column 2 of an item in Schedule 1 is —~~
 - ~~— (a) — for an individual — the amount specified in column 3 of that item;~~
 - ~~— (b) — for a body corporate — the amount specified in column 4 of that item.~~

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Part 22 — Fees

272. — Prescribed fees

~~The fees payable under these regulations are prescribed in the Table to this regulation.~~

Table

Item	Provision under which fee payable	Fee (\$)
1.	Regulation 194(1)(b)	260
2.	Regulation 218(2)(e)	60
3.	Regulation 223(2)(e)	60
4.	Regulation 230(4)	375
5.	Regulation 233(3)	375

~~[Regulation 272 amended in Gazette 16 Jun 2009 p. 2194.]~~

~~Part 23—Transitional~~

~~273.—Terms used in this Part~~

~~—In this Part—~~

~~—*commencement day* means the day on which the Act Part 3 comes into operation;~~

~~—*repealed Act* means the *Dangerous Goods (Transport) Act 1998* repealed by the Act;~~

~~—*repealed regulations* means the *Dangerous Goods (Transport) (Road and Rail) Regulations 1999* repealed by the Act.~~

~~274.—Lawful conduct under repealed regulations~~

~~—(1) A person does not commit an offence against the Act or these regulations in relation to the transport of dangerous goods by road or rail if—~~

~~—(a) the transport takes place before 1 January 2010; and~~

~~—(b) the person transports the goods in accordance with the repealed Act and the repealed regulations.~~

~~—(2) Where an exemption or approval that is continued in effect under this Part does not have an expiry date, it expires immediately before the fifth anniversary of the commencement day.~~

~~—[Regulation 274 amended in Gazette 23 Jan 2009 p. 157.]~~

~~275.—Continuing effect of certain determinations~~

~~—(1) This regulation applies to a determination that—~~

~~—(a) was made under the repealed regulations; and~~

~~—(b) was in force in this State immediately before the commencement day; and~~

- ~~————— (c) — is a determination in respect of something that may be determined under a provision (the **relevant provision**) of any of the following regulations —~~
 - ~~————— (i) — regulation 17 (Determinations — dangerous goods);~~
 - ~~————— (ii) — regulation 18 (Determinations — packaging);~~
 - ~~————— (iii) — regulation 19 (Determinations — vehicles, routes, areas, times etc.).~~
- ~~————— (2) — The determination has effect for these regulations as if it were a determination made by the Chief Officer under the relevant provision.~~
- ~~————— (3) — Without limiting subregulation (2), the Chief Officer may record the determination in the register of determinations kept under regulation 23.~~

276. — Continuing effect of certain corresponding determinations

- ~~————— (1) — This regulation applies to a determination (however described) that —~~
 - ~~————— (a) — was made under a law regulating the transport of dangerous goods by road or rail made by another State or a Territory that has passed or has indicated that it intends to pass a corresponding law; and~~
 - ~~————— (b) — was in addition to force in the other powers State or the Territory immediately before the commencement day; and~~
 - ~~————— (c) — is a determination about something that may be determined under a provision of the corresponding law of the other State or the Territory (the **corresponding provision**) that corresponds to a provision of a regulation mentioned in regulation 275(1)(c).~~
- ~~————— (2) — Except for circumstances that do not exist in this State, the determination has effect for these regulations as if it were a~~

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~~determination made by a corresponding authority under the corresponding provision.~~

277. Continuing effect of certain exemptions

- ~~(1) This regulation applies to an exemption that —
 - ~~(a) was granted under the repealed Act; and~~
 - ~~(b) was in force in this State immediately before the commencement day; and~~
 - ~~(c) is an exemption from compliance with a provision of the repealed regulations corresponding to a provision (the **relevant provision**) of these regulations.~~~~
- ~~(2) Subject to regulation 274(2), the exemption has effect for these regulations as if it were an exemption granted by the Chief Officer from compliance with the relevant provision.~~
- ~~(3) Without limiting subregulation (2), the Chief Officer may record the exemption in the register of exemptions kept under the Act section 23(8).~~

278. Continuing effect of certain corresponding exemptions

- ~~(1) This regulation applies to an exemption (however described) that —
 - ~~(a) was granted under a law regulating the transport of dangerous goods by road or rail made by another State or a Territory that has passed or has indicated that it intends to pass a corresponding law; and~~
 - ~~(b) was in force in the other State or the Territory immediately before the commencement day; and~~
 - ~~(c) is an exemption from compliance with a provision of the law of the other State or the Territory that corresponds to a provision of the corresponding law (the **“corresponding provision”**).~~~~

- ~~— (2) Except for circumstances that do not exist in this State, the exemption has effect for these regulations as if it were an exemption granted by a corresponding authority from compliance with the corresponding provision.~~

279. Continuing effect of certain approvals

- ~~— (1) This regulation applies to an approval that —~~
- ~~— (a) was given under the repealed regulations; and~~
 - ~~— (b) was in force in this State immediately before the commencement day; and~~
 - ~~— (c) is an approval of something that may be approved under a provision (the *relevant provision*) of any of the following regulations —~~
 - ~~— (i) regulation 15 (Approvals — tests and training courses for drivers);~~
 - ~~— (ii) regulation 56 (Approvals — packaging designs);~~
 - ~~— (iii) regulation 59 (Approvals — overpacks);~~
 - ~~— (iv) regulation 137 (Approvals — Type II segregation devices);~~
 - ~~— (v) regulation 138 (Approvals — methods of segregation);~~
 - ~~— (vi) regulation 162 (Approvals — emergency information).~~
- ~~— (2) Subject to regulation 274(2), the approval has effect for these regulations as if it were an approval given by the Chief Officer under the relevant provision.~~
- ~~— (3) Without limiting subregulation (2), the Chief Officer may record the approval in the register of approvals kept under regulation 202.~~

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280. Continuing effect of certain corresponding approvals

~~(1) This regulation applies to an approval (however described) that the Commissioner has to refuse an application. —~~

~~[(2) deleted]~~

~~[Section 18 amended: No. 49 of 1979 s. 7; No. 87 of 1981 s. 6; No. 4 of 2002 s. 12; No. 55 of 2004 s. 767; No. 58 of 2010 s. 42 and 50.]~~

~~18A. Conditions etc. on (a) — was given under a law regulating the transport of dangerous goods by road or rail made by another State or a Territory that has passed or has indicated that it intends to pass a corresponding law; and~~

~~(b) was in force in the other State or the Territory immediately before the commencement day; and~~

~~(c) is an approval of something that may be approved under a provision of the corresponding law of the other State or the Territory (the **corresponding provision**) that corresponds to a provision of a regulation mentioned in regulation 279(1)(c).~~

~~(2) Except for circumstances that do not exist in this State, the approval has effect for these regulations as if it were an approval given by a corresponding authority under the corresponding provision.~~

281. Continuing effect of certain licences

~~(1) The Commissioner may, when granting This regulation applies to a licence, attach any condition or restriction to the licence.~~

~~(2) The Commissioner may at any time decide that —~~

~~(a) a new condition or restriction shall be attached to an existing licence; or~~

~~(b) a condition or restriction attached to an existing (a) — was granted under the repealed regulations; and~~

~~_____ (b) was in force in this State immediately before the
commencement day; and~~

~~_____ (e) is a licence shall be amended or removed.~~

~~_____ (3) A decision under subsection (2) does not take effect until a day
determined by the Commissioner.~~

~~_____ (4) The day so determined cannot be before the Commissioner
has —~~

~~_____ (a) notified the licensee of the decision; and~~

~~_____ (b) given the licensee a reasonable opportunity to make
submissions on it either orally or in writing.~~

~~_____ (5) The Commissioner may determine that subsection (4) does not
apply in the case of a decision to remove a condition or
restriction.~~

~~_____ [Section 18A inserted: No. 4 of 2002 s. 13; amended: No. 55 of
2004 s. 768; No. 58 of 2010 s. 50.]~~

19. Duration and renewal of authorisations

~~_____ (1) Subject to this Act, an authorisation shall be valid and effectual
for the purposes of this Act for such period not exceeding the
period prescribed as shall be stated therein.~~

~~_____ (2) When the Commissioner grants an authorisation, other than by
way of renewal, the authorisation ~~that~~ may be granted for such
period, not exceeding the period prescribed under
subsection (1), as the Commissioner thinks fit. ~~under either of
the following provisions (the *relevant provision*) —~~~~

~~_____ (3) If the holder of an authorisation applies to the Commissioner for
the renewal of that authorisation, pays the appropriate
prescribed fee and, in the case of an expired authorisation, pays
any amount prescribed by way of penalty for a late
application —~~

~~_____ (a) not more than 2 months before the date on which the
authorisation expires; and~~

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- ~~(b) not more than 28 days after the date on which the
authorisation——(i)
——regulation 222 (Grant of dangerous
goods driver licence);~~
- ~~——(ii) regulation 232 (Grant of dangerous goods
vehicle licence).~~
- ~~(2) The licence has effect for these regulations as if it were a licence
granted by the Chief Officer under the relevant provision.~~
- ~~(3) Without limiting subregulation (2), the Chief Officer may
record the licence in the relevant register of licences kept under
regulation 245.~~
- ~~(4) A licence that has effect under subregulation (2) expires,
the Commissioner may renew the authorisation for a further
prescribed period.~~
- ~~(3a) The renewal of an authorisation shall take effect on the day
immediately succeeding the day on which the authorisation
when it would have expired had it not been renewed or shall be
taken for all purposes to have taken effect on the day
immediately succeeding the day on which the previous
authorisation expired, as the case requiresunder the repealed
regulations.~~
- ~~(3b) Without limiting the application of section 18 and subsection (5)
of this section, the Commissioner shall not renew an
authorisation unless the applicant satisfies the requirements of
section 15, 16, 17 or 17B, as the case requires.~~
- ~~(4) Subject to subsection (3a), an authorisation shall cease to be
valid and effectual for the purposes of this Act —~~
- ~~(a) upon the expiration thereof or, if it has been renewed,
upon the expiration of the period for which it has been
renewed; and~~
- ~~(aa) if it is surrendered under section 19A; and~~

(b) during any period in which the holder or any joint holder thereof is disqualified from holding or obtaining such an authorisation.

(5) A person is not entitled to be granted an authorisation at any time during which he is disqualified from holding or obtaining such an authorisation.

[Section 19 amended: No. 74 of 1975 s. 6; No. 87 of 1981 s. 7; No. 56 of 1995 s. 34; No. 10 of 1998 s. 53(1); No. 4 of 2002 s. 14; No. 8 of 2009 s. 94(2); No. 58 of 2010 s. 50.]

19A. Surrender of authorisation

(1) The holder of an authorisation may, by notice in writing given to the Commissioner and accompanied by the relevant authorisation, surrender that authorisation.

(2) If an authorisation is surrendered, the Commissioner shall refund to the former holder of the authorisation so much of the fee last paid for the authorisation as the Commissioner, on application by the former holder of the authorisation, specifies as appropriate to be refunded.

(3) Despite the surrender by a person of an authorisation, this Act applies, for the purpose of enabling the person to be investigated or otherwise dealt with for a matter arising before the surrender, as if the authorisation had not been surrendered.

[Section 19A inserted: No. 10 of 1998 s. 53(2); amended: No. 4 of 2002 s. 15; No. 55 of 2004 s. 769; No. 58 of 2010 s. 50.]

282. Continuing effect of certain corresponding licences

(1) This regulation applies to a licence (however described) that

(a) was granted under a law regulating the transport of dangerous goods by road made by another State or a Territory that has passed or has indicated that it intends to pass a corresponding law; and

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- ~~_____ (b) was in force in the other State or the Territory immediately before the commencement day; and~~
- ~~_____ (c) is a licence that may be granted under a provision of the corresponding law of the other jurisdiction (the **corresponding provision**) that corresponds to a provision mentioned in regulation 281(1)(c).~~

~~_____ (2) _____ Except for circumstances that do not exist in this State, the licence has effect for these regulations as if it were 20. Allegations Commissioner may make to SAT~~

~~_____ (1) The Commissioner may allege to the State Administrative Tribunal that a person —~~

~~_____ (a) has contravened or failed to comply with —~~

~~_____ (i) a provision of this Act; or~~

~~_____ (ii) an authorisation or a condition or restriction attached to an authorisation;~~

~~_____ or~~

~~_____ (b) has done or omitted to do any thing, or engaged in any conduct, that renders the person unfit —~~

~~_____ (i) to be the holder, or a joint holder, of an authorisation; or~~

~~_____ (ii) to be concerned in the management or conduct of a body corporate that is the holder or a joint holder of an authorisation.~~

~~_____ (2) The Commissioner may allege to the State Administrative Tribunal that a person, or the persons constituting a firm, should be disqualified from —~~

~~_____ (a) holding a dealer's licence of a specified category; or~~

~~_____ (b) being registered as a car market operator,~~

~~_____ on the grounds that the person or persons has or have —~~

~~_____ (c) insufficient material and financial resources to enable the person or the firm, as the case may be, to comply~~

with the requirements of this Act so far as those requirements are relevant to —

(i) the category of licence held by the person or persons; or

(ii) registration as a car market operator;

or

(d) ceased to carry on the business of a dealer or a car market operator.

(3) The Commissioner may allege to the State Administrative Tribunal that an authorisation of premises under section 20E or 21A should be revoked on the grounds that the premises do not comply with all relevant requirements of written laws relating to planning that apply in respect of the premises.

[Section 20 inserted: No. 4 of 2002 s. 16; amended: No. 55 of 2004 s. 770; No. 58 of 2010 s. 50; No. 23 of 2014 s. 27.]

20A. Orders SAT may make on s. 20(1) allegation

(1) In a proceeding commenced by an allegation under section 20(1) the State Administrative Tribunal may, if the matter alleged is established, make any order provided for by this section.

(2) An order may be made disqualifying a person from holding or obtaining, whether solely or jointly, any authorisation or any specified kind of authorisation, whether or not at the time when the order is made that person is the holder of an authorisation.

(3) An order may be made disqualifying a person from being concerned in the management or conduct of a body corporate that is the holder, or a joint holder, of an authorisation, whether or not at the time when the order is made the person is so concerned.

(4) Subject to section 20B, an order may be made that a person pay a penalty not exceeding —

r. 20B

(a) \$1 500 in the case of a person who is or was the holder of a yard manager's licence or a salesperson's licence; or

(b) \$5 000 in the case of a person who is or was the holder of a dealer's licence or registered as a car market operator.

(5) An order may be made —

(a) attaching conditions or restrictions to an authorisation; or

(b) amending a condition or restriction attached to an authorisation.

(6) An order may be made reprimanding or cautioning a person.

(7) An order under subsection (2) or (3) may be made to have effect —

(a) for a period named in the order; or

(b) until a further order is made by the State Administrative Tribunal.

[Section 20A inserted: No. 4 of 2002 s. 16; amended: No. 55 of 2004 s. 771.]

20B. Limitations on s. 20A(4) powers

(1) The powers described in section 20A(4) and the powers of a court to impose a penalty for an offence against this Act shall not both be exercised in respect of an act, omission or conduct of a person that is substantially the same.

(2) A penalty that exceeds the relevant maximum fine cannot be imposed under the powers described in section 20A(4).

(3) In subsection (2) —

relevant maximum fine means, if the penalty is to be imposed in respect of an act, omission or conduct that constitutes an

offence against this Act, the maximum fine that could be imposed by a court for that offence.

[Section 20B inserted: No. 4 of 2002 s. 16.]

20BA. Orders SAT may make on s. 20(2) or (3) allegation

In a proceeding commenced by an allegation under section 20(2) or (3) the State Administrative Tribunal may, if the grounds for making the order are established, make the order that it is alleged should be made.

[Section 20BA inserted: No. 55 of 2004 s. 772.]

20C. SAT may suspend authorisation in some cases

(1) Where the State Administrative Tribunal makes an order against the holder of an authorisation and payment is not made in accordance with the order or the order is otherwise not complied with or is breached, the State Administrative Tribunal may suspend the authorisation until the payment is made, or for such period or upon such event occurring as the State Administrative Tribunal thinks fit.

(2) The power conferred on the State Administrative Tribunal by subsection (1) is in addition to, and does not derogate from, the powers conferred on it by the State Administrative Tribunal Act 2004.

[Section 20C inserted: No. 55 of 2004 s. 772.]

20D. Disqualified persons, offences as to

[(1) deleted]

(2) A dealer or a car market operator shall not, during the period when a person is disqualified under an order described in section 20A(2) or (3) —

(a) employ the person in any capacity on authorised premises; or

(b) allow the person to frequent such premises,

r. 20E

without the prior consent of the Commissioner.

Penalty: \$5 000.

[Section 20D inserted: No. 4 of 2002 s. 16; amended: No. 55 of 2004 s. 773; No. 58 of 2010 s. 50.]

20E. Dealer's licence, applications for to specify premises etc.

(1) An application for a dealer's licence must specify each of the premises at which the applicant proposes to carry on business under the ~~granted by a corresponding~~ authority of the licence.

[(2) ~~deleted~~]

(3) If an application complies with subsection (1) in relation to any premises, the Commissioner, if the Commissioner grants the application, shall authorise the holder of the licence to carry on business at the premises under the authority of the licence.

[(4) ~~deleted~~]

(5) A dealer's licence shall include particulars of all premises authorised under this section.

[Section 20E inserted: No. 4 of 2002 s. 16; amended: No. 38 of 2005 s. 15; No. 58 of 2010 s. 50; No. 23 of 2014 s. 28.]

20FA. Authorisation of premises does not affect planning laws

An authorisation given by the Commissioner under section 20E in respect of any premises does not affect any relevant requirements of written laws relating to planning that apply to those premises.

[Section 20FA inserted: No. 23 of 2014 s. 29.]

20F. Changes in authorised premises

The Commissioner may at any time approve an alteration or addition to the particulars referred to in section 20E(5) on —

(a) the application of the holder of a licence; and

(b) payment of the prescribed fee.

[Section 20F inserted: No. 23 of 2014 s. 30.]

20G. Certificate for dealer's authorised premises, issue and display of

(1) The Commissioner shall issue a certificate to the holder of a dealer's licence for each premises that are included in the licence in accordance with section 20E(5).

(2) The certificate shall state that the holder is authorised under section 20E to carry on business at the premises under the authority of the licence.

(3) The holder of a licence shall cause a certificate issued under subsection (1) to be displayed in a conspicuous position on the premises to which the certificate applies.

Penalty: \$1 500.

[Section 20G inserted: No. 4 of 2002 s. 16; amended: No. 58 of 2010 s. 50.]

20H. Special occasions, permits for

(1) This section applies where —

(a) a special occasion is being, or is to be, held at a place for a limited period; and

(b) a licensed dealer wishes to carry on business in premises at the place in connection with the occasion.

(2) The dealer may apply to the Commissioner in writing for a temporary permit to carry on business as mentioned in subsection (1)(b).

(3) If such an application is made, and the prescribed fee is paid, the Commissioner may grant to the dealer a temporary permit to carry on business —

(a) at the premises; and

r. 21

(b) during the period; and

(c) subject to any conditions and restrictions,

specified in the permit.

(4) The Commissioner may, by notice in writing to the holder of a temporary permit, revoke the permit if the Commissioner considers that there is justification for doing so.

(5) The Commissioner shall retain a copy of each temporary permit issued and the copy is taken to form part of the register.

[Section 20H inserted: No. 4 of 2002 s. 16; amended: No. 58 of 2010 s. 50.]

[21.] Former section 21 deleted: No. 4 of 2002 s. 16.]

21. Dealer's premises and advertisements to show name and number

A person who carries on the business of a dealer shall cause the business name stated in his application for a licence and the number of the licence issued to him to appear —

(a) on a sign of reasonable dimensions affixed or erected at every premises at which he conducts the business of a dealer; and

(b) in every advertisement published by him or on his behalf.

Penalty: \$1 500.

[Section 21 inserted as section 21A: No. 74 of 1975 s. 9; renumbered as section 21: No. 4 of 2002 s. 17 and amended: No. 4 of 2002 s. 34.]

21A. Car market operator registration, application for to specify premises etc.

(1) An application for registration under section 17B as a car market operator must specify each of the premises the applicant

r. 21BA

proposes to provide for a car market under the authority of the registration.

[(2) deleted]

(3) If an application complies with subsection (1) in relation to any premises, the Commissioner, if the Commissioner grants the application, shall authorise the car market operator to provide the premises for a car market under the authority of the registration.

[(4) deleted]

(5) The registration of a person as a car market operator shall include particulars of all premises for which an authorisation is in force under this section.

[Section 21A inserted: No. 4 of 2002 s. 18; amended: No. 38 of 2005 s. 15; No. 58 of 2010 s. 50; No. 23 of 2014 s. 31.]

21BA. Authorisation of premises does not affect planning laws

An authorisation given by the Commissioner under section 21A in respect of any premises does not affect any relevant requirements of written laws relating to planning that apply to those premises.

[Section 21BA inserted: No. 23 of 2014 s. 32.]

21B. Changes in authorised premises

The Commissioner may at any time approve an alteration or addition to the particulars referred to in section 21A(5) on —

(a) the application of the registered person; and

(b) payment of the prescribed fee.

[Section 21B inserted: No. 23 of 2014 s. 33.]

r. 21C

21C. Certificate for car market operator's premises, issue and display of

- (1) The Commissioner shall issue to the registered person a certificate for each premises that are included in the registration of a car market operator in accordance with section 21A(5).
- (2) The certificate shall state that the person is authorised under section 21A to provide the premises for a car market under the authority of the registration.
- (3) The registered person shall cause a certificate issued under subsection (1) to be displayed in a conspicuous position on the premises to which the certificate applies.

Penalty: \$1 500.

[Section 21C inserted: No. 4 of 2002 s. 18; amended: No. 58 of 2010 s. 50.]

21D. Car market operator's premises and advertisements to show name and number

A person who is registered as a car market operator shall cause the business name stated in his application for registration and the number of the registration to appear —

- (a) on a sign of reasonable dimensions affixed or erected at premises while a car market is being conducted at those premises pursuant to the registration; and
- (b) in every advertisement published by him or on his behalf in relation to his business as a car market operator.

Penalty: \$1 500.

[Section 21D inserted as section 21C: No. 87 of 1981 s. 9; renumbered as section 21D and amended: No. 4 of 2002 s. 19 and 35.]

22. Review of certain decisions by SAT, applying for

- (1) Any person aggrieved by a reviewable decision may apply to the State Administrative Tribunal for a review of the decision.

(2) In subsection (1) —

person aggrieved means —

(a) a person who applies for the grant, or renewal of an authorisation; or

(b) a person who applies for —

(i) the authorisation of premises under section 20E or 21A; or

(ii) the grant of an approval under section 20F or 21B; or

(iii) the grant of a temporary permit under section 20H;

or

(c) a person whose authorisation or temporary permit under section 20H is affected by a reviewable decision;

reviewable decision means a decision of the Commissioner —

(a) refusing an application for —

(i) an authorisation; or

(ii) the renewal of an authorisation;

or

(b) refusing —

(i) to authorise premises under section 20E or 21A; or

(ii) to grant an approval under section 20F or 21B; or

(iii) to grant a temporary permit under section 20H;

or

(c) in exercise of the Commissioner's powers in relation to conditions and restrictions under section 18A or 20H; or

(d) revoking a temporary permit under section 20H(4); or

(e) refusing to approve of a change submitted to the Commissioner under section 23.

[Section 22 inserted: No. 55 of 2004 s. 774; amended: No. 58 of 2010 s. 43 and 50.]

22A. Licence or certificate of registration to be returned if cancelled etc.

- [Section 22A inserted: No. 74 of 1975 s. 11; amended: No. 87 of 1981 s. 11; No. 4 of 2002 s. 21 and 36; No. 55 of 2004 s. 775; No. 58 of 2010 s. 50.]

23. Changes to particulars on licence or registration, Commissioner to be notified etc.

- (1) Where a licence under section 15(2) or a registration under section 17B(2) is in force, 14 days before any change occurs in —

(a) the membership of the firm; or

(b) the person or persons concerned in the management and
conduct of any corporate member of the firm,

full particulars thereof shall be sent to the Commissioner by the
holder of the licence or the registered person, as the case may
require.

Penalty: \$2 000.

(2) Where a licence under section 15(3) or a registration under
section 17B(3) is in force, 14 days before any change occurs in
the persons concerned in the management and conduct of the
body corporate, full particulars thereof shall be sent to the
Commissioner by the holder of the licence or the registered
person, as the case may require.

Penalty: \$2 000.

(3) Upon receipt of the particulars of a change of the kind referred
to in subsection (1) or (2), the Commissioner may approve of or,
if the Commissioner is satisfied that there are reasons to do so,
refuse to approve of, all or any of the changes referred to in the
particulars so submitted.

[(4) deleted]

(5) Where the Commissioner refuses to approve of the changes
submitted pursuant to subsection (3) the Commissioner shall
notify the dealer or registered person, as the case may be, and
any other person affected by the decision of the refusal.

[Section 23 amended: No. 74 of 1975 s. 12; No. 87 of 1981
s. 12; No. 10 of 1998 s. 53(3)-(6); No. 4 of 2002 s. 22 and 37;
No. 58 of 2010 s. 44 and 50.]

24. Register of authorisations etc.; evidentiary provisions

(1) The Commissioner shall cause a register to be kept showing the
prescribed particulars and matters relating to —

(a) authorisations; and

(b) the holders of authorisations; and

(c) premises authorised under sections 20E and 21A.

(2) Any entry in the register is *prima facie* evidence of the facts thereby recorded and, where the name of a person is not recorded in the register, as a holder of an authorisation of any particular kind, there is a presumption that the person is not the holder of a valid authorisation of that kind.

(3) The holder of a salesperson's licence or a yard manager's licence shall give written notice to the Commissioner of any change in the address of the place of residence of the holder of that licence not later than 14 days after that change takes place.

Penalty: \$1 500.

(4) The Commissioner shall enter in the register details of any change notified under subsection (3).

(5) The register shall be open for inspection by any person, on payment of the prescribed fee, during normal office hours.

(6) A person may, on payment of the prescribed fee, obtain from the Commissioner a certificate —

(a) showing whether or not a person was the holder of any authorisation on a specified date or during a specified period; or

(b) as to any other matter appearing in the register.

(7) A certificate referred to in subsection (6) is admissible in proceedings as evidence of the matters stated in the certificate.

[Section 24 amended: No. 56 of 1995 s. 35; No. 4 of 2002 s. 23, 31(6) and 38; No. 58 of 2010 s. 45 and 50.]

Division 3 — Record-keeping and notification of authorities

[Heading inserted: No. 73 of 2003 s. 16.]

25. Register to be kept by licence holders etc.

- (1) Every dealer, not being a financier or car hire operator, shall keep or cause to be kept a register, in the prescribed form, at any authorised premises in respect of which the licence is issued; and shall record or cause to be recorded in that register the prescribed particulars of every transaction entered into, in the course of dealing at those premises.
- (1a) Where a financier or car hire operator carries on the business of selling vehicles to persons other than persons who become trade owners the financier or car hire operator shall, at the place at which he carries on that business, keep or cause to be kept a register in the form referred to in subsection (1) and shall record or enter therein such particulars as are required to be recorded or entered pursuant to that subsection.
- (2) A dealer, yard manager, financier or car hire operator shall produce the register kept pursuant to subsection (1) or (1a), as the case requires, for inspection, on demand, by any authorised officer, any member of the Police Force, or by a traffic inspector duly appointed for the district wherein the premises are situated.
- (2a) A person who is registered as a car market operator shall keep or cause to be kept a register, in the prescribed form, for any premises authorised under section 21A in relation to that registration, and shall record or cause to be recorded in that register the prescribed particulars of —
- (a) every vehicle offered, exposed or displayed for sale at the premises in the course of a car market conducted at the premises pursuant to the registration; and
- (b) where he is notified under subsection (2e) of the sale at the premises of a vehicle referred to in paragraph (a) of this subsection, that sale.
- (2b) A car market operator shall produce the register kept pursuant to subsection (2a) for inspection, on demand, by any authorised officer or any member of the Police Force.

(2c) Subsection (2a)(a) shall be complied with in relation to a vehicle before the vehicle is offered, exposed or displayed for sale.

(2d) Subsection (2a)(b) shall be complied with in relation to a vehicle forthwith after notification of the sale of the vehicle is given under subsection (2e).

(2e) Where a car market is being conducted by a person who is registered as a car market operator at premises authorised under section 21A in relation to that registration a person who sells a vehicle at the premises shall, forthwith after he sells the vehicle, notify the car market operator of the sale.

Penalty: \$1 000.

(3) A person shall not knowingly —

(a) make a false entry; or

(b) cause a false entry to be made,

in any register kept for the purposes of this section.

Penalty applicable to subsections (1), (1a), (2), (2a), (2b) and (3): \$5 000.

[Section 25 amended: No. 58 of 1974 s. 21; No. 49 of 1979 s. 10; No. 87 of 1981 s. 13; No. 106 of 1981 s. 15; No. 68 of 1982 s. 2; No. 4 of 2002 s. 24, 32(1) and 39.]

26. Transactions in second-hand vehicles, vehicle licensing authority to be notified of

(1) Every dealer, not being a financier or car hire operator, acquiring a second-hand vehicle or selling a second-hand vehicle other than to a financier or car hire operator shall, forthwith after the acquisition or sale, send to the authority that licensed or registered the vehicle, if within the State, such particulars as may be prescribed; and, where that authority is not within the State, shall forthwith deliver the number plates (if any) attached to the vehicle to the nearest licensing or registering authority.

Penalty: \$2 000.

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- (2) Upon the expiration or cancellation of the licence or registration of a second-hand vehicle that is in the possession of a dealer, the dealer shall, unless renewing the licence or registration, return any number plates attached to that vehicle to the nearest licensing or registering authority.

Penalty: \$2 000.

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- (3) Nothing in this section affects the obligation of a person to apply for the transfer of the licence or registration of a vehicle, under the provisions of any other Act.

[Section 26 amended: No. 6 of 1982 s. 4; No. 4 of 2002 s. 25 and 40.]

Division 4 — Powers to inspect vehicles and order remedial work

[Heading inserted: No. 73 of 2003 s. 17.]

27. Second-hand vehicles, powers of police etc. to inspect etc., where to be kept by dealers etc.

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- (1) Every dealer and every yard manager and salesperson acting for a dealer shall permit any member of the Police Force, any authorised officer or any traffic inspector, at all reasonable hours to enter upon any authorised premises of the dealer, with such persons as he may require to assist him, and there to examine any second-hand vehicle; and where in the opinion of that member, authorised officer or traffic inspector, it is necessary to road-test any such vehicle, the dealer, yard manager or salesperson shall permit him, or such other person as that member, authorised officer or traffic inspector may nominate, to remove the vehicle from the premises and drive it, for that purpose, but nothing in this subsection authorises any such member, authorised officer, traffic inspector, or person so nominated, to remove or drive any agricultural implement for that purpose.

Penalty: \$5 000.

(1a) In subsection (1) *dealer* includes any person carrying on the business of a wrecker of motor vehicles or of buying or selling vehicles for which a dealer's licence is not required under this Act, and in relation to such a person —

(a) the terms *yard manager* and *salesperson* mean an employee of the person; and

(b) the term *authorised premises* means the premises at which that person carries on business.

(2) Notwithstanding the provisions of any other Act, an unlicensed vehicle may be driven on a road by a person acting under the authority of subsection (1).

(3) Subject to subsection (4) a dealer, or a yard manager or salesperson acting on behalf of a dealer, shall not, during any hours when the dealer is lawfully able to keep his authorised premises open to the public, cause or permit a second-hand vehicle of which the dealer is the trade owner to be kept or parked elsewhere than at the authorised premises of the dealer.

Penalty: \$5 000.

(4) In any proceedings for an offence against subsection (3) it is a defence to prove —

(a) that the vehicle was kept or parked at or adjacent to the residence or place of business or employment of a particular prospective purchaser for the purpose of displaying it to that prospective purchaser; or

(b) that during the period for which the vehicle was kept or parked elsewhere than at the authorised premises —

(i) it was not so kept or parked for the purpose of causing the vehicle to be offered or displayed for sale except as described in paragraph (a); and

- (ii) it was not so kept or parked for the purpose of avoiding the provisions of this section or of any other section of this Act.

[Section 27 amended: No. 58 of 1974 s. 20 and 21; No. 106 of 1981 s. 16; No. 68 of 1982 s. 3; No. 4 of 2002 s. 31(1), 32, 41 and 67.]

28. Defects in second-hand vehicle, powers of police etc. to order remediation of

- (1) This section applies where —

- (a) an inspecting officer is examining or testing a second-hand vehicle under section 27; and
(b) the officer is of the opinion that the vehicle or its equipment is defective.

- (2) The inspecting officer may make an order in the approved form —

- (a) specifying any defect in the vehicle or its equipment; and
(b) requiring the owner of the vehicle, not later than the day specified in the order, at the owner's option, to either —
(i) remedy each defect so specified; or
(ii) return the number plates relating to the vehicle to the nearest licensing or registering authority in accordance with section 28A.

- (3) Where an order is made under subsection (2) in respect of a vehicle, the inspecting officer shall attach to the vehicle a notice in the approved form —

- (a) stating that the order has been made; and
(b) informing the owner that the sale of the vehicle is prohibited as provided by section 29(1).

- (4) If the dealer is the owner of the vehicle, the order shall be given to the dealer.

- (5) If the dealer is in possession of the vehicle under a consignment agreement —
- (a) the dealer shall inform the inspecting officer of the name and address of the consignor; and
- (b) the inspecting officer shall give the order or cause it to be given to the consignor.
- (6) An order under subsection (2) and the corresponding notice under subsection (3) may be amended so far as is necessary to correct any error.
- (7) The powers in subsections (5) and (6) may be exercised by persons or classes of persons designated by the Commissioner.
- (8) An order under subsection (2) remains in force until the conditions provided for by either of the following paragraphs are met —
- (a) the number plates are returned to the nearest licensing or registering authority —
- (i) as required by the order and the provisions of section 28A; or
- (ii) under section 29(3);
- (b) the vehicle has been examined by an inspecting officer and the officer —
- (i) is satisfied that each defect specified in the order has been remedied; and
- (ii) cancels the order and removes the notice attached to the vehicle under subsection (3).
- (9) An inspecting officer examining a vehicle as mentioned in subsection (8)(b) may make a further order under subsection (2) in respect of the vehicle if he is of the opinion that the vehicle or its equipment is defective.
- (10) The owner of a vehicle in respect of which an order is made under subsection (2) shall comply with the order.

Penalty: \$2 000.

- (11) A person shall not wilfully remove, damage or obliterate a notice attached to a vehicle under subsection (3).

Penalty: \$2 000.

- (12) In this section —

consignment agreement has the same meaning as it has in section 32A;

defective, in relation to a vehicle, means that it requires work to be done to it, or other attention, to make it comply with any requirement of a written law that applies to the vehicle or its equipment; and **defect** has a corresponding meaning;

inspecting officer means a member of the Police Force or an authorised officer;

owner means —

- (a) the dealer at whose authorised premises the vehicle is being examined or tested, if he is the trade owner of the vehicle; or
- (b) if the dealer is in possession of the vehicle under a consignment agreement, the consignor under that agreement.

[Section 28 inserted: No. 4 of 2002 s. 68.]

28A. Number plates, how to be returned under s. 28(2)(b)(ii)

- (1) The owner of a vehicle who elects to return the number plates relating to the vehicle as mentioned in section 28(2)(b)(ii) shall send or deliver the number plates to the nearest licensing or registering authority.
- (2) The owner of a vehicle, by taking the action specified in subsection (1), surrenders any licence granted in respect of the vehicle under the *Road Traffic (Vehicles) Act 2012*.

[Section 28A inserted: No. 4 of 2002 s. 68; amended: No. 8 of 2012 s. 144; No. 44 of 2016 s. 26.]

29. Unroadworthy vehicles, restrictions on sale of

- (1) Except where he has reasonable grounds for believing that the vehicle is being acquired for the purpose of being broken up (the proof whereof shall lie upon him), a dealer shall not sell, and a yard manager or salesperson shall not assist in the sale of, a second-hand vehicle in respect of which an order is in force under section 28.
- (2) A person shall not, by a representation that a second-hand vehicle is being acquired for the purpose of being broken up, induce another to sell the vehicle if the sale would, but for that representation, be prohibited by subsection (1).
- (3) A dealer selling a second-hand vehicle that he is led to believe is being acquired for the purpose of being broken up shall, before yielding up possession of it, remove from the vehicle any number plates attached to it and shall, forthwith, return them to the nearest licensing or registering authority, with the advice that the vehicle in respect of which they were issued is to be broken up.
- (4) The provisions of subsection (3) apply, *mutatis mutandis*, to a dealer acquiring a second-hand vehicle, from a person who is not a dealer for the purpose of breaking it up.
- (5) A dealer shall not break up a motor vehicle, or cause it to be broken up, unless and until it has been in his possession for 7 days.

Penalty applicable to subsections (1), (2), (3) and (5): \$5 000.

[Section 29 amended: No. 49 of 1979 s. 11; No. 4 of 2002 s. 31(1), 42 and 69.]

Division 5 — Offences: unlicensed dealing etc.

[Heading inserted: No. 73 of 2003 s. 18.]

30. Unlicensed dealing etc., offences as to

(1) A person shall not engage in unlicensed dealing.

Penalty: \$50 000 and a daily penalty of \$1 000.

(2) A dealer shall not carry on business as a dealer at any premises except under and in accordance with —

(a) an authorisation under section 20E; or

(b) a permit granted under section 20H.

Penalty: \$5 000.

(3) For the purposes of subsection (1) a person engages in unlicensed dealing if he carries on any class or description of business as a dealer otherwise than —

(a) under and in accordance with a dealer's licence for that class or description of business; and

(b) in accordance with any condition or restriction attached to the licence.

(4) Despite subsection (3) a person does not engage in unlicensed dealing if he —

(a) acts in a business only in the capacity of a yard manager or salesperson; or

(b) carries on or acts in a business only in the capacity of a financier, car hire operator or auctioneer and —

(i) has an exemption under section 31; and

(ii) complies with any condition or restriction to which the exemption is subject.

[Section 30 inserted: No. 4 of 2002 s. 26.]

31. Exemptions from this Act, powers to grant

(1) The Commissioner may in writing grant an exemption from compliance with this Act to a financier, car hire operator or an auctioneer who —

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- (a) applies for an exemption in the approved form and pays the prescribed fee; and
- (b) satisfies the Commissioner —
 - (i) in the case of a financier, that he ordinarily disposes of vehicles which he has repossessed directly to dealers; or
 - (ii) in the case of a car hire operator, that the buying or selling of vehicles does not comprise a significant part of his business as a car hire operator and that he ordinarily disposes of vehicles bought in the course of his business directly to dealers; or
 - (iii) in the case of an auctioneer, that the selling of vehicles by auction does not comprise a significant part of his business as an auctioneer.

(2) An exemption under subsection (1) —

- (a) may be granted subject to conditions; and
- (b) extends to a person acting as an employee or agent of the financier, car hire operator or auctioneer; and
- (c) may be revoked by the Commissioner at any time.

[Section 31 inserted: No. 4 of 2002 s. 26; amended: No. 58 of 2010 s. 50.]

31A. Yard managers must be licensed, offence

A person shall not act in the capacity of a yard manager, other than for or on behalf of a financier or car hire operator, unless —

- (a) he is —
 - (i) the holder of a yard manager's licence under section 16(1); or
 - (ii) taken to be the holder of such licence under section 16(2);

_____ and

_____ (b) he complies with any condition or restriction attached to the licence.

_____ Penalty: \$5 000 and a daily penalty of \$100.

_____ [Section 31A inserted: No. 4 of 2002 s. 26.]

31B. Salespersons must be licensed, offence

_____ A person shall not act in the capacity of a salesperson, other than for or on behalf of a financier or car hire operator, unless —

_____ (a) he is —

_____ (i) the holder of a salesperson's licence under section 17(1); or

_____ (ii) taken to be the holder of such a licence under section 17(2);

_____ and

_____ (b) he complies with any condition or restriction attached to the licence.

_____ Penalty: \$5 000 and a daily penalty of \$100.

_____ [Section 31B inserted: No. 4 of 2002 s. 26.]

31C. Unlicensed person not to be employed

_____ A dealer shall not have a person employed or engaged in his business if the performance of the person's duties involve the person contravening section 31A or 31B, as the case may be.

_____ Penalty: \$5 000 and a daily penalty of \$100.

_____ [Section 31C inserted: No. 4 of 2002 s. 26.]

31D. Car market operators must be registered and premises authorised, offence

_____ (1) A person shall not —

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(a) carry on or act in the business of a car market operator;
or

(b) advertise that he —

(i) carries on or acts in; or

(ii) is willing to carry on or act in,

the business of a car market operator,

unless he is registered as a car market operator under
section 17B.

Penalty: \$50 000 and a daily penalty of \$1 000.

(2) A car market operator shall not provide premises for a car
market unless the premises are authorised to be so provided
under section 21A.

Penalty: \$5 000.

[Section 31D inserted: No. 4 of 2002 s. 26.]

Part III — Dealings in second-hand vehicles

Division 1 — Preliminary

[Heading inserted: No. 4 of 2002 s. 55.]

32. Application of this Part

(1) Without limiting Division 2, the provisions of this Part do not apply to or in relation to the sale of a vehicle —

(a) to a dealer; or

(b) by auction, unless that vehicle is owned by a trade owner.

(1a) The provisions of section 33(3)(c) do not apply where a vehicle owned by a trade owner is sold by auction.

(2) Where a vehicle is sold by a financier or car hire operator, this Part does not apply to the financier or car hire operator or to any of his employees or agents, but the provisions of this subsection do not affect the duties or obligations under this Part of or attaching to a dealer who is not a financier or car hire operator, or to any yard manager or salesperson of such a dealer, in relation to any transaction or transactions by or under which the dealer is, pursuant to section 5(6), deemed to have sold a vehicle to a person.

(3) Where in relation to the sale of a second-hand vehicle, the vehicle was delivered prior to the time at which the offer to purchase the vehicle was accepted, the time at which the vehicle was sold shall, for the purposes of sections 33, 34 and 35, be deemed to be the time at which the vehicle was so delivered.

[Section 32 amended: No. 74 of 1975 s. 14; No. 73 of 1994 s. 4; No. 4 of 2002 s. 27, 31(1) and 56.]

Division 2 — Sales on consignment

[Heading inserted: No. 4 of 2002 s. 57.]

32A. Terms used

In this Division —

consignment agreement means an agreement under which a dealer agrees —

(a) to sell a vehicle (including by auction) for a person who is not —

(i) a dealer or a trade owner; or

(ii) a person acting as an agent of a dealer or a trade owner;

and

(b) to pay the proceeds of sale after the deduction of any agreed commission and charges to, or partly to, each of the following —

(i) any person authorised by the consignor;

(ii) any person holding a security interest in the vehicle;

consignor means a person for whom a dealer agrees to sell a vehicle under a consignment agreement;

registered company auditor has the meaning given in the *Corporations Act 2001* (Commonwealth) section 9;

security interest has the meaning given in the *Personal Property Securities Act 2009* (Commonwealth) section 10;

trust account means a trust account required to be maintained by a dealer under section 32C;

year, unless otherwise prescribed, means a financial year.

[Section 32A inserted: No. 4 of 2002 s. 57; amended: No. 42 of 2011 s. 57; No. 44 of 2016 s. 27.]

32B. Consignment agreements, requirements for

- (1) A dealer shall not accept a vehicle under a consignment agreement unless the agreement —
- (a) is in writing signed by the consignee, or his agent, and the consignor; and
- (b) contains the prescribed particulars, terms and conditions.
- Penalty: \$5 000.
- (2) Subsection (1)(b) does not prevent a consignment agreement containing, or incorporating by reference, other terms and conditions so long as they are not inconsistent with, and do not limit or diminish, those that are prescribed.
- (3) A dealer shall ensure that a copy of a consignment agreement is given to the consignor immediately after the agreement is signed by the parties to it.
- Penalty: \$5 000.
- [Section 32B inserted: No. 4 of 2002 s. 57.]

32C. Dealer selling on consignment to have trust account

- A dealer shall not accept a vehicle for sale under a consignment agreement unless the dealer has open with a prescribed financial institution at least one account designated as a trust account.
- Penalty: \$5 000.
- [Section 32C inserted: No. 4 of 2002 s. 57.]

32D. Payments to trust account

- (1) Where money is received by a dealer from the sale of a vehicle under a consignment agreement, the dealer shall pay all of the money into a trust account not later than the next day after the day of receipt on which the relevant financial institution is open for business.
- Penalty: \$5 000.

(2) Where the consideration or any part of the consideration received by a dealer from the sale of a vehicle under a consignment agreement is represented by another vehicle or other thing (the *trade-in*), the dealer shall pay an amount of money equivalent to the value of that trade-in into a trust account not later than the next day after the day of receipt on which the relevant financial institution is open for business.

Penalty: \$5 000.

(3) For the purposes of subsection (2) the value of a trade-in is —

(a) where the trade-in represents part of the consideration for the sale of a vehicle under consignment, the value ascribed to the trade-in for the purposes of the sale by the parties to the sale or, if no agreed value is so ascribed, the market value of the trade-in at the time of the sale; or

(b) where the trade-in represents all of the consideration for the sale of a vehicle under consignment, the value ascribed to the trade-in for the purposes of the sale by the parties to the sale or, if no agreed value is so ascribed, the market value of the trade-in at the time of the sale, less any amount paid, or to be paid, by the dealer to the purchaser of the consigned vehicle in connection with the sale.

(4) A dealer shall not pay money into a trust account other than money received from the sale of vehicles under consignment agreements or money referred to in subsection (2).

Penalty: \$5 000.

[Section 32D inserted: No. 4 of 2002 s. 57.]

32E. Withdrawals from trust account

(1) A dealer shall not, without the prior written approval of the Commissioner, withdraw money paid into a trust account from the sale of a vehicle under a consignment agreement, except for the purpose of —

(a) paying an amount properly payable to —

(i) the consignor of the vehicle concerned or a person authorised by him; or

(ii) the holder of a security interest in the vehicle;

or

(b) satisfying a debt due to the dealer by the consignor for commission or other charges; or

(c) paying an amount that is authorised by the regulations to be paid.

Penalty: \$5 000.

(2) Except as otherwise provided by the regulations, money held in a trust account is not available for payment of the debts of a dealer or liable to be taken in execution under the order or process of a court.

(3) Nothing in this Division takes away or affects a lawful claim or lien that a person has against or on any money received from the sale of a vehicle under a consignment agreement.

[Section 32E inserted: No. 4 of 2002 s. 57; amended: No. 58 of 2010 s. 50.]

32F. Financial institutions, liabilities and rights in relation to trust accounts

(1) A financial institution does not incur any liability or obligation to any person by reason only that it has failed to secure compliance by a dealer with any provision of this Division, or of the regulations, relating to —

(a) the keeping of; or

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(b) the withdrawal of money from,

a trust account.

(2) A financial institution at which a dealer maintains a trust account shall not have any recourse or right, whether by way of set off, counterclaim, charge or otherwise, to money standing to the credit of that account in respect of any liability of the dealer to the financial institution, other than a liability in connection with that account.

[Section 32F inserted: No. 4 of 2002 s. 57.]

32G. Payment to consignor

Where a dealer sells a vehicle under a consignment agreement he shall pay the proceeds of sale as required by —

(a) the provisions of the agreement; and

(b) the terms and conditions prescribed for the purposes of section 32B(1)(b).

Penalty: \$5 000.

[Section 32G inserted: No. 4 of 2002 s. 57.]

32H. Dealers to keep accounts etc.

A dealer shall —

(a) keep full and accurate accounts and records of —

(i) all proceeds received from sales of vehicles under consignment agreements; and

(ii) all payments made by the dealer of or from those proceeds;

and

(b) before the end of the next business day after the day on which proceeds of a sale are received or a payment is made, record particulars of —

(i) the amount so received or paid; and

(ii) the person from whom it was received or to whom it was paid;

and

(c) keep the accounts and records in such a manner that they can be conveniently and properly audited; and

(d) correctly balance the accounts at the end of each month.

Penalty: \$5 000.

[Section 32H inserted: No. 4 of 2002 s. 57.]

32I. Audit of trust accounts

(1) A person who carries on the business of a dealer for the whole or part of a year must ensure that each trust account that is held by the dealer for that year, or part of a year, as the case may be, is audited by a registered company auditor.

Penalty for this subsection: a fine of \$5 000.

(2) A dealer is to be taken to have complied with subsection (1) in relation to a year if the dealer —

(a) has neither received nor held money in a trust account during that year; and

(b) makes a statutory declaration to that effect; and

(c) gives the statutory declaration to the Commissioner within the period prescribed by the regulations.

[Section 32I inserted: No. 44 of 2016 s. 28.]

32J. Special audit of trust account, Commissioner may order

(1) The Commissioner may exercise the power in subsection (2) if the Commissioner is of the opinion that it is desirable to do so because of the circumstances, or the alleged circumstances, of a dealer's business.

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(2) The Commissioner may —

(a) at any time order that a special audit of a trust account of a dealer shall be carried out by a registered company auditor at the expense of the dealer; and

(b) for that purpose —

(i) appoint the auditor; and

(ii) specify the information that is to be furnished, and the time within which the auditor is to report, to the Commissioner.

(3) Where an order is made under subsection (2) in respect of a trust account of a dealer, the dealer shall do all things that are necessary to be done on his part to enable the audit to be completed.

Penalty: \$5 000.

[Section 32J inserted: No. 4 of 2002 s. 57; amended: No. 58 of 2011 s. 50.]

32K. Restraining banks etc. from dealing with dealer's account, SAT's powers as to

(1) Where the Commissioner, on an application made by the Commissioner to the State Administrative Tribunal, shows by evidence on affidavit to the satisfaction of the State Administrative Tribunal that —

(a) there are reasonable grounds for believing that there is a deficiency in a trust account of a dealer; or

(b) there has been undue or unreasonable refusal, neglect, or delay on the part of a dealer in paying money which was required to be paid into a trust account by the dealer under this Division to a person who is entitled to that money or is authorised to receive the money,

the State Administrative Tribunal may, if it thinks fit, make an order that the person for the time being in charge of the financial institution in which the trust account is kept be restrained, until

the order is made absolute or discharged, from paying out, transferring or otherwise dealing with any moneys standing to the credit of the trust account or any other account kept at the financial institution in the name of the dealer.

(2) An order under subsection (1) may —

(a) contain such terms and conditions as the State Administrative Tribunal thinks fit; and

(b) relate to all or any one or more of the trust or other accounts, as the State Administrative Tribunal determines.

(3) The order shall be made in the first instance ex parte, without any notice to the dealer, and is an order to show cause only.

(4) Unless the dealer referred to in the order shows to the State Administrative Tribunal within the time specified in the order sufficient cause to the contrary, the order, after proof of service as required by section 32O, shall be made absolute.

[Section 32K inserted: No. 4 of 2002 s. 57; amended: No. 55 of 2004 s. 780; No. 69 of 2006 s. 25; No. 58 of 2010 s. 46.]

32L. Deceased dealer, SAT may restrain use of trust account of etc.

(1) Where the State Administrative Tribunal is satisfied, on the application of the Commissioner, that a licensed dealer has died, the State Administrative Tribunal may restrain the personal representative, and the former employees, agents and bankers, of the deceased dealer, and the employees and agents of those bankers, from dealing in all or any of the trust accounts of the deceased dealer, subject to such terms and conditions as the State Administrative Tribunal thinks fit.

(2) The State Administrative Tribunal may order that the Commissioner —

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(a) take possession of the money constituting a trust account of the deceased dealer or, where the case requires, the balance of such moneys;

(b) credit the money or balance to a separate agency special purpose account established for the Commissioner under section 16 of the *Financial Management Act 2006*; and

(c) deal with those moneys according to law.

(3) The State Administrative Tribunal may, on the application of the Commissioner, or any person interested, give such directions as the State Administrative Tribunal thinks fit for the payment by the Commissioner of any part of the moneys credited to the separate agency special purpose account under the order.

[Section 32L inserted: No. 4 of 2002 s. 57; amended: No. 55 of 2004 s. 780; No. 77 of 2006 Sch. 1 cl. 109(1) and (2); No. 58 of 2010 s. 50.]

32M. Discharging or varying orders under s. 32K or 32L

(1) A dealer or the personal representative of a deceased dealer whose account is the subject of an order made under section 32K or 32L may apply to the State Administrative Tribunal to discharge or vary the order and to award such costs upon the application as it thinks fit.

(2) The State Administrative Tribunal is by this section empowered to discharge or vary the order and to make such further orders as it thinks fit.

[Section 32M inserted: No. 4 of 2002 s. 57; amended: No. 55 of 2004 s. 780.]

32N. SAT's additional powers as to s. 32K, 32L and 32M orders; schemes for distributing funds

(1) The State Administrative Tribunal may, on the application of the Commissioner, the Treasurer, the dealer, or the personal

representative of a deceased dealer referred to in an order made under section 32K, 32L or 32M make further orders —

(a) discharging or varying any orders so made; and

(b) directing that any moneys in an account affected by the order shall be paid to the Treasurer by the financial institution on such terms and conditions as the State Administrative Tribunal thinks fit.

(2) The Treasurer, on receiving moneys paid pursuant to an order made under subsection (1)(b) —

(a) shall cause the moneys to be credited to a separate Treasurer's special purpose account established under section 10 of the *Financial Management Act 2006*;

(b) may prepare a scheme for distributing the moneys as compensation to each person who —

(i) claims compensation at any time within 6 months after the Treasurer receives the money; and

(ii) proves to the satisfaction of the Treasurer that the person has, in respect of any consignment of a vehicle, sustained loss through any act or omission of the dealer in respect of whose accounts the order was made.

(3) When the Treasurer prepares a scheme for distribution the Treasurer shall apply to the State Administrative Tribunal for approval of the scheme and for directions in respect of the scheme.

(4) The State Administrative Tribunal may give such directions as it thinks fit in respect of —

(a) the separate Treasurer's special purpose account; and

(b) the moneys standing to the credit of the account; and

(c) the persons to whom and in what amounts the whole or any portion of the moneys standing to the credit of the account shall be paid by the Treasurer; and

- (d) the payment of the balance of the moneys then standing to the credit of the account, if any.

[Section 32N inserted: No. 4 of 2002 s. 57; amended: No. 55 of 2004 s. 780; No. 77 of 2006 Sch. 1 cl. 109(3) and (4); No. 58 of 2010 s. 50.]

32O. Service of s. 32K, 32L, 32M or 32N orders

- (1) Where an order is made under section 32K, 32L or 32N on the application of the Commissioner, the Commissioner shall serve or cause to be served a copy of the order —

(a) on the person for the time being in charge of the office of the financial institution in which any account referred to in the order is kept; and

(b) on the dealer, or the personal representative of the deceased dealer, in whose name the account is kept; and

(c) where it is an order under section 32N(1)(b), on the Treasurer.

- (2) Where an order is made under section 32M or 32N on the application of a dealer, or the personal representative of a deceased dealer, the dealer or personal representative shall serve or cause to be served a copy of the order —

(a) on the person for the time being in charge of the financial institution in which any account referred to in the order is kept; and

(b) on the Commissioner; and

(c) where it is an order under section 32N(1)(b), on the Treasurer.

- (3) Where an order is made under section 32N on the application of the Treasurer, the Treasurer shall serve or cause to be served a copy of the order —

(a) on the person for the time being in charge of the office of the financial institution in which any account referred to in the order is kept; and

(b) on the dealer, or the personal representative of the
deceased dealer, in whose name the account is kept; and

(c) on the Commissioner.

[Section 32O inserted: No. 4 of 2002 s. 57; amended: No. 55 of
2004 s. 776; No. 58 of 2010 s. 50.]

32P. Regulations about trust accounts

The regulations may make provision for or with respect to —

(a) keeping and management of trust accounts including —

(i) information to be given to the Commissioner in
relation to trust accounts; and

(ii) reporting of overdrawn trust accounts; and

(iii) the manner in which records are to be kept and
the information that is to be included in the
records; and

(iv) the manner of accounting for moneys received;
and

(v) the making of statutory declarations in relation to
moneys held in trust;

and

(b) duties of financial institutions in relation to trust
accounts, including —

(i) the interest to be paid on the balance of trust
accounts; and

(ii) reporting of overdrawn trust accounts;

and

(c) auditing of trust accounts, including —

(i) the appointment of auditors; and

(ii) the production of records and information to
auditors by dealers and financial institutions; and

(iii) the manner in which auditing is to be conducted;
and

(iv) the information and matters to be contained in the auditor's report; and

(v) the obligations of auditors to the Commissioner; and

(vi) the costs of auditing; and

(vii) when, and to whom, the auditor shall report; and

(viii) the confidentiality and examination of audit information.

[Section 32P inserted: No. 4 of 2002 s. 57; amended: No. 58 of 2010 s. 50.]

Division 3 — Obligation to display particulars of vehicle

[Heading inserted: No. 4 of 2002 s. 57.]

33. Particulars of second-hand vehicles, notice of to be displayed on etc.

(1) A dealer, yard manager or salesperson shall not —

(a) offer or display a second-hand vehicle for sale; or

(b) cause, suffer or permit a second-hand vehicle to be offered or displayed for sale,

unless there is attached to the vehicle in the manner specified in subsection (6) a notice in the prescribed form containing the prescribed particulars.

Penalty: \$2 000.

(2) Where the Commissioner is satisfied that —

(a) a second-hand vehicle referred to in subsection (1) has been brought into this State from a place outside this State for the purposes of sale; and

(b) any one or more of the required particulars are not available to the person referred to in subsection (1),

he may by notice in writing direct that such of the required particulars as are referred to in that notice need not be contained in the prescribed form referred to in that subsection and the omission by a person of those required particulars will not constitute an offence against the provisions of that subsection if in any proceedings for such an offence that person proves that the omission of those particulars was authorised by a notice under this subsection.

(3) For the purposes of this section the following are the required particulars —

(a) the name and business address of the dealer by whom the vehicle is offered or exposed for sale; and

(b) where the vehicle is equipped with an odometer, the reading on the odometer of the vehicle at the time the vehicle was acquired from the last owner of the vehicle; and

(c) the cash price of the vehicle; and

(d) the year of first registration of the vehicle and the year of manufacture of the vehicle; and

(e) the licence plate number of the vehicle or, if a licence has not been granted in respect of the vehicle under the *Road Traffic (Vehicles) Act 2012*, the word “unlicensed”; and

[(f) *deleted*]

(g) such other particulars as are prescribed.

(4) A person shall not insert, or suffer or permit to be inserted, in any notice referred to in subsection (1) any statement or representation that is false or misleading in a material particular.

Penalty: \$5 000.

(5) In any proceedings for an offence that is a contravention of subsection (4) where the contravention consists of a false or misleading statement as to the year of first registration of the vehicle it shall be a defence for the accused to prove that —

(a) he took reasonable steps to ascertain the year of first registration of the vehicle; and

(b) to the best of his knowledge and belief the statement made as to the year of first registration was a true and accurate one.

(6) For the purposes of subsection (1), the notice shall —

(a) except as provided in paragraph (b), be placed inside the vehicle where it can be clearly read through the windscreen; and

(b) where the vehicle is a motor cycle or is a vehicle not equipped with a windscreen, be attached to the vehicle in such a way and place as to cause the particulars contained in the notice to be clearly visible to a person standing near the vehicle.

(7) Where a dealer sells a vehicle, he shall —

(a) cause not less than 2 copies of the notice attached to the vehicle pursuant to the provisions of this section to be made out and signed by him or a yard manager or salesperson acting on his behalf; and

(b) cause at least 2 of the copies of the notice made out pursuant to paragraph (a) to be signed by the purchaser; and

(c) cause one of the copies of the notice made out pursuant to paragraph (a) and signed by the purchaser pursuant to paragraph (b) to be given to the purchaser; and

(d) retain for a period of not less than 2 years the notice displayed on the vehicle and one copy of the notice made out pursuant to paragraph (a) and signed by the purchaser pursuant to paragraph (b).

Penalty: \$1 000.

[Section 33 amended: No. 74 of 1975 s. 15; No. 49 of 1979 s. 14; No. 4 of 2002 s. 31(1) and 43; No. 73 of 2003 s. 19; No. 84 of 2004 s. 82; No. 8 of 2012 s. 145.]

Division 4 — Obligation to repair certain defects

[Heading inserted: No. 4 of 2002 s. 58.]

34. Dealer's duty to repair certain defects in sold vehicles

A dealer who sells a vehicle to which this Division applies shall at his own expense repair or make good, or cause to be repaired or made good, a defect for which he is responsible under sections 34B, 34C and 34D so as to —

- (a) make the vehicle roadworthy; and
- (b) place the vehicle in a reasonable condition having regard to its age.

[Section 34 inserted: No. 4 of 2002 s. 59.]

34A. Vehicles covered by obligation to repair

(1) This Division applies to a second-hand vehicle that —

- (a) is sold by a dealer to a person who does not by reason of the sale become a trade owner of the vehicle; and
- (b) is sold (as mentioned in paragraph (a)) at a cash price of or over —
 - (i) in the case of a motor cycle, \$3 500 or such other amount as is prescribed; or
 - (ii) in the case of any other vehicle, \$4 000 or such other amount as is prescribed;

and

- (c) on the day of the sale is within the limits specified in subsection (2); and
- (d) is not excluded from the operation of this Division by an order under section 34G.

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(2) The limits referred to in subsection (1)(c) are that —

(a) in the case of a motor cycle, it —

(i) is not more than 8 years old; and

(ii) has not been driven for more than 80 000 km;

and

(b) in the case of any other vehicle, it —

(i) is not more than 12 years old; and

(ii) has not been driven for more than 180 000 km.

(3) This Division does not apply to a vehicle that is sold by a dealer to a person if the person was in possession of the vehicle for a period of 3 months or more immediately preceding the day of sale.

[Section 34A inserted: No. 4 of 2002 s. 59.]

34B. Defects for which dealer responsible

(1) The dealer is responsible under section 34 for any defect that renders, or is likely to render, the vehicle unroadworthy or unserviceable, but is not responsible for a defect —

(a) that comes within section 35(2); or

(b) arising from or incidental to any accidental damage to the vehicle that occurred after the sale; or

(c) arising from misuse or negligence on the part of a driver of the vehicle that occurred after the sale; or

(d) occurring in the tyres, battery or any prescribed accessory to the vehicle.

(2) Subsection (1) applies to a defect whether or not it existed at the time of the sale.

[Section 34B inserted: No. 4 of 2002 s. 59.]

34C. Period after sale during which dealer responsible for defects in vehicles other than motor cycles

(1) In this section —

category 1 vehicle means a vehicle that on the day of the sale —

(a) is not more than 10 years old; and

(b) has been driven for not more than 150 000 km;

category 2 vehicle means a vehicle that on the day of the sale —

(a) is more than 10 years but not more than 12 years old; or

(b) has been driven for more than 150 000 km but not more than 180 000 km;

vehicle means a vehicle to which this Division applies other than a motor cycle.

(2) In the case of a category 1 vehicle, the dealer is responsible under section 34 for a defect that appears in the vehicle before —

(a) the vehicle has been driven for 5 000 km after the sale;
or

(b) the expiry of the period of 3 months following the day of the sale,

whichever happens first.

(3) In the case of a category 2 vehicle, the dealer is responsible under section 34 for a defect that appears in the vehicle before —

(a) the vehicle has been driven for 1 500 km after the sale;
or

(b) the expiry of the period of one month following the day of the sale,

whichever happens first.

[Section 34C inserted: No. 4 of 2002 s. 59.]

34D. Period after sale during which dealer responsible for defects in motor cycles

The dealer is responsible under section 34 for a defect that appears in a motor cycle to which this Division applies before —

(a) the motor cycle has been driven for 5 000 km after the sale; or

(b) the expiry of the period of 3 months following the day of the sale,

whichever happens first.

[Section 34D inserted: No. 4 of 2002 s. 59.]

34E. Certain periods excluded for s. 34C and 34D

In determining the periods mentioned in section 34C(2)(b) and (3)(b) and section 34D(b), no account shall be taken of any period during which the dealer is in possession of the vehicle for the purpose or purported purpose of ascertaining or carrying out his obligations under section 34.

[Section 34E inserted: No. 4 of 2002 s. 59.]

34F. Age of vehicle, how reckoned for s. 34A and 34C

(1) For the purposes of sections 34A(2) and 34C(1) the age of a vehicle shall be reckoned from the date of manufacture of the vehicle as determined under this section.

(2) The date of manufacture of a vehicle is to be taken to be —

(a) the date of manufacture shown on the vehicle's compliance plate; or

(b) the "built date" shown on the vehicle; or

(c) if paragraph (a) or (b) does not apply —

(i) the date agreed in writing between the dealer and the purchaser of the vehicle; or

(ii) failing such agreement, the date fixed by the Commissioner exercising the jurisdiction conferred by section 36(d).

(3) If for a vehicle only a month in a particular year is shown in a way mentioned in subsection (2)(a) or (b) the date of manufacture of the vehicle is to be taken to be the first day of the next month.

(4) In subsection (2) —

“built date” shown on the vehicle means the date, or the month in a particular year, that follows the expression “built” or “built date” (or a similar expression) on —

(a) a metal plate attached to the vehicle; or

(b) a metal component of the vehicle;

compliance plate, in relation to a vehicle, means a plate attached to the vehicle that indicates that the vehicle complies with the standards required by law for vehicles of that make, model and year of manufacture.

[Section 34F inserted: No. 4 of 2002 s. 59.]

34G. Excluding vehicles from this Division, Minister’s powers for

The Minister may by order published in the *Gazette* exclude a vehicle or any class or description of vehicles from the operation of this Division, and may in the same way revoke or amend an order so made.

[Section 34G inserted: No. 4 of 2002 s. 59.]

35. Excluded defects

(1) A dealer may affix or attach to any second-hand vehicle offered or displayed for sale a notice, in the prescribed form, setting out with reasonable particularity any defect that he believes to exist in that vehicle together with, in relation to each such defect his estimate of the fair cost of repairing or making good that defect.

(2) If —

(a) a notice referred to in subsection (1) has, at all material times, been attached to a second-hand vehicle in the same manner as is specified under section 33(6); and

(b) at or before the time of sale a copy of that notice has been signed by the purchaser and upon the sale a true copy of that notice as so signed has been delivered to the purchaser for retention by him,

then that defect is not one for which the dealer is responsible under section 34.

(3) If in any notice referred to in subsection (1) the amount estimated by the dealer as the fair cost of repairing or making good any defect is less than the amount of the fair cost of repairing or making good that defect the purchaser may sue for and recover the difference between those fair costs as a debt due to the purchaser from the dealer.

[Section 35 amended: No. 4 of 2002 s. 60.]

Division 5 — Disputes

[Heading inserted: No. 4 of 2002 s. 61.]

36. Certain disputes between purchasers and dealers, Commissioner may intervene in

Unless proceedings with respect to the dispute have commenced in a court of competent jurisdiction, where a dispute arises between a purchaser and dealer as to —

(a) the extent of the obligations of the dealer under section 34; or

(b) the manner of the carrying out by the dealer of those obligations; or

(c) the amount of the fair cost of repairing or making good any defect referred to in section 35(1); or

(d) any other matter or thing, whether or not of the same kind as the foregoing, arising out of the application of this Act,

the Commissioner may advise in writing both the dealer and the purchaser that he proposes to determine the dispute under section 37 and where he does so he shall request them to make written submissions to him on the matter within 14 days of the date of the request.

[Section 36 amended: No. 49 of 1979 s. 16; No. 59 of 2004 s. 141.]

37. Disputes, Commissioner's powers to determine etc.

(1) Where the Commissioner has advised the parties to a dispute that he proposes to determine the dispute under this section the Commissioner may, after the time referred to in section 36, and whether or not either party to the dispute has made any written submissions to him relating to the dispute, determine the dispute or the Commissioner may appoint some person to hear and determine the dispute.

(2) Without limiting the generality of the powers conferred on the Commissioner or person pursuant to subsection (1), where the Commissioner or person is satisfied —

(a) that an obligation lies on the dealer under section 34; and

(b) that the dealer has unreasonably —

(i) refused or failed to carry out that obligation; or

(ii) delayed or prevaricated in the carrying out of that obligation,

the Commissioner or person may order that any defect required to be repaired or made good under section 34 shall be repaired or made good by a person named in the order being a person other than the dealer, but the Commissioner or person shall not so order until —

(c) not fewer than 2 quotations of the cost of repairing or making good the defect have been obtained; and

(d) where the dealer has alleged that neither of those quotations is reasonable, the dealer has been afforded an opportunity to present, within such time as the Commissioner or other person allows, another quotation of that cost.

(2a) In addition to any other power conferred on the Commissioner or the person appointed pursuant to subsection (1), where the Commissioner or person is satisfied in relation to any defect in a vehicle sold by a dealer to a purchaser that —

(a) the defect is a defect which is, pursuant to section 34, an obligation of the dealer to repair and that the purchaser has paid the dealer or any other person for the repair or making good of the defect; or

(b) the defect is a defect which is not an obligation of the dealer to repair but for which the dealer has been paid by the purchaser to repair or make good but which the dealer has refused or failed to repair or make good or has failed to repair or make good in a proper and workmanlike manner,

the Commissioner or person may order that the dealer pay to the purchaser any moneys so paid by the purchaser.

(3) Where an order is made pursuant to subsection (2) and the purchaser has pursuant to an order under that subsection contracted to have the defect repaired or made good by a person other than the dealer, the dealer against whom that order was made shall be liable to indemnify the purchaser against all costs or expenses payable by the purchaser pursuant to that contract and the amount of such indemnity may be sued for and recovered by the purchaser as a debt due from the dealer to the purchaser.

(4) Where an order is made pursuant to this section, notwithstanding any Act or law to the contrary the dealer shall not have a lien over the vehicle to which the order relates in relation to any work done or purported to have been done in repairing or making good any defect to which the order relates.

(5) A person shall not wilfully make any false or misleading statement or claim in or in relation to any determination or order under this section.

Penalty: \$5 000.

[Section 37 amended: No. 49 of 1979 s. 17; No. 4 of 2002 s. 44.]

37A. Enforcing s. 37 orders

(1) An order made pursuant to section 37 may be made to take effect within such time as is fixed by the Commissioner or person appointed pursuant to subsection (1) of that section.

(2) The Commissioner or person appointed pursuant to section 37(1) shall cause a copy of an order made pursuant to that section to be given to the dealer against whom the order is made as soon as is practicable after its making.

(3) An order made pursuant to section 37 may be enforced by filing, free of charge, in the registry of the Magistrates Court at the place nearest to the premises of the dealer at which the vehicle the subject of the dispute was purchased or nearest to the place of business of the person applying to have the order enforced or the place where the person applying to have the order enforced resides —

(a) a copy of the order certified by the Commissioner or person appointed pursuant to section 37(1) to be a true copy; and

(b) the affidavit of the person enforcing the order, taken by a justice, as to the amount not paid under the order,

whereupon the order shall be deemed to be a judgment that requires payment of money duly made by the Magistrates Court and may be enforced accordingly.

(4) It shall be competent for a person to file a copy pursuant to subsection (3) of this section once only, and a second or subsequent filing purportedly pursuant to the subsection shall be ineffectual.

(5) If objection is taken that the registry of the Magistrates Court in which the copy of the order and the affidavit are filed is not the appropriate one in terms of subsection (3), the Commissioner or the person appointed pursuant to section 37(1) shall determine the question having regard to the relevant principles set out in the *Magistrates Court (Civil Proceedings) Act 2004* or the Magistrates Court's rules of court, and the determination of the Commissioner or the person so appointed, as the case requires, is final and conclusive.

(6) The *Limitation Act 2005* applies in respect of an order made under this section and in respect of any order made by the Commissioner or the person appointed pursuant to section 37(1) as it applies in respect of any judgment.

[Section 37A inserted: No. 49 of 1979 s. 18; amended: No. 59 of 2004 s. 141; No. 20 of 2005 s. 23; No. 8 of 2009 s. 94(3).]

37B. Determinations under s. 37, effect and review of

(1) Subject to this section, a determination or an order made pursuant to section 37 is final and conclusive and no appeal shall lie in respect thereof.

(2) Where a determination or order made pursuant to section 37 —

(a) requires the payment of money; or

(b) requires the performance of work; or

(c) purports to grant relief from the payment of money,

in an amount or to a value, as the case may be, exceeding the sum of \$1 000 or such sum as is prescribed, any person who is aggrieved by the determination or order of the Commissioner or person appointed pursuant to section 37(1) may apply to the State Administrative Tribunal for a review of the determination or order.

- (3) No writ of *certiorari*, or prohibition, or other prerogative writ shall issue, and no declaratory judgment shall be given in respect of a proceeding taken or to be taken under section 37 before the Commissioner or a person appointed pursuant to section 37(1) or in respect of any determination or order made pursuant to that section unless the court before which such writ or judgment is sought is satisfied that the Commissioner or person had or has no jurisdiction conferred by that section to take the proceeding or that there has occurred therein a denial of natural justice to any party to the proceeding.

[Section 37B inserted: No. 49 of 1979 s. 18; amended: No. 55 of 2004 s. 777.]

38. Dispute may be dealt with by Magistrates Court

- (1) Unless the Commissioner has, pursuant to section 36, advised the dealer and the purchaser that he proposes to determine the dispute, where a dispute arises as to any matter or thing referred to in that section, either party may apply to the Magistrates Court for the dispute to be heard and determined as a proceeding in that court and upon such an application being made the court shall hear and determine the matter as expeditiously as possible.
- (2) For the purposes of a proceeding referred to in subsection (1) and subject to this subsection the Magistrates Court shall have and may exercise all the powers and functions conferred on the Commissioner under section 37 and that section shall apply and have effect as if in that section there were substituted for each reference to the Commissioner a reference to the Magistrates Court, but —

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(a) this section does not authorise or empower the
Magistrates Court to appoint some other person to hear
and determine the dispute; and

(b) the provisions of section 37A do not apply to or in
relation to any proceeding in the Magistrates Court
under this Act.

[Section 38 amended: No. 49 of 1979 s. 19; No. 55 of 2004
s. 778; No. 59 of 2004 s. 141.]

[39. Deleted: No. 49 of 1979 s. 20.]

[40. Deleted: No. 4 of 2002 s. 62.]

Part IIIA — Obligations of car market operators

[Heading inserted: No. 87 of 1981 s. 15.]

40A. Car market operator liable for certain losses

(1) Subject to subsections (4) and (5) where, after the coming into operation of section 15 of the *Motor Vehicle Dealers Amendment Act 1981*, a second-hand vehicle is sold —

(a) at premises provided by a car market operator; and

(b) at the time of the conduct of a car market at those premises,

a person who has incurred loss in connection with the sale by reason of the fact that the vendor has not passed an unencumbered title to the vehicle may sue for and recover the amount of the loss as a debt due to the person from the car market operator.

(2) Without limiting the generality of subsection (1), a vehicle shall be deemed to be sold —

(a) at premises provided by a car market operator; and

(b) at the time of the conduct of a car market at those premises,

for the purposes of that subsection if negotiation of the sale is commenced at those premises and at that time but the sale is completed elsewhere.

(3) The fact that a person —

(a) has since the material time ceased to be registered under section 17B as a car market operator; or

(b) was not, at the material time, registered under section 17B as a car market operator; or

(c) has, since the material time, ceased to be a car market operator,

does not affect his liability under subsection (1).

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(4) A person who is or has been a car market operator is not liable under subsection (1) for any loss incurred in connection with the sale of a vehicle if he satisfies the court that a notice as required by section 40B was attached to the vehicle in the manner, and at the times, required by that section and that the notice contained a statement to the effect that the title to the vehicle was not guaranteed by him.

(5) Subsection (1) does not apply to or in relation to the sale of a vehicle to a dealer.

[Section 40A inserted: No. 87 of 1981 s. 15; amended: No. 4 of 2002 s. 28.]

40B. Title of and defects in second-hand vehicle, notice about to be displayed on

(1) A car market operator contravenes this section if a second-hand vehicle is offered, exposed or displayed for sale in the course of a car market conducted at premises provided by him unless there is attached to the vehicle in the manner specified in subsection (2) a notice in the prescribed form containing statements —

(a) to the effect that the title to the vehicle is either —

(i) guaranteed by the car market operator; or

(ii) not guaranteed by the car market operator;

and

(b) to the effect that the sale of the vehicle does not create any obligation under section 34.

Penalty: \$2 000.

(2) For the purposes of subsection (1), the notice shall —

(a) except as provided in paragraph (b), be placed inside the vehicle where it can be clearly read through the windscreen; and

(b) where the vehicle is a motor cycle or is a vehicle not equipped with a windscreen, be attached to the vehicle in such a way and place as to cause the particulars contained in the notice to be clearly visible to a person standing near the vehicle.

[Section 40B inserted: No. 87 of 1981 s. 15; amended: No. 4 of 2002 s. 45.]

Part IV — Miscellaneous

41. Undesirable practices, offence to carry out

- (1) A person shall not, in relation to the business of buying or selling vehicles, carry out or give effect to any undesirable practice.

Penalty: \$2 000.

- (2) In this section an undesirable practice means a practice prescribed to be an undesirable practice by regulation under this Act.

[Section 41 amended: No. 4 of 2002 s. 46.]

41A. Rescission of sale, Magistrates Court may order on Commissioner's application

- (1) Where —

(a) a vehicle has been sold by a dealer, not being a financier or car hire operator, to a purchaser; or

(b) a vehicle has been sold by a financier or car hire operator to a purchaser and a dealer, not being a financier or car hire operator, arranged or procured the sale of the vehicle,

and the Commissioner is of opinion that the vehicle as so sold —

(c) was substantially different from the vehicle as represented to the purchaser; or

(d) was a vehicle in relation to which a notice was, pursuant to section 33, required to be displayed but in relation to which no such notice was displayed,

the Commissioner may apply to the Magistrates Court for an order for rescission of the sale of the vehicle.

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- (2) An application under this section shall set out the grounds on which it is made.
- (3) After hearing the Commissioner or a representative of the Commissioner and affording any other person likely to be affected by any order made under this section an opportunity of being heard, the Magistrates Court may —
- (a) order that the sale be rescinded; and
 - (b) make such further or consequential orders (including an order as to the payment of the costs of the application) as to it seem necessary or desirable.
- (4) The power to make further or consequential orders conferred on the Magistrates Court by subsection (3) shall extend to the making of orders concerning any collateral credit agreement associated with the sale.
- (5) In making any orders under subsection (3), the Magistrates Court shall so far as is possible apply the following principles in the following order:
- (a) That there should be returned to the purchaser —
 - (i) any moneys or other consideration paid or provided by him under any agreement for the sale (not being moneys or other consideration obtained by him under a collateral credit agreement associated with the sale for the purpose of being so paid or provided); and
 - (ii) any moneys or other consideration paid or provided by him under any collateral credit agreement associated with the sale.
 - (b) That —
 - (i) where the vehicle was sold by a financier or car hire operator, that financier or care hire operator; and
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(ii) any person who has provided finance under any collateral credit agreement associated with the sale,

should be indemnified by the dealer referred to in subsection (1) against any loss suffered by the financier, person or car hire operator in consequence of any order made by the Magistrates Court.

(c) That the vehicle should be returned to the dealer, the financier or the car hire operator.

(6) Notwithstanding any Act or law to the contrary, upon an order rescinding a sale being made, the rights and obligations of the parties under any contract or agreement relating to the sale or under any contract or agreement relating to a collateral credit agreement connected with the sale and, where applicable, of any dealer referred to in subsection (1) who is not such a party, shall be as provided for in that order or in any order ancillary to or consequential upon that order and without limiting the generality of the foregoing it shall not be a bar, to the making of an order rescinding a sale, that one or more of those persons cannot be restored to the position or positions that existed prior to the sale.

(7) In this section **collateral credit agreement** means a contract or agreement for the ~~under the corresponding~~ provision of credit by a person other than the dealer referred to in subsection (1) for the purposes of the sale of a vehicle where that contract or agreement was arranged or procured by that dealer.

[Section 41A inserted: No. 49 of 1979 s. 21; amended: No. 4 of 2002 s. 29; No. 59 of 2004 s. 141.]

41B. Demonstration vehicles, application of Act's obligations to

For the purposes of ascertaining the extent of an obligation by reference to time, and the extent of an obligation by reference to distance to be travelled, that remains in relation to a

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demonstration vehicle on the part of the manufacturer thereof
the following provisions apply —

- (a) an obligation expressed by reference to time shall be
regarded as having commenced on the date of the sale of
the vehicle to the purchaser or, if the sale was on terms
and reduced to writing, on the date of execution of the
written agreement by the parties thereto;
- (b) an obligation expressed by reference to the distance to
be travelled by the vehicle shall exclude only the
distance travelled by the vehicle, as indicated on the
odometer on the vehicle, immediately before the sale of
the vehicle to a purchaser or, if the sale was on terms
and reduced to writing, immediately before the
execution of the agreement by the parties thereto.

[Section 41B inserted: No. 49 of 1979 s. 21; amended: No. 73 of
1994 s. 4.]

Schedule 42. Representation by employee of dealer, effect of

For the purposes of this Act, any statement or representation made by an employee of a dealer or a person appearing to act on behalf of a dealer, including but not necessarily being a yard manager or salesperson, in relation to the quality, description or history of a vehicle offered or displayed for sale by that dealer shall be deemed to be such a representation or statement of the dealer.

[Section 42 amended: No. 4 of 2002 s. 31(1).]

42A. Contracts etc. for sale of vehicles by dealer, form and content of

(1) This section applies only where a dealer sells a vehicle, other than by auction, to a person who is not a dealer.

(2) A contract or agreement for the sale of a vehicle —

(a) shall be in writing signed by the dealer, or his agent, and the purchaser; and

(b) shall contain the prescribed particulars, terms and conditions.

(3) Subsection (2)(b) does not prevent a contract or agreement containing, or incorporating by reference, other terms and conditions so long as they are not inconsistent with, and do not limit or diminish, those that are prescribed.

(4) Without limiting section 43(7) of the *Interpretation Act 1984*, particulars, terms and conditions that are prescribed for contracts or agreements for the sale of new vehicles may be different from those that are prescribed for contracts or agreements for the sale of second-hand vehicles.

(5) A dealer or his agent shall not enter into a contract or agreement for the sale of a vehicle unless the contract or agreement complies with subsection (2).

Penalty: \$5 000.

[Section 42A inserted: No. 4 of 2002 s. 63.]

43. Value of vehicle or thing traded in

- (1) Where in respect of a contract or agreement in relation to a sale all or portion of the consideration passing from the purchaser is represented by a vehicle or other thing the dealer shall give to the purchaser a note in writing of the monetary value he ascribes to that vehicle or thing.

Penalty: \$1 000.

- (2) For the purposes of this Act or of any proceedings under section 39 the value ascribed pursuant to subsection (1) of this section shall be the value of that vehicle or thing.

[Section 43 amended: No. 49 of 1979 s. 22; No. 4 of 2002 s. 31(1) and 47.]

~~— Infringement~~**44. Documents tendered for signature to be complete**

- (1) A person shall not submit or tender or suffer or permit to be submitted or tendered a document, to which this section applies, to any person for his signature unless at the time of the submission or tendering all material particulars in that document have been completed.

Penalty: \$5 000.

- (2) This section applies to any document evidencing or recording any contract or agreement for the sale of a vehicle or evidencing or recording any collateral credit agreement as defined in section 41A connected with such a sale.

[Section 44 amended: No. 49 of 1979 s. 23; No. 4 of 2002 s. 48.]

45. Acts with intent to deceive, offences as to

- (1) A person shall not —

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- (a) alter or cause to be altered or connive in the alteration of the reading of an odometer on the vehicle; or
- (aa) state or represent as the reading of an odometer on the vehicle a reading other than the reading that is the same as the reading at the time the vehicle was acquired from the last owner of the vehicle, increased by the distance travelled by the vehicle since it was so acquired; or
- (b) state or represent as the year of manufacture of the vehicle a year other than the actual year of manufacture of the vehicle; or
- (c) state or represent as the year of first registration of the vehicle a year other than the actual year of first registration of the vehicle; or
- (d) state or represent as the model designation of the vehicle a model designation other than the actual model designation of the vehicle; or
- (e) state or represent in any way that a vehicle which has been used as a taxi-car has not been so used,

wilfully and with intent to deceive another person.

Penalty applicable to paragraph (a): \$50 000.

Penalty applicable to other paragraphs: \$5 000.

(2) If in any proceedings for an offence that is a contravention of subsection (1) it is proved that —

- (a) a second-hand vehicle, being a vehicle to which Part III applies, was offered or displayed for sale by a dealer; and
- (b) the distance travelled by the vehicle as ascertained by reference to the reading of the odometer of the vehicle is less than that distance as ascertained by reference to the reading of the odometer of the vehicle set out in the notice displayed pursuant to section 33 in relation to that vehicle,

it shall be presumed in the absence of proof to the contrary that the dealer who so offered or displayed the vehicle has wilfully altered or caused to be altered or connived in the alteration of the odometer of the vehicle with intent to enhance the value of the vehicle.

(3) Where a dealer or a person concerned in management or conduct of the business of a dealer, including but not necessarily being a yard manager or dealer, is convicted of an offence that is a contravention of subsection (1) a purchaser who purchased the second-hand vehicle in respect of which that offence was committed from that dealer relying on —

(a) the reading of the odometer of the vehicle as altered; or

(b) the statement or representation as to the year of manufacture of the vehicle; or

(c) the statement or representation as to the year of first registration of the vehicle or as to the model designation of the vehicle.

as the case may be, may sue for and recover from the dealer so convicted as a debt due to him an amount equal to 3 times the prescribed amount.

(4) In subsection (3) the *prescribed amount* means the amount determined by the court hearing the matter as being the difference between the sale price of the vehicle and its fair value at the time of the sale.

[Section 45 amended: No. 49 of 1979 s. 24; No. 4 of 2002 s. 49.]

46. Implied conditions in some contracts etc. for sale

(1) Subject to subsection (3) —

(a) where there is a contract for the sale by a dealer of a vehicle to a person by description, there is an implied condition that the vehicle will correspond with the description, and the sale of a vehicle is not prevented

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from being a sale by description for the purposes of this paragraph by reason only that, being exposed for sale, the vehicle is selected by the purchaser;

(b) where a dealer sells a new vehicle to a person, there is an implied condition that the vehicle is of merchantable quality, except that there is no such condition by virtue only of this section —

(i) as regards defects specifically drawn to that person's attention before the contract is made; or

(ii) if the person examines the vehicle before the contract is made, as regards defects which that examination ought to reveal.

(2) Any term of a contract or agreement for the sale or supply of a vehicle to a person by a dealer (including a term that is not set out in the contract or agreement, but is incorporated therein by another term thereof) that purports to exclude, restrict or modify, or has the effect of excluding, restricting or modifying —

(a) the application to that contract or agreement of all or any of the provisions of subsection (1); or

(b) the exercise of a right conferred by such a provision; or

(c) any liability of the dealer for breach of a condition or warranty implied by such a provision,

is void.

(3) The provisions of subsection (1) do not extend to or in relation to —

(a) any contract or agreement for the sale, or for the hire and sale, of a vehicle which is in the form of a hire-purchase agreement to which the *Hire-Purchase Act 1959* applies; or

(b) any contract or agreement for the sale of a vehicle which —

(i) is not a vehicle to which Part III of this Act applies; or

(ii) is acquired by that person for the purposes of re-sale.

47. Other rights or remedies not affected by this Act

Except as is expressly provided in this Act, nothing in this Act shall have the effect of limiting, restricting or otherwise affecting any right or remedy a person would have had had this Act not been enacted.

48. Rights conferred by this Act cannot be waived without official consent

A person shall not without the prior consent of the Commissioner or of an authorised officer be competent to waive any rights conferred on him by this Act.

[Section 48 amended: No. 1 of 1985 s. 27.]

49. No indemnity for dealer

Where a dealer incurs any costs or expenses by virtue of the operation of this Act in relation to the sale of a second-hand vehicle, the dealer shall not be entitled to be indemnified in respect of those costs or expenses by any antecedent owner, other than a trade owner, of that vehicle and any purported contract or agreement of such indemnity shall, by force of this section, be void and of no effect.

49A. No indemnity for car market operator

Where a person who is or has been a car market operator incurs any costs or expenses by virtue of the operation of this Act in relation to the sale of a second-hand vehicle, the person shall not be entitled to be indemnified in respect of those costs or expenses by the vendor or any antecedent owner of that vehicle

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and any purported contract or agreement of such indemnity shall, by force of this section, be void and of no effect.

[Section 49A inserted: No. 87 of 1981 s. 16.]

50. Confidentiality of information officially obtained

The Fair Trading Act 2010 section 112 applies to information obtained for the purposes of this Act.

[Section 50 inserted: No. 58 of 2010 s. 47.]

51. Annual reports of Department, content of

(1) The chief executive officer is to ensure that the matters set out in subsection (1a) are included in the Department's annual report.

(1a) The annual report is to include details of —

(a) the number, nature, and outcome, of —

(i) investigations and inquiries undertaken by, or at the direction of, the Commissioner; and

(ii) matters that have been brought before the State Administrative Tribunal by the Commissioner;

and

(b) the number and nature of matters referred to in paragraph (a) that are outstanding; and

(c) any trends or special problems that may have emerged; and

(d) forecasts of the workload of the Commissioner in the year after the year to which the report relates; and

(e) any proposals for improving the performance of the Commissioner's functions.

[(2) deleted]

[Section 51 amended: No. 73 of 2003 s. 23(3); No. 55 of 2004 s. 779; No. 58 of 2010 s 48 and 50.]

52. Offences, limitation period for and court's powers as to

[(1)-(2) deleted]

(3) Except as provided in section 45(3), where a person, being a dealer (in this subsection referred to as the *accused*), is convicted of an offence against this Act and the court by which he is convicted is of opinion that some other person was defrauded or suffered pecuniary loss by reason of the commission of the offence, the court may, in addition to imposing a penalty for the offence, order the accused to pay to that other person by way of recoupment of his loss, such sum as the court thinks fit and specifies in its order.

(4) Notwithstanding anything in any Act proceedings for an offence against this Act may be brought within the period of 2 years after the commission of the alleged offence.

[Section 52 amended: No. 74 of 1975 s. 16; No. 49 of 1979 s. 25; No. 4 of 2002 s. 51; No. 84 of 2004 s. 82.]

53. Yard manager's liability for offences under s. 28 and 31B by others

(1) Notwithstanding any other law or rule of law, where an offence against section 28 or 31B is committed at any authorised premises or in relation to the sale of a vehicle which was offered or exposed for sale at any authorised premises by a person (in this section referred to as the *other person*) other than the person acting in the capacity of dealer or yard manager for those premises, the yard manager is guilty of an offence against this Act in like manner as that person and may be proceeded against and convicted accordingly unless he proves that he had no knowledge of the commission of the offence and could not, by the exercise of due diligence, have prevented the commission of the offence.

(2) The yard manager may be proceeded against and convicted pursuant to subsection (1) notwithstanding that the other person

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has not been proceeded against or has not been convicted under this Act.

- (3) Nothing in subsection (1) prejudices or affects any liability imposed by or under this Act on any person by whom an offence against this Act is actually committed.

[Section 53 amended: No. 4 of 2002 s. 30 and 32(1).]

54. Dealer's liability for offences by employees etc.

- (1) Notwithstanding any other law or rule of law, where any person in the capacity of yard manager or salesperson employed or engaged by a dealer or otherwise in the capacity as an employee of a dealer commits an offence against this Act, the dealer is guilty of an offence against this Act in like manner as the yard manager, salesperson or employee (whether or not the offence was committed without the dealer's authority or contrary to the dealer's orders or instructions) and may be proceeded against and convicted accordingly unless he proves that he had no knowledge of the commission of the offence and could not, by the exercise of due diligence, have prevented the commission of the offence.

- (2) The dealer may be proceeded against and convicted pursuant to subsection (1) notwithstanding that the yard manager, salesperson or employee has not been proceeded against or has not been convicted under this Act.

- (3) Nothing in subsection (1) prejudices or affects any liability imposed by or under this Act on any person by whom an offence against this Act is actually committed.

[Section 54 amended: No. 4 of 2002 s. 31(1).]

55. Offences by corporations

- (1) Where a corporation is convicted of an offence against this Act, every person who at the time of the commission of the offence was a director or member of the governing authority of the corporation or an officer concerned in the management of the

corporation and who authorised or permitted the commission of the offence is guilty of the like offence.

- (2) A person referred to in subsection (1) may, on the request of the prosecutor, be convicted on the proceedings on which the corporation is convicted if the court is satisfied that the person had reasonable notice that the prosecutor intended to make that request.

[Section 55 amended: No. 84 of 2004 s. 80.]

55A. Infringement notices

- (1) In subsection (3), (6) or (7) —

designated official means a person designated under subsection (13) by the Commissioner for the purposes of the subsection in which the term is used.

- (2) An authorised officer or a member of the Police Force who has reason to believe that a person has committed a prescribed offence against this Act may, within 6 months after the alleged offence is believed to have been committed, give an infringement notice to the alleged offender.

- (3) An infringement notice is to be in the prescribed form and is to —

(a) contain a description of the alleged offence; and

(b) advise that if the alleged offender does not wish to be prosecuted for the alleged offence in a court, the amount of money specified in the notice as being the modified penalty for the offence may be paid to a designated official within a period of 28 days after the giving of the notice; and

(c) inform the alleged offender as to who are designated officials for the purposes of receiving payment of modified penalties.

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- (4) In an infringement notice the amount specified as being the and modified penalty for the offence referred to in the notice is to be the amount that was the prescribed modified penalty at the time the alleged offence is believed to have been committed.
- (5) The modified penalty that may be prescribed for an offence is not to exceed 20% of the maximum penalty that could be imposed for that offence by a court.
- (6) A designated official may, in a particular case, extend the period of 28 days within which the modified penalty may be paid and the extension may be allowed whether or not the period of 28 days has elapsed.
- (7) A designated official may, whether or not the modified penalty has been paid, withdraw an infringement notice by sending to the alleged offender a notice in the prescribed form stating that the infringement notice has been withdrawn.
- (8) Where an infringement notice is withdrawn after the modified penalty has been paid, the amount is to be refunded.
- (9) Subsection (10) applies where the modified penalty specified in an infringement notice has been paid within 28 days or such further time as is allowed and the notice has not been withdrawn.
- (10) Where this subsection applies it prevents the bringing of proceedings and the imposition of -penalties to the same extent that they would be prevented if the alleged offender had been convicted by a court of, and punished for, the alleged offence.
- (11) Payment of a modified penalty is not to be regarded as an admission for the purposes of any proceedings, whether civil or criminal.
- (12) Unless subsection (8) requires it to be refunded, an amount paid as a modified penalty is to be dealt with as if it were a penalty imposed by a court as a penalty for an offence.

(13) The Commissioner may, in writing, designate persons or classes of persons for the purposes of subsection (3), (6) or (7) or for the purposes of 2 or more of those subsections, but an authorised officer or a member of the Police Force is not eligible to be so designated.

(14) The Commissioner is to issue to each authorised officer a certificate of his authorisation under subsection (2), and the authorised officer is to produce the certificate whenever required to do so by a person to whom an infringement notice has been or is about to be given.

[Section 55A inserted: No. 4 of 2002 s. 52; amended: No. 84 of 2004 s. 80.]

56. Regulations

(1) The Governor may make such regulations as are necessary or expedient for the purposes of giving effect to the provisions or objects of this Act.

(2) Without limiting the generality of the provisions of subsection (1), the regulations may —

(a) prescribe any practice relating to the business of buying or selling second-hand vehicles that in the opinion of the Governor is an undesirable practice; and

(b) prescribe the information and particulars that shall be included in any advertising material relating to second-hand vehicles and the form and manner in which that information or those particulars shall be set out in that advertising material; and

(c) prescribe fees to be payable and provide for and prescribe the forms to be used for the purposes of this Act; and

(d) prescribe the manner in which any notice under this Act shall be attached or affixed to a vehicle; and

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- (e) provide for the form of a notice that shall be affixed to a vehicle indicating that the vehicle has been excluded from the operation of Division 3 of Part III; and
- (f) provide for and prescribe the method of evidencing and the documents required to effectuate sales of second-hand vehicles between trade owners; and
- (g) require yard managers and salespersons to give notice of changes of employment or places of employment; and
- (ga) prescribe —
 - (i) offences for which an infringement notice may be given under section 55A; and
 - (ii) for each prescribed offence —
 - (I) a modified penalty; or
 - (II) a different modified penalty according to the circumstances of the offence,but not in any case exceeding the amount allowed by section 55A(5);
- and
- (h) provide for and prescribe penalties not exceeding, in each case, \$2 000, for a contravention of or failure to comply with any provision of the regulations.

[(3) deleted]

[Section 56 amended: No. 56 of 1995 s. 36; No. 4 of 2002 s. 31(7), 53 and 64; No. 34 of 2020 s. 100(2).]

Part V — Miscellaneous transitional matters

[Heading inserted: No. 58 of 2010 s. 49.]

57. Terms used

In this Part —

commencement day means the day on which the *Acts Amendment (Fair Trading) Act 2010* Part 4 comes into operation;

former Board means the Motor Vehicle Industry Board established by section 7 of this Act immediately prior to the commencement day;

liability means any liability, duty or obligation whether actual, contingent or prospective, liquidated or unliquidated, or whether owed alone or jointly or jointly and severally with any other person;

right means any right, power, privilege or immunity whether actual, contingent or prospective.

[Section 57 inserted: No. 58 of 2010 s. 49.]

58. Former Board abolished

Subject to sections 63 and 64, at the beginning of the commencement day, the former Board is abolished and its members go out of office.

[Section 58 inserted: No. 58 of 2010 s. 49.]

59. References to former Board

If in a written law or other document or instrument there is a reference to the former Board, that reference may, where the context so requires, be read as if it had been amended to be a reference to the Commissioner.

[Section 59 inserted: No. 58 of 2010 s. 49.]

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60. Immunity continues

Despite the abolition of the former Board, if the former Board had the benefit of any immunity in respect of an act, matter or thing done or omitted before the commencement day, that immunity continues in that respect for the benefit of the Commissioner.

[Section 60 inserted: No. 58 of 2010 s. 49.]

61. Unfinished investigations by former Board

Investigations being carried out by the former Board under the Act as it was prior to the commencement day that are not complete by the commencement day —

- (a) are taken to have been commenced by the Commissioner for the purposes of the Act; and
- (b) are to continue under the direction and control of the Commissioner.

[Section 61 inserted: No. 58 of 2010 s. 49.]

62. Unfinished proceedings by former Board

- (1) Proceedings before the former Board that are not complete by the commencement day —

- (a) are taken to have been commenced by the Commissioner for the purposes of the Act; and
- (b) are to continue under the direction and control of the Commissioner.

- (2) Proceedings before the State Administrative Tribunal or another court commenced by allegation against a licensed motor vehicle dealer or repairer brought by the former Board that are not complete by the commencement day —

- (a) are taken to have been commenced by an allegation by the Commissioner for the purposes of the Act; and

- (b) are to continue under the direction and control of the Commissioner.

[Section 62 inserted: No. 58 of 2010 s. 49.]

63. Winding-up by former Board

As soon as reasonably practicable after the commencement day, the Board is to wind-up its affairs and in particular, but without limiting what may be done to wind-up its affairs, the Board is to apply its assets, together with any money in hand, in —

- (a) discharging its liabilities; and
- (b) transferring any assets which remain after the discharge of liabilities (*residual assets*) to the State to be administered in the department, or realising residual assets and causing the proceeds, together with any moneys in hand, to be credited to the Consolidated Account.

[Section 63 inserted: No. 58 of 2010 s. 49.]

64. Final report by former Board

- (1) As soon as reasonably practical after the Board is satisfied that the winding-up of its affairs is concluded, it is to —

- (a) make and submit to the Minister a report of its proceedings for the period beginning on the day after the commencement day and ending on the day on which the winding-up of its affairs is concluded; and
- (b) deliver to the chief executive officer all records and information in its possession or under its control.

- (2) The chief executive officer is to include the final report submitted under subsection (1) in the department's annual report for that financial year.

[Section 64 inserted: No. 58 of 2010 s. 49.]

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65. Regulations about transitional matters

- (1) If there is not sufficient provision in this Part for dealing with a transitional matter, the Governor may make regulations prescribing all matters that are required, necessary or convenient to be prescribed in relation to that matter.
- (2) In subsection (1) —
transitional matter means a matter that needs to be dealt with for the purpose of effecting the transition from this Act as enacted immediately before the commencement day to this Act as amended by the *Acts Amendment (Fair Trading) Act 2010*.
- (3) Regulations made under subsection (1) may provide that specific provisions of a written law —
(a) do not apply; or
(b) apply with specific modifications,
to or in relation to any matter.
- (4) Regulations made under subsection (1) must be made within 12 months after the commencement day.
- (5) If regulations made under subsection (1) provide that a specified state of affairs is to be taken to have existed, or not to have existed, on and from a day that is earlier than the day on which the regulations are published in the *Gazette* but not earlier than the commencement day, the regulations have effect according to their terms.
- (6) In subsection (5) —
specified means specified or described in the regulations.
- (7) If regulations contain a provision referred to in subsection (5), the provision does not operate so as —
(a) to affect, in a manner prejudicial to any person (other than the State), the right of that person existing before the day of publication of those regulations; or

(b) to impose liabilities on any person (other than the State or an authority of the State) in respect of anything done or omitted to be done before the day of publication of those regulations.

[Section 65 inserted: No. 58 of 2010 s. 49.]

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Table

Item	Provision	Modified penalty for an individual (\$)	Modified penalty for a body corporate (\$)
1.	Regulation 20(2)	600	3 000
2.	Regulation 22	300	1 500
3.	Regulation 54	600	3 000
4.	Regulation 61	600	3 000
5.	Regulation 62(1)	600	3 000
6.	Regulation 72	600	3 000
7.	Regulation 73	600	3 000
8.	Regulation 74	600	3 000
9.	Regulation 78	600	3 000
10.	Regulation 79	300	—
11.	Regulation 81(1)	600	3 000
12.	Regulation 85	600	3 000
13.	Regulation 86(2)	300	—
14.	Regulation 88(1)	600	3 000
15.	Regulation 92(1)	600	3 000
16.	Regulation 94(1)	600	3 000
17.	Regulation 96	600	3 000
18.	Regulation 97(1)	600	3 000
19.	Regulation 99(1)	600	3 000
20.	Regulation 101	300	1 500

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Item	Provision	Modified penalty for an individual (\$)	Modified penalty for a body corporate (\$)
21.	Regulation 107	(a) for a large packaging or overpack— 300 (b) in any other case—100	(a) for a large packaging or overpack— 1 500 (b) in any other case—500
22.	Regulation 112	600	3 000
23.	Regulation 116	600	3 000
24.	Regulation 119	600	3 000
25.	Regulation 123	300	—
26.	Regulation 127	300	—
27.	Regulation 138(3)	300	1 500
28.	Regulation 140(3)	600	—
29.	Regulation 141(1)	300	—
30.	Regulation 141(3)	300	—
31.	Regulation 142(2)	600	3 000
32.	Regulation 142(3)	100	500
33.	Regulation 143(2)	600	3 000
34.	Regulation 143(3)	100	500
35.	Regulation 146	300	—
36.	Regulation 147	300	1 500
37.	Regulation 150(1)	200	1 000
38.	Regulation 151(1)	200	1 000
39.	Regulation 152	300	1 500
40.	Regulation 153	300	1 500
41.	Regulation 154	200	—
42.	Regulation 155(2)	200	—
43.	Regulation 158	300	1 500
44.	Regulation 159(1)	300	1 500
45.	Regulation 160(1)	200	—
46.	Regulation 160(2)	100	—

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Item	Provision	Modified penalty for an individual (\$)	Modified penalty for a body corporate (\$)
47.	Regulation 160(3)	200	—
48.	Regulation 161(1)	200	—
49.	Regulation 161(2)	200	—
50.	Regulation 163	600	3 000
51.	Regulation 164(1)	600	3 000
52.	Regulation 165(1)	200	—
53.	Regulation 166(2)	100	—
54.	Regulation 169	100	—
55.	Regulation 170	200	—
56.	Regulation 171(2)	600	—
57.	Regulation 172	600	—
58.	Regulation 173	600	—
59.	Regulation 174	600	—
60.	Regulation 177(2)	600	3 000
61.	Regulation 177(3)	600	3 000
62.	Regulation 178(4)	300	1 500
63.	Regulation 179(2)	300	1 500
64.	Regulation 179(3)	300	1 500
65.	Regulation 185(1)	600	3 000
66.	Regulation 237(2)	100	500
67.	Regulation 237(3)	100	500
68.	Regulation 237(6)	100	500
69.	Regulation 239	100	—
70.	Regulation 240	100	—
71.	Regulation 243	600	3 000
72.	Regulation 247(2)	100	500
73.	Regulation 248(2)	100	500
74.	Regulation 257(1)	600	3 000
75.	Regulation 258(1)	600	3 000

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Item	Provision	Modified penalty for an individual (\$)	Modified penalty for a body corporate (\$)
76.	Regulation 259(2)	200	1 000

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Notes Compilation table

Notes

[†] This is a compilation of the Motor Vehicle Dealers Act 1973 ~~Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Regulations 2007~~ and includes the amendments made by the other written laws. For provisions that have come into operation, and for information about any reprints, see the compilation table. For provisions that have not yet come into operation see the uncommenced provisions referred to in the following table.

Compilation table

<u>Short title</u>	<u>Citation</u>	<u>Number and year</u>	<u>Assent</u>	<u>Commencement</u>
<u>Motor Vehicle Dealers Act 1973</u> [†]	101 of 1973 Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Regulations 2007	28 31 Dec 1973-2007 p. 6893-7056		s. 1-3 and 5-13: 15 Feb 1974 (see s. 2 and <i>Gazette</i> 15 Feb 1974 p. 375); s. 14-24, 30, 50 and 56: 5 Apr 1974 (see s. 2 and <i>Gazette</i> 5 Apr 1974 p. 1180); s. 4, 25-29, 31-39, 41-49 and 51-55: 12 Aug 1974 (see s. 2 and <i>Gazette</i> 9 Aug 1974 p. 2935); r. 1 and 2: 31 Dec 2007 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Mar 2008 (see r. 2(b) and <i>Gazette</i> 29 Feb 2008 p. 669)
<u>Acts Amendment (Road Traffic) Act 1974 Pt. III</u>	58 of 1974		3 Dec 1974	29 Aug 1975 (see s. 2 and <i>Gazette</i> 29 Aug 1975 p. 3085)
<u>Motor Vehicle Dealers Act Amendment Act 1975</u>	74 of 1975		14 Nov 1975	9 Jan 1976 (see s. 2 and <i>Gazette</i> 9 Jan 1976 p. 2)
<u>Motor Vehicle Dealers Act Amendment Act 1976</u>	66 of 1976		22 Sep 1976	22 Sep 1976
Reprint of the Motor Vehicle Dealers Act 1973 approved 14 Dec 1978 (includes amendments listed above)				
<u>Motor Vehicle Dealers Act Amendment Act 1979</u>	49 of 1979		7 Nov 1979	1 Jan 1980 (see s. 2 and <i>Gazette</i> 21 Dec 1979 p. 3909)
<u>Motor Vehicle Dealers Amendment Act 1981</u> Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations 2008	87 of 1981 30 Jun 2008 p. 3129-30		26 Nov 1981	Actr. 1 and 2: 30 Jun 2008 (see r. 2(a)) Regulations other than s. 15 and 16: 26 Nov 1981 (see

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Compilation table

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<u>Short title</u>	<u>Citation</u>	<u>Number and year</u>	<u>Assent</u>	<u>Commencement</u>
				s. 2(1)); s. 15r. 1 and 16: 1 Feb 1982; 30 Jun 2008 (see s. 2(2b) and Gazette 31 Dec 1981; 4 Jun 2008 p. 5364) 2471)
<i>Acts Amendment (Traffic Board) Act 1981 Pt. III</i>		106 of 1981	4 Dec 1981	2 Feb 1982 (see s. 2 and Gazette 2 Feb 1982 p. 393)
<i>Motor Vehicle Dealers Amendment Act 1982</i>		6 of 1982	6 May 1982	1 Aug 1982 (see s. 2 and Gazette 16 Jul 1982 p. 2713)
<i>Motor Vehicle Dealers Amendment Act (No. 2) 1982</i>		68 of 1982	6 Oct 1982	6 Oct 1982
Reprint of the Motor Vehicle Dealers Act 1973 approved 1 Feb 1983 (includes amendments listed above)				
<i>Acts Amendment (Consumer Affairs) Act 1985 Pt. V Dangerous Goods Safety (Road and Rail Transport of Non- explosives) Amendment Regulations (No. 2) 2008</i>		1 of 1985 23 Jan 2 009 p. 157	8 Mar 1985	s. 24r. 1 and 25: 6 Apr 1983; 23 Jan 2009 (see s. 2(1)); s. 26r. 2(a)); Regulations other than r. 1 and 27: 8 Mar 1985; 24 Jan 2009 (see s. 2(3b))
<i>Acts Amendment (Public Sector Management) Act 1994 s. 19</i>		32 of 1994	29 Jun 1994	1 Oct 1994 (see s. 2 and Gazette 30 Sep 1994 p. 4948)
<i>Statutes (Repeals and Minor Amendments) Act 1994 s. 4</i>		73 of 1994	9 Dec 1994	9 Dec 1994 (see s. 2)
<i>Business Licensing Amendment Act 1995 Pt. 7²</i>		56 of 1995	20 Dec 1995	1 Jan 1996 (see s. 2(3))
<i>Industrial Relations Legislation Amendment and Repeal Act 1995 s. 68(4)</i>		79 of 1995	16 Jan 1996	18 May 1996 (see s. 3(2) and Gazette 14 May 1996 p. 2019)
Reprint of the Motor Vehicle Dealers Act 1973 as at 14 Nov 1996 (includes amendments listed above)				
<i>Statutes (Repeals and Minor Amendments) Act 1997 s. 39(10) and 90</i>		57 of 1997	15 Dec 1997	15 Dec 1997 (see s. 2(1))
<i>Statutes (Repeals and Minor Amendments)</i>		10 of 1998	30 Apr 1998	30 Apr 1998 (see s. 2(1))

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<u>Short title</u>	<u>Citation</u>	<u>Number and year</u>	<u>Assent</u>	<u>Commencement</u>
<i>Act (No. 2) 1998 s. 53</i>				
<i>Motor Vehicle Dealers Amendment Act 2002³</i>	<i>4 of 2002</i>	<i>416 Jun 2002</i>	<i>2009</i>	<i>s. 1 and 2: 416 Jun 2002; Act 2009 (see r. 2(a)); Regulations other than s. 1 and 2: 1 Sep 2002 (see s. 2 and Gazette 13 Aug 2002 p. 4151)(b))</i>
<i>Dangerous Goods Safety (Road and Rail Transport of Non- explosives) Amendment Regulations (No. 2) 2009</i>				
<i>Motor Vehicle Dealers Amendment Act 2003⁴</i>	<i>73 of 2003</i>		<i>15 Dec 2003</i>	<i>s. 1 and 2: 15 Dec 2003; Act other than s. 1, 2 and 19-21: 22 Dec 2004 (see s. 2 and Gazette 21 Dec 2004 p. 6133); s. 19: 1 Jan 2005 (see s. 2 and Gazette 31 Dec 2004 p. 7131)</i>
<i>Courts Legislation Amendment and Repeal Act 2004 s. 141</i>	<i>59 of 2004</i>		<i>23 Nov 2004</i>	<i>1 May 2005 (see s. 2 and Gazette 31 Dec 2004 p. 7128)</i>
<i>State Administrative Tribunal (Conferral of Jurisdiction) Amendment and Repeal Act 2004 Pt. 2 Div. 86⁵</i>	<i>55 of 2004</i>		<i>24 Nov 2004</i>	<i>1 Jan 2005 (see s. 2 and Gazette 31 Dec 2004 p. 7130)</i>
<i>Criminal Procedure and Appeals (Consequential and Other Provisions) Act 2004 s. 80 and 82</i>	<i>84 of 2004</i>		<i>16 Dec 2004</i>	<i>2 May 2005 (see s. 2 and Gazette 31 Dec 2004 p. 7129 (correction in Gazette 7 Jan 2005 p. 53))</i>
Reprint 4: The Motor Vehicle Dealers Act 1973 as at 17 Jun 2005 (includes amendments listed above)				
<i>Limitation Legislation Amendment and Repeal Act 2005 s. 23</i>	<i>20 of 2005</i>		<i>15 Nov 2005</i>	<i>15 Nov 2005 (see s. 2(1))</i>
<i>Planning and Development (Consequential and Transitional Provisions) Act 2005 s. 15</i>	<i>38 of 2005</i>		<i>12 Dec 2005</i>	<i>9 Apr 2006 (see s. 2 and Gazette 21 Mar 2006 p. 1078)</i>
<i>Machinery of Government (Miscellaneous Amendments) Act 2006 Pt. 4 Div. 15⁶</i>	<i>28 of 2006</i>		<i>26 Jun 2006</i>	<i>1 Jul 2006 (see s. 2 and Gazette 27 Jun 2006 p. 2347)</i>

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<u>Short title</u>	<u>Citation</u>	<u>Number and year</u>	<u>Assent</u>	<u>Commencement</u>	
<u>Consumer Protection Legislation Amendment and Repeal Act 2006 Pt. 7</u>	<u>69 of 2006</u>		<u>13 Dec 2006</u>	<u>14 Jul 2007 (see s. 2 and Gazette 13 Jul 2007 p. 3453)</u>	
<u>Financial Legislation Amendment and Repeal Act 2006 Sch. 1 cl. 109</u>	<u>77 of 2006</u>		<u>21 Dec 2006</u>	<u>1 Feb 2007 (see s. 2(1) and Gazette 19 Jan 2007 p. 137)</u>	
Reprint 5: The Motor Vehicle Dealers Act 1973 as at 11 May 2007 (includes amendments listed above except those in the <i>Consumer Protection Legislation Amendment and Repeal Act 2006</i>)					
<u>Statutes (Repeals and Miscellaneous Amendments) Act 2009 s. 94</u>	<u>8 of 2009</u>		<u>21 May 2009</u>	<u>22 May 2009 (see s. 2(b))</u>	
<u>Acts Amendment (Bankruptcy) Act 2009 s. 57</u>	<u>18 of 2009</u>		<u>16 Sep 2009</u>	<u>17 Sep 2009 (see s. 2(b))</u>	
<u>Acts Amendment (Fair Trading) Act 2010 Pt. 4⁷</u>	<u>58 of 2010</u>		<u>8 Dec 2010</u>	<u>s. 36: 1 Jan 2011 (see s. 2(b)(ii) and Gazette 24 Dec 2010 p. 6805); s. 37: 1 Jan 2011 (see s. 2(c) and Gazette 24 Dec 2010 p. 6805); Pt. 4 (other than s. 36 and 37): 1 Jul 2011 (see s. 2(c) and Gazette 7 Jun 2011 p. 2057)</u>	
<u>Personal Property Securities (Consequential Repeals and Amendments) Act 2011 Pt. 4 Div. 7</u>	<u>42 of 2011</u>		<u>4 Oct 2011</u>	<u>30 Jan 2012 (see s. 2(c) and Cwlth Legislative Instrument No. F2011L02397 cl. 5 registered 21 Nov 2011)</u>	
Reprint 6: The Motor Vehicle Dealers Act 1973 as at 6 Jan 2012 (includes amendments listed above except those in the <i>Personal Property Securities (Consequential Repeals and Amendments) Act 2011</i>)					
<u>Road Traffic Legislation Amendment Act 2012 Pt. 4 Div. 35</u>	<u>8 of 2012</u>		<u>21 May 2012</u>	<u>27 Apr 2015 (see s. 2(d) and Gazette 17 Apr 2015 p. 1371)</u>	
<u>Consumer Protection Legislation Amendment Act 2014 Pt. 7</u>	<u>23 of 2014</u>		<u>9 Oct 2014</u>	<u>19 Nov 2014 (see s. 2(b) and Gazette 18 Nov 2014 p. 4315)</u>	
<u>Licensing Provisions Amendment Act 2016 Pt. 6</u>	<u>44 of 2016</u>		<u>1 Dec 2016</u>	<u>1 Jul 2017 (see s. 2(b) and Gazette 27 Jun 2017 p. 3407)</u>	
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Notes Uncommenced provisions table

<u>Short title</u>	<u>Citation</u>	<u>Number and year</u>	<u>Assent</u>	<u>Commencement</u>
<u>COVID-19 Response and Economic Recovery Omnibus Act 2020 s. 100</u>		<u>34 of 2020</u>	<u>11 Sep 2020</u>	<u>12 Sep 2020 (see s. 2(b))</u>

Uncommenced provisions table

To view the text of the uncommenced provisions see *Acts as passed* on the WA
Legislation website.

<u>Short title</u>	<u>Number and year</u>	<u>Assent</u>	<u>Commencement</u>
<u>Motor Vehicle Dealers Amendment Act 2003 s. 20 and 21</u>	<u>73 of 2003</u>	<u>15 Dec 2003</u>	<u>To be proclaimed (see s. 2)</u>
<u>Mutual Recognition (Western Australia) Amendment Act 2022 Pt. 3 Div. 9</u>	<u>7 of 2022</u>	<u>29 Mar 2022</u>	<u>1 Jul 2022 (see s. 2(b) and SL 2022/80 cl. 2)</u>

Other notes

- ¹ The *Motor Vehicle Dealers Act 1973* s. 40 did not come into operation and was
repealed by the *Motor Vehicle Dealers Amendment Act 2002* s. 62.
- ² The *Business Licensing Amendment Act 1995* s. 38 is a transitional provision that
is of no further effect.
- ³ The *Motor Vehicle Dealers Amendment Act 2002* Pt. 7 reads as follows:

Part 7 —Transitional provisions

73. Definition

In this Part —

the principal Act means the *Motor Vehicle Dealers Act 1973*.

74. Licence applications in progress

- (1) If, before the commencement of section 6, 7 or 8 of this Act, an
application for the grant or renewal of a dealer's licence, yard
manager's licence or salesman's licence —

(a) has been made; but

(b) has not been determined.

the application is to be determined as if Part 2 of this Act had not been enacted.

(2) If, before the commencement of section 10 of this Act, an application —

(a) has been made by a person, by persons constituting a firm or by a body corporate for the grant or renewal of a car market operator's licence; but

(b) has not been determined,

the application is to be taken to be an application by the person, persons or body corporate to be registered as a car market operator under section 17B of the principal Act as in force after the commencement of section 10.

75. Existing dealer's licence

(1) This section applies where a person, persons constituting a firm, or a body corporate held a dealer's licence under the principal Act (*the existing licence*) immediately before the commencement of section 6 of this Act.

(2) The person, the persons constituting the firm, or the body corporate is or are to be taken on that commencement to hold a dealer's licence for each class or description of business prescribed by regulations referred to in section 5A of the principal Act.

(3) Subject to the principal Act, the licence referred to in subsection (2) continues in force —

(a) until the expiry of the period stated in the existing licence; and

(b) on the same terms and conditions as applied to that licence.

76. Existing car market operator's licence

(1) This section applies where a person, persons constituting a firm, or a body corporate held a car market operator's licence under the principal Act immediately before the commencement of section 10 of this Act.

(2) The person, the persons constituting the firm, or the body corporate is or are to be taken on that commencement —

(a) to be registered as a car market operator under section 17B of the principal Act; and

- (b) subject to the principal Act, to be so registered until the expiry of the period stated in the licence.

77. Premises covered by existing certificate of registration

- (1) Where immediately before the commencement of section 16 of this Act a certificate of registration is in force under section 21 of the principal Act in respect of premises at which a dealer carries on business, the premises are to be taken after that commencement to be authorised premises under the principal Act in relation to that dealer.
- (2) Where immediately before the commencement of section 17 of this Act a certificate of registration is in force under section 21B of the principal Act in respect of premises that are provided for a car market by a car market operator, the premises are to be taken after that commencement to be authorised premises under the principal Act in relation to that car market operator.

78. Existing grounds for disciplinary action

The powers of the Board under section 20(1) of the principal Act inserted by section 16 of this Act may be exercised in relation to acts, omissions and conduct that occurred before or after the commencement of section 16.

79. Time limit for prosecution of existing offences

Section 52(4) of the principal Act applies to an offence committed before the commencement of subsection (2) of section 51 of this Act as if that subsection had not been passed.

80. Application of Part III, Division 2

Division 2 inserted in Part III of the principal Act by section 57 of this Act does not apply to a consignment agreement (as defined in section 32A of the principal Act) that was entered into before the commencement of section 57.

81. Dealer's obligation to repair

- (1) Sections 34 to 34G inserted in the principal Act by section 59 of this Act do not apply to a second-hand vehicle that was sold before the commencement of section 59.
- (2) Section 34 of the principal Act repealed by section 59 of this Act continues to apply, despite the repeal, to second-hand vehicles sold by a dealer before the commencement of section 59.

82. Application of section 42A

Section 42A of the principal Act inserted by section 63 of this Act does not apply to a contract or agreement for the sale of a vehicle that was entered into before the commencement of section 63.

83. Further transitional provision may be made

(1) The Governor may make regulations —

- (a) amending or supplementing the transitional provisions made by this Part; or
- (b) making further transitional provisions.

for the purpose of providing an effective and efficient transition from the principal Act as in force before the commencement of any provision of this Act to the principal Act as amended by this Act.

(2) Regulations under subsection (1) may have effect before the day on which they are published in the *Gazette*.

(3) To the extent that a regulation under subsection (1) has effect before the day of its publication in the *Gazette*, it does not —

- (a) affect in a manner prejudicial to any person the rights of that person existing before the day of its publication; or
- (b) impose liabilities on any person in respect of anything done or omitted to be done before the day of its publication.

⁴ The *Motor Vehicle Dealers Amendment Act 2003* s. 25 and 26 read as follows:

25. Transitional provision: membership of Board

The persons who were members of the Motor Vehicle Dealers Licensing Board immediately before the commencement of section 10 cease to hold office on that commencement.

26. Transitional provisions: change of title of Board

(1) This section relates to the amendment made by section 9(1) which changes the title of the body established by section 7 of the *Motor Vehicle Dealers Act 1973* from the “Motor Vehicle Dealers Licensing Board” to the “Motor Vehicle Industry Board”.

(2) The change of title of the body does not affect —

- (a) its corporate identity;
- (b) any right, power, or obligation of the body;

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- (c) any proceedings in progress; or
(d) anything previously done by, to or in respect of the body.
- (3) On and after the commencement of this Act a reference to the “Motor Vehicle Dealers Licensing Board” in any instrument (including any subsidiary legislation) is to be construed, unless the context otherwise requires, as if the reference had been amended to be a reference to the “Motor Vehicle Industry Board”.

⁵ The *State Administrative Tribunal (Conferral of Jurisdiction) Amendment and Repeal Act 2004* Pt. 5, the *State Administrative Tribunal Act 2004* s. 167 and 169, and the *State Administrative Tribunal Regulations 2004* r. 28 and 42 deal with certain transitional issues some of which may be relevant for this Act.

⁶ The *Machinery of Government (Miscellaneous Amendments) Act 2006* Pt. 4 Div. 23 has transitional provisions some of which may be relevant to this Act.

⁷ The amendments in the *Acts Amendment (Fair Trading) Act 2010* s. 177 will not come into operation (see s. 2(b)(i)).

Defined terms

*[This is a list of terms defined and the provisions where they are defined.
The list is not part of the law.]*

Defined term	Provision(s)
"built date" shown on the vehicle	34F(4)
accused	52(3)
approved	5(1)
authorisation	5(1)
authorised officer	5(1)
authorised premises	5(1), 27(1a)
buying or selling	5(1)
camper van	5(4)
car hire operator	5(1)
car market	5(1)
car market operator	5(1)
cash price	5(1)
category 1 vehicle	34C(1)
category 2 vehicle	34C(1)
certificate of registration	5(1)
collateral credit agreement	41A(7)
commencement day	57
Commissioner	5(1)
compliance plate	34F(4)
consignment agreement	28(12), 32A
consignor	32A
dealer	5(1), 27(1a)
dealer's licence	5(1)
defect	28(12)
defective	28(12)
demonstration vehicle	5(1)
Department	5(1)
designated official	55A(1)
financier	5(1)
former Board	57
grant	5(1)
hire-purchase agreement	5(1)
hold	5(1)
inspecting officer	28(12)
liability	57
licence	5(1)
model designation	5(1)
motor cycle	5(4)
other person	53(1)

Defined terms

<u>owner</u>	28(12)
<u>passenger car</u>	5(4)
<u>passenger car derivative</u>	5(4)
<u>person aggrieved</u>	22(2)
<u>prescribed amount</u>	45(4)
<u>registered company auditor</u>	32A
<u>relevant maximum fine</u>	20B(3)
<u>relevant person</u>	17C(4)
<u>residual assets</u>	63
<u>reviewable decision</u>	22(2)
<u>right</u>	57
<u>sale</u>	5(1)
<u>salesperson</u>	5(1), 27(1a)
<u>salesperson's licence</u>	5(1)
<u>second-hand vehicle</u>	5(1a)
<u>section</u>	5(1)
<u>security interest</u>	32A
<u>sell</u>	5(1)
<u>sold</u>	5(1)
<u>specified</u>	65(6)
<u>sufficient knowledge of this Act</u>	15(6)
<u>sufficient resources</u>	15(6)
<u>trade owner</u>	5(1)
<u>trade-in</u>	32D(2)
<u>transitional matter</u>	65(2)
<u>trust account</u>	32A
<u>vehicle</u>	5(2), 5(3), 34C(1)
<u>yard manager</u>	5(1), 27(1a)
<u>yard manager's licence</u>	5(1)
<u>year</u>	32A
<u>year of first registration</u>	5(1)
<u>year of manufacture</u>	5(1)